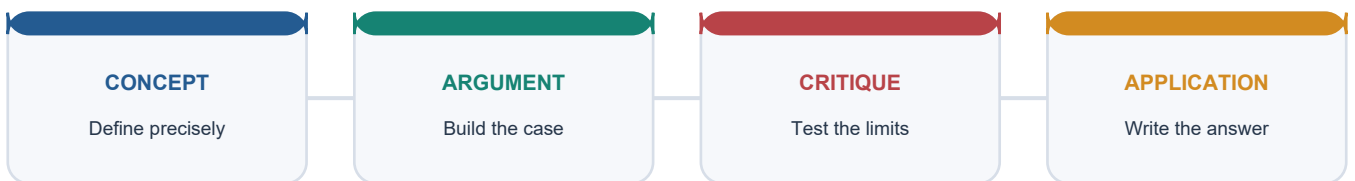


COMPLETE LEARNING SESSION

Fundamental Rights - Complete Learning Session

UPSC complete learning session | Foundation to advanced | Concepts, evidence, practice and answer writing

LEARNING PATH



Deterministic fallback visual: move from precise concepts through argument and critique to exam application.

Source order: repository knowledge -> official current linkage -> clearly marked analysis. No fabricated PYQs or statistics.

Fundamental Rights - Complete Learning Session

Scope: Complete Part III architecture, Articles 12-35, equality, freedoms, exploitation, religion, cultural and educational rights, remedies, saving/special provisions and only the Fundamental-Rights-level Emergency effects. Article 300A is retained as the property boundary. Detailed Emergency procedure remains Topic 14 and Directive Principles remain Topic 8.

SOURCE, STATUS AND NON-FABRICATION CONTROL

- **Canonical sequence used:** basic\Fundamental-Rights.md -> advanced\07_Fundamental-Rights.md -> 07_Fundamental-Rights_Complete-Topic-Package.md -> syllabus/audit/verified PYQ ledgers -> OCR-searchable local polity books -> constitutional text, legislation and official Supreme Court judgments.
- **Local OCR checks:** books\Indian Polity by M Laxmikant.pdf, Fundamental Rights chapter at PDF pages 158-209; books\Courseware on Indian Polity by M Laxmikanth.pdf, corresponding Fundamental Rights chapter at PDF pages 159-224.
- **Official current control, checked 7 September 2026:** Legislative Department Constitution text; official Supreme Court holdings/orders used for Electoral Bonds, *Davinder Singh*, *Property Owners Association*, *Supriyo* review dismissal, *Anuradha Bhasin* and *Harish Rana*; MeitY G.S.R. 843(E)/846(E) phased DPDP commencement; BNS section 152 challenge remains notice-stage on the located official record with no final merits disposition found.
- **Holding discipline:** settled holdings, pending review/status and analytical inference are separated. Privacy is fundamental but qualified; *Navtej* protects consensual adult intimacy but did not create same-sex marriage; internet is a medium of protected freedoms rather than a standalone unlimited right; reservation ceilings and religious-freedom doctrines are stated with their qualifications.
- **PYQ key discipline:** exact audited question wording is reproduced. Only UPSC 2024 Prelims Q76 prints the held final local-official answer letter. The remaining fourteen objective answer letters are withheld because no final official/local-official key is held.
- **Boundary discipline:** detailed basic-structure development remains Topic 10, full Emergency architecture Topic 14, FR-DPSP reconciliation Topic 8 and Supreme Court/PIL institutional detail Topic 18.

Official/current source register: Legislative Department, Constitution of India (as on 1 May 2024); Supreme Court official judgments/orders in *Association for Democratic Reforms* (15 February 2024), *State of Punjab v. Davinder Singh* (1 August 2024), *Property Owners Association* (5 November 2024), *Supriyo* review order (9 January 2025), *Anuradha Bhasin* (10 January 2020) and *Harish Rana* (11 March 2026); MeitY G.S.R. 843(E) and 846(E), 13 November 2025; BNS/BNSS official texts and the Supreme Court notice order dated 28 August 2025.

ROADMAP

Stage	Sessions	Learning outcome
Foundation and gateway	1-6	Part III architecture, beneficiaries, limits, Articles 12-13, property and non-derogable core
Core I - equality	7-10	Articles 14-18, substantive equality and reservation doctrine
Core II - freedom and liberty	11-19	Article 19 freedoms and speech; Articles 20, 21, 21A and 22
Core III - community rights and remedies	20-23	Articles 23-30 and Article 32/writs
Synthesis	24-26	Articles 31A-31C, 33-35, martial law and Articles 358-359
Optional Advanced	after practice	Proportionality, horizontality, transformative equality and institutional limits

MANDATORY FUNDAMENTAL-RIGHTS DOCTRINE TIMELINE

Year	Authority	Exact exam-safe contribution
1950	<i>A.K. Gopalan v. State of Madras</i>	Read Article 21 procedure narrowly and treated rights in separate silos; later doctrine moved away from this approach.
1951	<i>State of Madras v. Champakam Dorairajan</i>	Invalidated the communal admission allocation under Article 29(2); the First Amendment inserted Article 15(4).
1951	<i>Shankari Prasad v. Union of India</i>	Treated constitutional amendment as outside ordinary "law" under Article 13; later amendment review shifted to basic structure.
1967	<i>I.C. Golaknath v. State of Punjab</i>	Restricted future amendment of Fundamental Rights through prospective overruling; the Twenty-fourth Amendment responded.
1970	<i>R.C. Cooper v. Union of India</i>	Shifted review toward the effect of State action and weakened the silo theory of Fundamental Rights.
1973	<i>Kesavananda Bharati v. State of Kerala</i>	Parliament may amend every Part, including Part III, but cannot damage the Constitution's basic structure.
1978	<i>Maneka Gandhi v. Union of India</i>	Required fair, just and reasonable procedure and linked Articles 14, 19 and 21.
1980	<i>Minerva Mills v. Union of India</i>	Reaffirmed limited amending power and harmony between Parts III and IV; invalidated the all-DPSP expansion of Article 31C.
1981	<i>Waman Rao v. Union of India</i>	Used 24 April 1973 as the prospective Ninth Schedule boundary.
2007	<i>I.R. Coelho v. State of Tamil Nadu</i>	Subjected post-24 April 1973 Ninth Schedule insertions to basic-structure review based on their effect.
2017	<i>Shayara Bano v. Union of India</i>	By 3:2, set aside talaq-e-biddat; the Nariman-Lalit opinion used manifest arbitrariness under Article 14.
2017	<i>K.S. Puttaswamy v. Union of India</i>	A unanimous nine-judge Bench recognised privacy as intrinsic to Article 21 and the freedoms of Part III.
2018	<i>Navtej Singh Johar v. Union of India</i>	Read down section 377 for consensual adult same-sex intimacy through dignity, privacy and equality; it did not decide marriage status.
2018	<i>Joseph Shine v. Union of India</i>	Invalidated the adultery offence as incompatible with equality, dignity and sexual autonomy.
2020	<i>Anuradha Bhasin v. Union of India</i>	Protected speech and trade through the internet as a medium; required published, reviewable and proportionate orders and rejected indefinite suspension.
2022	<i>Janhit Abhiyan v. Union of India</i>	A 3:2 majority upheld the 103rd Amendment and EWS clauses; do not call the decision unanimous.
2023 / 2025	<i>Supriyo v. Union of India</i> / review order	The Court did not judicially rewrite the Special Marriage Act to create same-sex marriage; review petitions were dismissed on 9 January 2025.
2024	<i>State of Punjab v. Davinder Singh</i>	Permitted evidence-based sub-classification within Scheduled Castes without altering the Article 341 list; permission is not a mandate.

SESSION 1 - PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS

Stage: Foundation and gateway

VISUAL FIRST

PART III OPERATING MAP

Article 12 -> who is bound

Article 13 -> what law is controlled

Articles 14-30 -> six substantive rights

Article 32 -> guaranteed Supreme Court remedy

Articles 31A-35 + 358-359 -> bounded saving/special/emergency controls

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

Technical definition: Articles 12-13 and 31A-35 are in Part III, but they are not separately counted among the six present Fundamental Rights.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

MUST-WRITE KEYWORDS

- **Part III as an architecture**
- **rights**
- **limits**
- **remedies**
- **special controls**
- **CONTENT CLASSIFICATION**

How to use them: Frame the answer through Part III as an architecture; define rights, connect limits with remedies to explain the mechanism, and use special controls for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARCHITECTURE): Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Part III is a connected design: Articles 12-13 open the gate, rights occupy Articles 14-30, Article 32 enforces them, and special clauses discipline immunity or suspension. [FACT] Part III is not merely a list of entitlements. It has four interacting elements:

1. **Gateway:** Article 12 identifies the State; Article 13 invalidates inconsistent law.
2. **Substantive rights:** Articles 14-30 protect equality, freedom, labour dignity, conscience and cultural autonomy.
3. **Enforcement:** Article 32 guarantees access to the Supreme Court for Fundamental Rights; Article 226 supplies wider High Court writ power.

4. **Constitutional controls:** Articles 31A-31C, 33-35 and 358-359 define limited immunity, special legislation or Emergency consequences.

[ANALYSIS] The correct exam method is therefore:

identify the right -> identify its beneficiary and respondent -> locate the exact permitted restriction -> apply the judicial test -> choose the remedy -> state any saving or Emergency caveat.

Six rights and their Article spans

Right	Articles	Core exam question
Equality	14-18	Is the distinction rational, non-arbitrary and compatible with substantive equality?
Freedom	19-22	Which freedom/liberty is engaged, and does the limit fit the exact constitutional clause?
Against exploitation	23-24	Does coercion or prohibited child labour exist, including through private action?
Freedom of religion	25-28	Is the claim religious, denominational or secular, and which textual limit applies?
Cultural and educational rights	29-30	Is the claimant a section of citizens or a religious/linguistic minority institution?
Constitutional remedies	32	Which writ and which court can cure the constitutional injury?

UPSC trap: Articles 12-13 and 31A-35 are in Part III, but they are not separately counted among the six present Fundamental Rights.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Part III works as a linked rights system rather than a list of isolated guarantees. **Named evidence:** Articles 12-35; Articles 226, 358 and 359. **Analysis:** The sequence identifies the respondent and law before testing the right, limit and remedy. **Qualification / link:** Articles 12-13 and 31A-35 belong to Part III but are not separate entries in the six-right catalogue.

NAMED EVIDENCE

Articles 12-35; Articles 226, 358 and 359.

PRELIMS TRAP

Do not count Articles 12, 13 or 31A-35 as additional present Fundamental Rights.

MAINS USE

Use as the opening architecture in any broad Part III or rights-limitation answer.

MINI RECAP

Gateway, right, justified limit, remedy and exceptional control form one chain.

CLOSING RECALL FLOW - PART III AS AN ARCHITECTURE: RIGHTS, LIMITS, REMEDIES AND SPECIAL CONTROLS

START / CONCEPT: Part III as an architecture: rights, limits, remedies and special controls
|
v
EXACT TERMS: Part III as an architecture · rights · limits · remedies · special controls · CONTENT CLASSIFICATION
|
v
MECHANISM / ARGUMENT: Articles 12-13 and 31A-35 are in Part III, but they are not separately counted among the six present Fundamental Rights.
|
v
CONSEQUENCE / CONTRAST: Part III is not merely a list of entitlements.
|
v
UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: articles 12-13 and 31A-35 are in Part III.
|
v
ANSWER-GRABBING FORMULATION: Part III is a constitutional operating system, not a bare catalogue: Articles 12-13 identify bound power and invalid law, Articles 14-30 secure six present rights, Article 32 supplies the remedy, and Articles 31A-35 plus 358-359 control exceptional protection or enforcement.

SESSION 2 - BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES

Stage: Foundation and gateway

VISUAL FIRST

TWO AXES, NEVER ONE
BENEFICIARY: citizen / person / minority / denomination
RESPONDENT: State / specified private actor / public-duty body
DIRECT PRIVATE REACH: 15(2), 17, 23, 24
LEGISLATIVE PRIVATE REACH: 15(5)
POSITIVE DUTY: State protection, investigation or minimum safeguards

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Vertical: the usual model is individual versus State.

Technical definition: Positive duty: equal protection may require protection from private violence; Article 21 can require legal aid, custodial safeguards and fair investigation; Article 17 requires abolition backed by penal law.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.

MUST-WRITE KEYWORDS

- Beneficiaries
- vertical
- horizontal reach
- positive
- negative duties
- CONTENT CLASSIFICATION

How to use them: Frame the answer through Beneficiaries; define vertical, connect horizontal reach with positive to explain the mechanism, and use negative duties for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (BENEFICIARIES / HORIZONTALITY):

Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Beneficiary language and the respondent axis are separate. A right may protect all persons yet remain mainly vertical, or may be citizen-specific yet reach private discrimination.

Citizen-only and person-protective guarantees

Provision	Textual beneficiary	Exam-safe formulation
Article 14	any person	Citizens, non-citizens and juristic persons may invoke it where applicable.
Article 15	citizen / citizens	Citizen-specific; Article 15(2) also reaches specified private exclusion.
Article 16	all citizens	Citizen-specific equality in public employment.
Article 19	all citizens	The six freedoms are citizen-only. Companies do not become citizens, though shareholder/media claims may be framed through affected citizens.
Articles 20-22	person / no person	Protect persons, subject to Article 22's enemy-alien and preventive-detention distinctions.
Articles 23-24	person-oriented prohibitions	Reach State and private exploitation.
Articles 25-28	all persons / denominations / institutional rules	Religious freedom is not citizen-only.
Article 29	section of citizens / no citizen	Textually citizen-linked.
Article 30	all minorities	The clause does not use the word citizen; standard exam lists treat it as minority/citizen-linked, but quote the text accurately.

Vertical and horizontal application

- **Vertical:** the usual model is individual versus State. Articles 14, 16 and 19 primarily discipline State action.
- **Express horizontal reach:** Article 15(2) covers denial of access to specified public-facing places; Article 17 abolishes untouchability; Articles 23-24 prohibit exploitation by private actors too.
- **Remedial reach:** habeas corpus may issue against private detention; High Courts may use Article 226 against a non-State body performing a public duty.
- [LIMIT] *Kaushal Kishor v. State of Uttar Pradesh* (2023) contains important reasoning on the operation of Articles 19 and 21 beyond the State. Do not convert it into the loose proposition that every Fundamental Right now applies fully against every private person.

Negative and positive dimensions

- **Negative duty:** the State must not censor speech outside Article 19(2), discriminate only on prohibited grounds, or deprive liberty through unfair procedure.
- **Positive duty:** equal protection may require protection from private violence; Article 21 can require legal aid, custodial safeguards and fair investigation; Article 17 requires abolition backed by penal law.
- [ANALYSIS] Modern rights adjudication therefore asks not only, "Did the State interfere?" but also, "Did the State reasonably protect the conditions in which the right can be exercised?"

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Beneficiary language and horizontal reach answer different constitutional questions. **Named evidence:** Articles 14-19, 23-25, 29-30; Article 15(5); Article 226. **Analysis:** A citizen-only right may reach specified private conduct, while a person-based right may remain mainly vertical. **Qualification / link:** Article 15(5) authorises law reaching covered private educational institutions; it is not a free-standing ban identical to Article 15(2).

NAMED EVIDENCE

Articles 14-19, 23-25, 29-30; Article 15(5); Article 226.

PRELIMS TRAP

Do not infer universal private enforceability merely because a guarantee protects every person.

MAINS USE

Use to organise answers on horizontality, positive obligations and non-State power.

MINI RECAP

First identify the holder, then the duty-bearer, then direct or mediated reach.

CLOSING RECALL FLOW - BENEFICIARIES, VERTICAL AND HORIZONTAL REACH, POSITIVE AND NEGATIVE DUTIES

START / CONCEPT: Beneficiaries, vertical and horizontal reach, positive and negative duties
|
v
EXACT TERMS: Beneficiaries · vertical · horizontal reach · positive · negative duties · CONTENT
CLASSIFICATION
|
v
MECHANISM / ARGUMENT: Positive duty: equal protection may require protection from private violence; Article 21 can require legal aid, custodial safeguards and fair investigation; Article 17 requires abolition backed by penal law.
|
v
CONSEQUENCE / CONTRAST: Negative duty: the State must not censor speech outside Article 19(2), discriminate only on prohibited grounds, or deprive liberty through unfair procedure.
|
v
UPSC TRAP / ANSWER-USE: Do not convert it into the loose proposition that every Fundamental Right now applies fully against every private person.
|
v
ANSWER-GRABBING FORMULATION: Fundamental-right analysis must separate beneficiary from respondent: some guarantees belong only to citizens, many protect every person, and Articles 15(2), 17, 23 and 24 directly reach specified private conduct while positive duties may require State protection.

SESSION 3 - QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY

Stage: Foundation and gateway

VISUAL FIRST

RESTRICTION REVIEW

valid law

- > exact constitutional ground
- > legitimate aim
- > rational connection
- > necessity / less restrictive means
- > balancing
- > reasons, hearing, publication, duration and review

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: "Reasonable restriction" and proportionality are related but not interchangeable slogans.

Technical definition: Legality: Is the restriction authorised by valid law rather than unsupported executive preference?

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.

MUST-WRITE KEYWORDS

- **Qualified rights**
- **reasonable restrictions**
- **proportionality**
- **CONTENT CLASSIFICATION**
- **Legality**
- **Legitimate constitutional aim**

How to use them: Frame the answer through Qualified rights; define reasonable restrictions, connect proportionality with CONTENT CLASSIFICATION to explain the mechanism, and use Legality for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (QUALIFIED RIGHTS / PROPORTIONALITY):

Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.

CONTENT CLASSIFICATION: CORE MAINS

[FACT] Fundamental Rights are not absolute. Their qualification takes different forms:

- Article 14 permits reasonable classification but bars class legislation and arbitrariness.
- Article 19 contains six freedoms and four different restriction clauses; the grounds are closed, not illustrative.
- Articles 25-26 are expressly subject to public order, morality and health; Article 25 is also subject to other Fundamental Rights.
- Article 22 itself authorises preventive detention while imposing minimum safeguards.
- Articles 31A-31C save specified laws from specified challenges.

The modern review sequence

1. **Legality:** Is the restriction authorised by valid law rather than unsupported executive preference?
2. **Legitimate constitutional aim:** Does it fit the exact provision, such as Article 19(2) public order?
3. **Rational connection:** Is the measure capable of advancing that aim?
4. **Necessity:** Is a less rights-restrictive but equally effective measure available?

5. **Balancing:** Is the rights cost excessive relative to the public benefit?
6. **Procedural safeguards:** Are reasons, publication, hearing, review and time limits present?

[ANALYSIS] "Reasonable restriction" and proportionality are related but not interchangeable slogans. Always begin with the Article's text; proportionality disciplines the chosen means.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Qualified rights remain constitutional guarantees because limitation is text-bound and reviewable. **Named evidence:** Articles 14, 19(2)-(6), 21, 25-26; Modern Dental College (2016); Puttaswamy (2017). **Analysis:** Proportionality disciplines the means only after legality and the correct constitutional ground are shown. **Qualification / link:** The test varies with the Article; Article 19's closed grounds cannot be replaced by a general public-interest claim.

NAMED EVIDENCE

Articles 14, 19(2)-(6), 21, 25-26; Modern Dental College (2016); Puttaswamy (2017).

PRELIMS TRAP

Never begin and end with the word 'balance' without identifying the exact clause and ground.

MAINS USE

Use as the standard restriction paragraph for speech, privacy, movement or religion.

MINI RECAP

Text first, proportionality second, procedure throughout.

CLOSING RECALL FLOW - QUALIFIED RIGHTS, REASONABLE RESTRICTIONS AND PROPORTIONALITY

START / CONCEPT: Qualified rights, reasonable restrictions and proportionality

|
v

EXACT TERMS: Qualified rights · reasonable restrictions · proportionality · CONTENT CLASSIFICATION
· Legality · Legitimate constitutional aim

|
v

MECHANISM / ARGUMENT: Legality: Is the restriction authorised by valid law rather than unsupported executive preference?

|
v

CONSEQUENCE / CONTRAST: "Reasonable restriction" and proportionality are related but not interchangeable slogans.

|
v

UPSC TRAP / ANSWER-USE: Article 19 contains six freedoms and four different restriction clauses; the grounds are closed, not illustrative.

|
v

ANSWER-GRABBING FORMULATION: Indian Fundamental Rights are qualified but not defeasible at executive will: every restriction must rest on valid law, fit the exact constitutional ground, pursue a legitimate aim and remain rational, necessary, balanced and procedurally safeguarded.

SESSION 4 - ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY

Stage: Foundation and gateway

VISUAL FIRST

ARTICLE 12 GATE

express bodies -> Union / States / legislatures / local authorities
other authority -> financial + functional + administrative domination
-> pervasive governmental control
Article 12 status fails? -> Article 226 may still reach a public duty

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

Technical definition: Article 226 can reach a non-State body for the public-law element of its work.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

MUST-WRITE KEYWORDS

- Article 12 - the State
- the instrumentality inquiry
- CONTENT CLASSIFICATION
- public duty
- Article 12
- Article 226

How to use them: Frame the answer through Article 12 - the State; define the instrumentality inquiry, connect CONTENT CLASSIFICATION with public duty to explain the mechanism, and use Article 12 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 12): Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Article 12 begins with express bodies and then asks whether an 'other authority' is functionally an instrumentality or agency of government. [FACT] Article 12 includes:

- Government and Parliament of India;
- Government and Legislature of each State;
- all local authorities; and
- other authorities within India or under the control of the Government of India.

Other authorities

[FACT] *Rajasthan Electricity Board v. Mohan Lal* rejected an unduly narrow reading tied only to sovereign functions. *R.D. Shetty* and *Ajay Hasia* developed the instrumentality/agency approach.

Relevant indicators include:

- substantial government ownership or finance;
- deep and pervasive control;
- functions of public importance closely related to governmental functions;

- State-conferred monopoly;
- transfer of a government department; and
- the cumulative factual relationship rather than the body's corporate form.

[LIMIT] No single factor is conclusive. The later approach in *Pradeep Kumar Biswas (2002)* asks whether the body is financially, functionally and administratively dominated by or under government control of a pervasive character.

Article 12 versus Article 226

- A body may fail the Article 12 State test yet still perform a **public duty**.
- Article 226 can reach a non-State body for the public-law element of its work.
- [ANALYSIS] Therefore, "not State under Article 12" does not always mean "immune from writ jurisdiction."

UPSC trap: registration as a society or company neither automatically includes nor excludes a body from Article 12.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 12 looks through organisational form to the real governmental relationship. **Named evidence:** R.D. Shetty (1979); Ajay Hasia (1981); Pradeep Kumar Biswas (2002). **Analysis:** Cumulative control and public-function indicators prevent government from escaping rights duties through corporate form. **Qualification / link:** Regulatory control alone is not automatically deep and pervasive control, and Article 226 public-duty reach is a separate inquiry.

NAMED EVIDENCE

R.D. Shetty (1979); Ajay Hasia (1981); Pradeep Kumar Biswas (2002).

PRELIMS TRAP

A society or company is neither automatically State nor automatically outside Article 12.

MAINS USE

Use in questions on public corporations, universities, sports bodies or outsourced governance.

MINI RECAP

Substance controls Article 12; public duty separately controls Article 226 reach.

CLOSING RECALL FLOW - ARTICLE 12 - THE STATE AND THE INSTRUMENTALITY INQUIRY

START / CONCEPT: Article 12 - the State and the instrumentality inquiry

|

v

EXACT TERMS: Article 12 - the State · the instrumentality inquiry · CONTENT CLASSIFICATION · public duty · Article 12 · Article 226

|

v

MECHANISM / ARGUMENT: The later approach in *Pradeep Kumar Biswas (2002)* asks whether the body is financially, functionally and administratively dominated by or under government control of a pervasive character.

|

v

CONSEQUENCE / CONTRAST: Therefore, "not State under Article 12" does not always mean "immune from writ jurisdiction."

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: registration as a society or company neither automatically includes nor excludes a body from...

|

v

ANSWER-GRABBING FORMULATION: Article 12 looks beyond legal form to governmental domination: an entity may be State when its financial, functional and administrative relationship reveals pervasive governmental control, while Article 226 may separately reach a non-State body performing a public duty.

SESSION 5 - ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES

Stage: Foundation and gateway

VISUAL FIRST

ARTICLE 13 VOIDNESS GRID

pre-Constitution law -> inconsistency -> eclipse / void to extent
post-Constitution law -> prohibited abridgement -> void to extent
separable invalid part -> severability
individual consent -> no waiver of structural limit
constitutional amendment -> Article 368 + basic structure, not ordinary-law route

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 13(1): pre-Constitution laws are void to the extent of inconsistency with Fundamental Rights.

Technical definition: Article 13(2): the State shall not make law taking away or abridging Fundamental Rights; contravening law is void to the extent of contravention.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.

MUST-WRITE KEYWORDS

- Article 13 - law
- judicial review
- the voidness doctrines
- CONTENT CLASSIFICATION
- to the extent
- Test

How to use them: Frame the answer through Article 13 - law; define judicial review, connect the voidness doctrines with CONTENT CLASSIFICATION to explain the mechanism, and use to the extent for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 13): Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Article 13 defines law broadly, invalidates inconsistency to its extent, and operates through severability, eclipse, non-waiver and carefully used prospective overruling.

What "law" includes

[FACT] Article 13(3)(a) includes an ordinance, order, bye-law, rule, regulation, notification, custom or usage having in the territory of India the force of law.

Pre- and post-Constitution law

- Article 13(1): pre-Constitution laws are void **to the extent** of inconsistency with Fundamental Rights.
- Article 13(2): the State shall not make law taking away or abridging Fundamental Rights; contravening law is void to the extent of contravention.
- Article 13(3): defines law and laws in force.

- Article 13(4): inserted by the Twenty-fourth Amendment; Article 13 does not apply to constitutional amendments under Article 368.

Doctrine of severability

[FACT] If the invalid provision can be separated from the valid remainder without defeating the legislative scheme, only the offending portion falls. The phrase "to the extent of" supports limited invalidation.

Test: Can the remainder operate independently, and would the legislature have enacted it without the invalid part?

Doctrine of eclipse

[FACT] *Bhikaji Narain Dhakras* explains that a conflicting pre-Constitution law is not erased for all purposes; it lies dormant against the Fundamental Right and can revive if the constitutional shadow is removed.

[LIMIT] The classic eclipse rule chiefly concerns pre-Constitution law. A post-Constitution law made in direct violation of Article 13(2) is ordinarily void from inception to the extent of violation.

No waiver of Fundamental Rights

[FACT] *Basheshar Nath v. Commissioner of Income Tax* held that an individual cannot waive a Fundamental Right so as to validate unconstitutional State action. *Olga Tellis* later rejected estoppel against a Fundamental Right.

[ANALYSIS] Rights are structural limits on public power, not merely private benefits that the holder may bargain away.

Prospective overruling

[FACT] *I.C. Golaknath v. State of Punjab* used prospective overruling: it announced a rule for the future without unsettling past amendments. *Kesavananda Bharati (1973)* displaced Golaknath's amendment theory but retained the Indian court's capacity to calibrate temporal effect where justified.

Constitutional amendments and basic structure

Stage	Proposition
<i>Shankari Prasad / Sajjan Singh</i>	Constitutional amendment not ordinary "law" under Article 13.
<i>Golaknath (1967)</i>	Amendment treated as law; Parliament could not abridge FRs; applied prospectively.
Twenty-fourth Amendment	Expressly affirmed amendment power and added Article 13(4).
<i>Kesavananda Bharati (1973)</i>	Parliament may amend every Part, including FRs, but cannot damage basic structure.
<i>Minerva Mills (1980)</i>	Limited amending power and harmony between Parts III and IV are basic features.

[LIMIT] The complete amendment doctrine belongs to Polity 10. Here the exam rule is: ordinary law is tested under Article 13; constitutional amendment is tested under the basic-structure limitation.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 13 makes judicial review operational through a calibrated law-and-remedy structure. **Named evidence:** Articles 13(1)-(4); *Bhikaji Narain Dhakras (1955)*; *Basheshar Nath (1959)*; *Golaknath (1967)*; *Kesavananda Bharati (1973)*. **Analysis:** The phrase 'to the extent' avoids needless total invalidation while keeping unconstitutional State action unenforceable. **Qualification / link:** Classic eclipse chiefly concerns pre-Constitution law; Fundamental Rights qualifications still turn on the right's beneficiary language.

NAMED EVIDENCE

Articles 13(1)-(4); *Bhikaji Narain Dhakras (1955)*; *Basheshar Nath (1959)*; *Golaknath (1967)*; *Kesavananda Bharati (1973)*.

PRELIMS TRAP

Do not say every inconsistent enactment vanishes for every purpose or that a citizen can validate it by waiver.

MAINS USE

Use for judicial-review, severability, eclipse, waiver and amendment-boundary questions.

MINI RECAP

Article 13 separates law, time, extent of invalidity and amendment route.

CLOSING RECALL FLOW - ARTICLE 13 - LAW, JUDICIAL REVIEW AND THE VOIDNESS DOCTRINES

START / CONCEPT: Article 13 - law, judicial review and the voidness doctrines

|

v

EXACT TERMS: Article 13 - law · judicial review · the voidness doctrines · CONTENT CLASSIFICATION · to the extent · Test

|

v

MECHANISM / ARGUMENT: Article 13(4): inserted by the Twenty-fourth Amendment; Article 13 does not apply to constitutional amendments under Article 368.

|

v

CONSEQUENCE / CONTRAST: Article 13(2): the State shall not make law taking away or abridging Fundamental Rights; contravening law is void to the extent of contravention.

|

v

UPSC TRAP / ANSWER-USE: Bhikaji Narain Dhakras explains that a conflicting pre-Constitution law is not erased for all purposes; it lies dormant against the Fundamental Right and can revive if the constitutional shadow is removed.

|

v

ANSWER-GRABBING FORMULATION: Article 13 converts rights into judicially enforceable limits by defining law broadly and using severability, eclipse and non-waiver, while constitutional amendments are reviewed through Article 368 and the basic-structure boundary.

SESSION 6 - RIGHT TO PROPERTY TRANSITION AND THE NON-DEROGABLE EMERGENCY CORE

Stage: Foundation and gateway

VISUAL FIRST

PROPERTY / EMERGENCY BOUNDARY

before 44th Amendment -> Articles 19(1)(f) and 31 in Part III

after 44th Amendment -> Article 300A in Part XII

constitutional right for every person

Article 359 after 44th -> Articles 20 and 21 can never be placed in the enforcement-suspension order

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 300A is a constitutional right, though not a Fundamental Right.

Technical definition: Calling property merely a "legal right" is incomplete.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 300A is a constitutional right, though not a Fundamental Right.

MUST-WRITE KEYWORDS

- Right to property transition
- the non-derogable Emergency core
- CONTENT CLASSIFICATION
- constitutional right
- Rapid recall
- Location

How to use them: Frame the answer through Right to property transition; define the non-derogable Emergency core, connect CONTENT CLASSIFICATION with constitutional right to explain the mechanism, and use Rapid recall for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (PROPERTY / EMERGENCY CORE): The Forty-fourth Amendment moved property from Part III to the constitutional guarantee in Article 300A and made Articles 20 and 21 non-derogable from an Article 359 enforcement order.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

[FACT] Article 31 originally protected property as a Fundamental Right. The Forty-fourth Amendment removed Article 31 and Article 19(1)(f). Article 300A now provides: no person shall be deprived of property save by authority of law.

Feature	Former Fundamental Right	Present Article 300A position
Location	Part III	Part XII
Beneficiary	citizen/property framework	every person
Direct Article 32 claim	available when Article 31/19 engaged	not merely because Article 300A is violated; ordinarily Article 226/ordinary remedies
Standard	Fundamental Rights scrutiny	authority of valid law; non-arbitrariness and public-law limits still matter

[LIMIT] Calling property merely a "legal right" is incomplete. Article 300A is a **constitutional right**, though not a Fundamental Right.

[FACT] The Forty-fourth Amendment also entrenched an Emergency lesson: a Presidential order under Article 359 cannot suspend the right to move a court for enforcement of Articles 20 and 21.

Rapid recall: property moved out of Part III; criminal safeguards and life/personal liberty became non-derogable under Article 359.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: The Forty-fourth Amendment both relocated property and strengthened the non-derogable liberty core. **Named evidence:** Constitution (Forty-fourth Amendment) Act, 1978; Articles 300A and 359(1). **Analysis:** Property remains protected by authority-of-law and public-law controls without retaining direct Fundamental-Right status. **Qualification / link:** Detailed Emergency procedure belongs to Topic 14; this topic retains only the Part III effect needed for rights analysis.

NAMED EVIDENCE

Constitution (Forty-fourth Amendment) Act, 1978; Articles 300A and 359(1).

PRELIMS TRAP

Article 300A is a constitutional right for persons, not a citizen-only Fundamental Right.

MAINS USE

Use as the boundary paragraph in property, emergency-enforcement and post-1978 rights answers.

MINI RECAP

Property moved out; Articles 20 and 21 became non-suspendable under Article 359.

CLOSING RECALL FLOW - RIGHT TO PROPERTY TRANSITION AND THE NON-DEROGABLE EMERGENCY CORE

START / CONCEPT: Right to property transition and the non-derogable Emergency core

|
v

EXACT TERMS: Right to property transition · the non-derogable Emergency core · CONTENT

CLASSIFICATION · constitutional right · Rapid recall · Location

|
v

MECHANISM / ARGUMENT: Article 300A now provides: no person shall be deprived of property save by authority of law.

|
v

CONSEQUENCE / CONTRAST: Rapid recall: property moved out of Part III; criminal safeguards and life/personal liberty became non-derogable under Article 359.

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: calling property merely a "legal right" is incomplete.

|
v

ANSWER-GRABBING FORMULATION: Article 300A is a constitutional right, though not a Fundamental Right.

SESSION 7 - ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS

Stage: Core I - equality

VISUAL FIRST

ARTICLE 14

equality before law -> no special privilege

equal protection -> like treatment in like circumstances

classification -> intelligible differentia + rational nexus

anti-arbitrariness -> capricious State action fails even beyond a neat comparator

substantive equality -> context may require differentiated support

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

Technical definition: Intelligible differentia: the included group must be distinguishable from the excluded group.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

MUST-WRITE KEYWORDS

- Article 14 - twin equality
- anti-arbitrariness
- CONTENT CLASSIFICATION
- class legislation
- Intelligible differentia
- Rational nexus

How to use them: Frame the answer through Article 14 - twin equality; define anti-arbitrariness, connect CONTENT CLASSIFICATION with class legislation to explain the mechanism, and use Intelligible differentia for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 14): Article 14 combines equality before law with equal protection: it permits reasonable classification only through intelligible differentia and rational nexus, and independently invalidates arbitrary State action.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Articles 14-18 form a code against privilege, exclusion, caste hierarchy and artificial rank, while permitting carefully designed substantive equality.

Twin concepts

Concept	Source	Nature	Meaning
Equality before law	British rule-of-law tradition	negative	no special privilege; equal subjection to ordinary law
Equal protection of laws	US Fourteenth Amendment influence	positive	like cases treated alike; State may differentiate to correct relevant differences

[FACT] Article 14 protects every person. It forbids **class legislation**, not all classification.

Reasonable classification test

1. **Intelligible differentia:** the included group must be distinguishable from the excluded group.
2. **Rational nexus:** the differentia must relate to the law's object.

[LIMIT] The classification cannot be artificial, evasive or unrelated. The object itself must be constitutionally legitimate.

From classification to arbitrariness

- *E.P. Royappa (1973)* treated equality and arbitrariness as sworn enemies.
- *Maneka Gandhi (1978)* linked Articles 14, 19 and 21 and required non-arbitrary, fair procedure.
- *Ajay Hasia* reinforced that arbitrary State action violates Article 14.
- *Shayara Bano* used manifest arbitrariness in reviewing legislation.

[ANALYSIS] A high-scoring answer does not abandon classification for arbitrariness. It uses both:

classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

Constitutional exceptions and immunities

- President and Governors receive specified immunities under Article 361.
- Legislative speech and votes receive privileges under Articles 105 and 194.
- Foreign sovereigns/diplomats and international organisations may possess recognised immunities.
- [LIMIT] These are constitutionally or legally structured immunities, not proof that rule of law is absent.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 14 combines formal equality, reasonable classification and a wider anti-arbitrariness rule. **Named evidence:** *E.P. Royappa (1974)*; *Maneka Gandhi (1978)*; *Shayara Bano (2017)*. **Analysis:** Classification tests whether differentiation is justified; arbitrariness tests whether public power is reasoned and non-capricious. **Qualification / link:** Equal protection does not require identical treatment of materially different situations.

NAMED EVIDENCE

E.P. Royappa (1974); *Maneka Gandhi (1978)*; *Shayara Bano (2017)*.

PRELIMS TRAP

An intelligible differentia without a rational nexus still fails Article 14.

MAINS USE

Use as the doctrinal core for equality, discretion and manifest-arbitrariness answers.

MINI RECAP

Similarity, difference, objective and reasoned power must all be tested.

CLOSING RECALL FLOW - ARTICLE 14 - TWIN EQUALITY, CLASSIFICATION AND ANTI-ARBITRARINESS

START / CONCEPT: Article 14 - twin equality, classification and anti-arbitrariness

|

v

EXACT TERMS: Article 14 - twin equality · anti-arbitrariness · CONTENT CLASSIFICATION · class legislation · Intelligible differentia · Rational nexus

|

v

MECHANISM / ARGUMENT: Intelligible differentia: the included group must be distinguishable from the excluded group.

|

v

CONSEQUENCE / CONTRAST: These are constitutionally or legally structured immunities, not proof that rule of law is absent.

|

v

UPSC TRAP / ANSWER-USE: A high-scoring answer does not abandon classification for arbitrariness.

|

v

ANSWER-GRABBING FORMULATION: classification tests the structure of differentiation; arbitrariness tests irrational, capricious or disproportionate State power even where a neat class is difficult to identify.

SESSION 8 - ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION

Stage: Core I - equality

VISUAL FIRST

ARTICLES 15-16 CLAUSE MAP

15(1) prohibited grounds	16(1)-(2) public-employment equality
15(2) specified private access	16(3) Parliament-made residence rule
15(3) women/children	16(4) backward class + inadequate representation
15(4)-(5) SEBC/SC/ST education	16(4A)/(4B) promotion/backlog
15(6) EWS education	16(6) EWS appointments

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 15(4) and 16(4) are not grudging exceptions to equality.

Technical definition: Article 15(4) followed State of Madras v.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 15(4) and 16(4) are not grudging exceptions to equality.

MUST-WRITE KEYWORDS

- **Articles 15**
- **protective discrimination**
- **CONTENT CLASSIFICATION**
- **only**
- **special provisions for women and children**
- **16 - non-discrimination**

How to use them: Frame the answer through Articles 15; define protective discrimination, connect CONTENT CLASSIFICATION with only to explain the mechanism, and use special provisions for women and children for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 15-16): Articles 15 and 16 move equality from non-discrimination to substantive opportunity by prohibiting exact grounds yet authorising carefully targeted special provisions and reservation through distinct enabling clauses.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 15

[FACT] Article 15(1) bars the State from discriminating against a citizen on grounds **only** of religion, race, caste, sex, place of birth or any of them.

[FACT] Article 15(2) prevents a citizen, on those grounds only, from being subjected to disability in access to:

- shops, public restaurants, hotels and places of public entertainment; and
- wells, tanks, bathing ghats, roads and places of public resort maintained wholly/partly from State funds or dedicated to public use.

This clause has direct horizontal force.

Enabling clauses under Article 15

Clause	Constitutional purpose
15(3)	special provisions for women and children
15(4)	advancement of socially and educationally backward classes, SCs and STs
15(5)	admission-related special provisions in educational institutions, including private aided/unaided institutions, excluding Article 30(1) minority institutions
15(6)	EWS special provisions, including reservation up to 10 per cent, for classes outside 15(4)/(5) coverage

[FACT] Article 15(4) followed *Champakam Dorairajan (1951)* and the First Amendment. Article 15(5) came through the Ninety-third Amendment. Article 15(6) came through the 103rd Amendment.

Article 16

[FACT] Article 16(1) guarantees equality of opportunity to citizens in public employment. Article 16(2) bars discrimination on religion, race, caste, sex, descent, place of birth, residence or any of them.

Clause	Function
16(3)	Parliament may prescribe residence requirements for specified employment
16(4)	enables reservation for a backward class inadequately represented in State services
16(4A)	enables promotion reservation with consequential seniority for SCs/STs, subject to doctrine
16(4B)	allows unfilled reserved vacancies to be treated as a separate class for carry-forward
16(5)	permits religion-linked office requirements in a religious/denominational institution
16(6)	enables EWS reservation up to 10 per cent outside existing reserved classes

[ANALYSIS] Articles 15(4) and 16(4) are not grudging exceptions to equality. They are textual methods of substantive equality. Yet they remain enabling powers, not an individual Fundamental Right to demand reservation in every setting.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 15 and 16 move from anti-discrimination to clause-specific substantive-equality tools. **Named evidence:** Champakam Dorairajan (1951); First, Ninety-third and 103rd Amendments; Articles 15(2)-(6) and 16(3)-(6). **Analysis:** Each enabling clause has its own beneficiary, field and exception, so reservation cannot be treated as one undifferentiated power. **Qualification / link:** Article 15(5) excludes Article 30(1) minority institutions, and Article 16(4) is enabling rather than an individual right to reservation.

NAMED EVIDENCE

Champakam Dorairajan (1951); First, Ninety-third and 103rd Amendments; Articles 15(2)-(6) and 16(3)-(6).

PRELIMS TRAP

Do not import Article 16(3)'s parliamentary residence power into a State executive order.

MAINS USE

Use to structure affirmative-action answers clause by clause before discussing cases.

MINI RECAP

Prohibited grounds and enabling clauses coexist but remain textually distinct.

CLOSING RECALL FLOW - ARTICLES 15 AND 16 - NON-DISCRIMINATION AND PROTECTIVE DISCRIMINATION

START / CONCEPT: Articles 15 and 16 - non-discrimination and protective discrimination

|

v

EXACT TERMS: Articles 15 · protective discrimination · CONTENT CLASSIFICATION · only · special provisions for women and children · 16 - non-discrimination

|

v

MECHANISM / ARGUMENT: Article 15(4) followed State of Madras v.

|

v

CONSEQUENCE / CONTRAST: shops, public restaurants, hotels and places of public entertainment; and wells, tanks, bathing ghats, roads and places of public resort maintained wholly/partly from State funds or dedicated to public use.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: this clause has direct horizontal force.

|

v

ANSWER-GRABBING FORMULATION: Articles 15(4) and 16(4) are not grudging exceptions to equality.

SESSION 9 - RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC SUB-CLASSIFICATION

Stage: Core I - equality

VISUAL FIRST

RESERVATION CONTROL TIMELINE

Indra Sawhney 1992 -> creamy layer; ordinary 50% ceiling; no 16(4) promotion

77th / 81st / 82nd / 85th -> promotion, backlog, standards, seniority

M. Nagaraj 2006 -> data + inadequacy + efficiency

Jarnail Singh 2018 -> no fresh SC/ST backwardness proof; other controls remain

103rd + Janhit 2022 -> EWS upheld 3:2

Davinder Singh 2024 -> evidence-based SC sub-classification permitted

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

Technical definition: Efficiency is not a veto owned by the unreserved category.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

MUST-WRITE KEYWORDS

- Reservation doctrine
- creamy layer
- ceiling
- promotion
- efficiency
- EWS

How to use them: Frame the answer through Reservation doctrine; define creamy layer, connect ceiling with promotion to explain the mechanism, and use efficiency for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (RESERVATION CONTROL): Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Reservation doctrine is a timeline of constitutional amendments and judicial controls, culminating in the 2024 permission for evidence-based SC sub-classification.

Indra Sawhney (1992)

[FACT] The nine-judge decision:

- upheld 27 per cent OBC reservation;
- required exclusion of the OBC creamy layer;
- treated the 50 per cent ceiling as the ordinary constitutional rule, with extraordinary situations narrowly conceived;
- held that Article 16(4) did not authorise reservation in promotion; and
- accepted sub-classification among backward classes where rationally designed.

[LIMIT] "Fifty per cent can never be crossed" is too absolute. The case described an ordinary ceiling with exceptional-space language; later constitutional amendments and EWS doctrine require precise treatment.

Promotion amendments and doctrine

- 77th Amendment: Article 16(4A), promotion reservation for SCs/STs.
- 81st Amendment: Article 16(4B), backlog vacancies as a separate class.
- 82nd Amendment: proviso to Article 335 permitting relaxation in qualifying marks/standards for SC/ST promotion reservation.
- 85th Amendment: consequential seniority.
- *M. Nagaraj (2006)* upheld the amendments but required constitutional discipline, including quantifiable data on inadequate representation and attention to Article 335.
- *Jarnail Singh (2018)* removed the requirement that the State prove backwardness of SCs/STs afresh, while retaining data-based inadequacy and efficiency controls.

Creamy layer

- [FACT] The settled Indra Sawhney (1992) creamy-layer rule directly concerns OBC reservation.
- [LIMIT] Do not automatically state that a single identical creamy-layer rule now governs every SC/ST reservation context. Concurring opinions and later debates must not be converted into a universal holding.

Article 335 and efficiency

[FACT] Claims of SCs/STs in services must be considered consistently with maintaining administrative efficiency. The proviso permits relaxation in qualifying marks or evaluation standards for specified promotion-reservation purposes.

[ANALYSIS] Efficiency is not a veto owned by the unreserved category. A constitutional answer should ask how representative administration, competence, training and fair standards interact.

EWS

[FACT] The 103rd Amendment inserted Articles 15(6) and 16(6). In *Janhit Abhiyan (2022) v. Union of India (2022)*, a majority upheld:

- economic criteria as a basis for the EWS class;
- exclusion of classes already covered by SC/ST/OBC reservation; and
- the additional 10 per cent design against a basic-structure challenge.

[LIMIT] The decision was by majority, not unanimity.

Davinder Singh (2024)

[CURRENT] A seven-judge Bench overruled the bar created by *E.V. Chinnaiah* and held that States may sub-classify Scheduled Castes for distributing reservation benefits more effectively.

Exam-safe propositions:

1. sub-classification is **permitted**, not constitutionally mandated;
2. it cannot alter the Presidential List under Article 341;
3. it must rest on evidence of differential disadvantage/representation rather than political assertion;
4. a State cannot reserve the entire benefit for one sub-class and exclude the rest; and
5. judicial review remains available.

[LIMIT] The judgment does not authorise a State to add or delete castes from the Scheduled Castes list.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Reservation doctrine treats substantive equality as constitutionally authorised but evidentially and institutionally controlled. **Named evidence:** Indra Sawhney (1992); M. Nagaraj (2006); Jarnail Singh (2018); Janhit Abhiyan (2022); Davinder Singh (2024); Article 335. **Analysis:** Representation, creamy-layer exclusion, promotion data and efficiency prevent an enabling power from becoming unreviewable arithmetic. **Qualification / link:** The 50 per cent principle is an ordinary doctrinal ceiling with recognised exceptional and text-specific qualifications, not a universal mathematical command.

NAMED EVIDENCE

Indra Sawhney (1992); M. Nagaraj (2006); Jarnail Singh (2018); Janhit Abhiyan (2022); Davinder Singh (2024); Article 335.

PRELIMS TRAP

Do not describe Article 335 as a complete veto or say every reservation exceeding 50 per cent is automatically void.

MAINS USE

Use for reservation, promotion, EWS and sub-classification questions.

MINI RECAP

Target, evidence, ceiling, efficiency and review are separate controls.

CLOSING RECALL FLOW - RESERVATION DOCTRINE: CREAMY LAYER, CEILING, PROMOTION, EFFICIENCY, EWS AND SC SUB-CLASSIFICATION

START / CONCEPT: Reservation doctrine: creamy layer, ceiling, promotion, efficiency, EWS and SC sub-classification

|
v

EXACT TERMS: Reservation doctrine · creamy layer · ceiling · promotion · efficiency · EWS

|
v

MECHANISM / ARGUMENT: Efficiency is not a veto owned by the unreserved category.

|
v

CONSEQUENCE / CONTRAST: Jarnail Singh (2018) removed the requirement that the State prove backwardness of SCs/STs afresh, while retaining data-based inadequacy and efficiency controls.

|
v

UPSC TRAP / ANSWER-USE: Do not automatically state that a single identical creamy-layer rule now governs every SC/ST reservation context.

|
v

ANSWER-GRABBING FORMULATION: Reservation is a technique of substantive equality, but its design remains evidence-based, reviewable and attentive to creamy-layer exclusion, representation, promotion conditions, backlog treatment, EWS text and administrative efficiency.

SESSION 10 - ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES

Stage: Core I - equality

VISUAL FIRST

ANTI-HIERARCHY PAIR

ARTICLE 17 -> untouchability abolished in any form
direct private reach + penal enforcement

ARTICLE 18 -> titles prohibited
military/academic distinctions allowed
national awards valid if not used as prefixes/suffixes

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

Technical definition: Article 17 is transformative: it does not merely restrain government classification; it constitutionally abolishes a social hierarchy and requires public enforcement.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

MUST-WRITE KEYWORDS

- Articles 17
- anti-title guarantees
- CONTENT CLASSIFICATION
- Article 17
- Article 18
- 18 - anti-untouchability

How to use them: Frame the answer through Articles 17; define anti-title guarantees, connect CONTENT CLASSIFICATION with Article 17 to explain the mechanism, and use Article 18 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 17-18): Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 17

[FACT] Untouchability is abolished; its practice in any form is forbidden; enforcement of any disability arising from it is an offence punishable by law.

- It is absolute in text and operates against private persons.
- The Protection of Civil Rights Act, 1955 penalises untouchability disabilities.
- The Scheduled Castes and Scheduled Tribes (Prevention of Atrocities) Act, 1989 addresses specified caste atrocities.
- [LIMIT] "Untouchability" is understood in its historical caste-based constitutional sense, not every form of social avoidance.

[ANALYSIS] Article 17 is transformative: it does not merely restrain government classification; it constitutionally abolishes a social hierarchy and requires public enforcement.

Article 18

Clause	Rule
18(1)	State shall not confer titles except military or academic distinctions
18(2)	citizen shall not accept a title from a foreign State
18(3)	non-citizen holding office of profit/trust under State requires President's consent to accept foreign title
18(4)	office-holder requires President's consent for present, emolument or office from foreign State

[FACT] *Balaji Raghavan v. Union of India* (1996) held that Bharat Ratna and Padma awards are not prohibited titles, but they cannot be used as prefixes or suffixes.

UPSC trap: Article 17 belongs to the Right to Equality, not the Right against Exploitation.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 17 and 18 attack inherited civic hierarchy through direct abolition and symbolic equality. **Named evidence:** Protection of Civil Rights Act, 1955; SC/ST (Prevention of Atrocities) Act, 1989; *Balaji Raghavan* (1996). **Analysis:** Article 17 transforms private caste relations, while Article 18 prevents the State from recreating formal ranks of civic superiority. **Qualification / link:** Constitutional untouchability bears its historical caste meaning; not every social avoidance falls within Article 17.

NAMED EVIDENCE

Protection of Civil Rights Act, 1955; SC/ST (Prevention of Atrocities) Act, 1989; *Balaji Raghavan* (1996).

PRELIMS TRAP

Untouchability belongs to the Right to Equality, not the Right against Exploitation.

MAINS USE

Use in anti-caste constitutionalism, social transformation and national-awards questions.

MINI RECAP

Article 17 dismantles caste disability; Article 18 rejects artificial civic rank.

CLOSING RECALL FLOW - ARTICLES 17 AND 18 - ANTI-UNTOUCHABILITY AND ANTI-TITLE GUARANTEES

START / CONCEPT: Articles 17 and 18 - anti-untouchability and anti-title guarantees

|

v

EXACT TERMS: Articles 17 · anti-title guarantees · CONTENT CLASSIFICATION · Article 17 · Article 18
· 18 - anti-untouchability

|

v

MECHANISM / ARGUMENT: Untouchability is abolished; its practice in any form is forbidden; enforcement of any disability arising from it is an offence punishable by law.

|

v

CONSEQUENCE / CONTRAST: Article 17 is transformative: it does not merely restrain government classification; it constitutionally abolishes a social hierarchy and requires public enforcement.

|

v

UPSC TRAP / ANSWER-USE: "Untouchability" is understood in its historical caste-based constitutional sense, not every form of social avoidance.

|

v

ANSWER-GRABBING FORMULATION: Articles 17 and 18 attack inherited civic hierarchy horizontally and symbolically: untouchability is abolished and punishable, while titles are prohibited without invalidating military, academic or properly used national distinctions.

SESSION 11 - ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS

Stage: Core II - freedom and liberty

VISUAL FIRST

ARTICLE 19 SIX FREEDOMS - CITIZENS ONLY

speech 19(1)(a) -> 19(2)

peaceful assembly (b)-> 19(3)

association (c) -> 19(4)

movement (d) -> 19(5)

residence (e) -> 19(5)

profession/trade (g) -> 19(6)

RULE: grounds are clause-specific, closed and reviewable

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

Technical definition: "Offensiveness", administrative convenience or vague hurt sentiment is not an independent Article 19(2) ground.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

MUST-WRITE KEYWORDS

- **Article 19 - six freedoms**
- **exact restriction grounds**
- **CONTENT CLASSIFICATION**
- **within India**
- **Speech**
- **Assembly**

How to use them: Frame the answer through Article 19 - six freedoms; define exact restriction grounds, connect CONTENT CLASSIFICATION with within India to explain the mechanism, and use Speech for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 19): Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Each Article 19 freedom has a matching restriction clause. The grounds are not interchangeable.

The six freedoms

1. Article 19(1)(a): speech and expression.
2. Article 19(1)(b): assemble peaceably and without arms.
3. Article 19(1)(c): form associations or unions or co-operative societies.
4. Article 19(1)(d): move freely throughout India.
5. Article 19(1)(e): reside and settle in any part of India.
6. Article 19(1)(g): practise any profession or carry on any occupation, trade or business.

Exact grounds

Freedom	Restriction clause	Exact constitutional grounds
Speech	19(2)	sovereignty and integrity of India; security of State; friendly relations with foreign States; public order; decency or morality; contempt of court; defamation; incitement to an offence
Assembly	19(3)	sovereignty and integrity of India; public order
Association	19(4)	sovereignty and integrity of India; public order; morality
Movement/residence	19(5)	interests of general public; protection of interests of any Scheduled Tribe
Profession/trade	19(6)	interests of general public; professional/technical qualifications; State monopoly

[FACT] The restrictions must be imposed by law and be reasonable. "Offensiveness", administrative convenience or vague hurt sentiment is not an independent Article 19(2) ground.

Internal movement, residence and travel abroad

- Articles 19(1)(d) and (e) concern movement/residence **within India**.
- Travel abroad is protected through personal liberty under Article 21 after *Maneka Gandhi (1978)*.
- Article 19(5) expressly recognises protection of Scheduled Tribe interests.

Assembly and association cautions

- Assembly must be peaceful and unarmed.
- There is no Fundamental Right to strike.
- The right to form an association does not automatically include a right to government recognition or to achieve every object of the association.

Profession and trade

- Reasonable licensing, qualifications and health/safety regulation can be valid.
- The State may create a monopoly under Article 19(6).
- No Fundamental Right protects an inherently harmful or legally prohibited trade as though it were an ordinary occupation.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 19 protects six citizen freedoms through exact pairing between each freedom and its restriction clause.

Named evidence: Articles 19(1)(a)-(g) and 19(2)-(6); Maneka Gandhi (1978). **Analysis:** Clause discipline prevents government from justifying one freedom's restriction with a ground belonging only to another. **Qualification / link:** Foreign travel is an Article 21 liberty issue; internal movement and residence fall under Article 19(1)(d)-(e).

NAMED EVIDENCE

Articles 19(1)(a)-(g) and 19(2)-(6); Maneka Gandhi (1978).

PRELIMS TRAP

Friendly relations and contempt restrict speech, not movement, residence or profession.

MAINS USE

Use as the opening matrix in any Article 19 answer.

MINI RECAP

Name the freedom, the matching clause and the exact ground before testing reasonableness.

CLOSING RECALL FLOW - ARTICLE 19 - SIX FREEDOMS AND EXACT RESTRICTION GROUNDS

START / CONCEPT: Article 19 - six freedoms and exact restriction grounds

|

v

EXACT TERMS: Article 19 - six freedoms · exact restriction grounds · CONTENT CLASSIFICATION ·
within India · Speech · Assembly

|

v

MECHANISM / ARGUMENT: The restrictions must be imposed by law and be reasonable.

|

v

CONSEQUENCE / CONTRAST: "Offensiveness", administrative convenience or vague hurt sentiment is not an independent Article 19(2) ground.

|

v

UPSC TRAP / ANSWER-USE: The right to form an association does not automatically include a right to government recognition or to achieve every object of the association.

|

v

ANSWER-GRABBING FORMULATION: Article 19 protects six citizen freedoms through clause-specific discipline: the State must identify the exact restriction clause and closed ground, after which reasonableness and proportionality test the means.

SESSION 12 - SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT

Stage: Core II - freedom and liberty

VISUAL FIRST

SPEECH SETTLEMENT

Romesh Thappar / Brij Bhushan 1950 -> narrow original grounds

First Amendment 1951 -> reasonable + public order + friendly relations + incitement

Sixteenth Amendment 1963 -> sovereignty and integrity

press freedom -> derived from Article 19(1)(a)

right to know -> democratic speech; Electoral Bonds 2024 application

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: State of Madras (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).

Technical definition: Freedom of the press is derived from Article 19(1)(a).

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

State of Madras (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).

MUST-WRITE KEYWORDS

- **Speech**
- **press**
- **right to know**
- **the First Amendment settlement**
- **reasonable**
- **Article 19**

How to use them: Frame the answer through Speech; define press, connect right to know with the First Amendment settlement to explain the mechanism, and use reasonable for the decisive comparison or qualification.

Visual takeaway: Free-speech doctrine moved from the 1950 press cases to reasonableness, incitement, digital safeguards and a differently drafted successor criminal provision.

Press and circulation

[FACT] There is no separate press Article. Freedom of the press is derived from Article 19(1)(a).

- *Romesh Thappar v. State of Madras* (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).
- *Brij Bhushan v. State of Delhi* (1950): pre-censorship order failed under the original text.
- [LIMIT] These cases pre-date the First Amendment. Do not quote them as if present Article 19(2) lacked "public order."

First Amendment, 1951

[FACT] It:

- inserted the word **reasonable** before restrictions;
- added public order, friendly relations with foreign States and incitement to an offence; and
- responded to the 1950 decisions.

[FACT] "Sovereignty and integrity of India" came through the Sixteenth Amendment, 1963, not the First Amendment.

[ANALYSIS] The First Amendment both widened the State's grounds and strengthened judicial control through the reasonableness requirement.

Right to know

[FACT] The right to receive information necessary for democratic choice has been read into Article 19(1)(a).

Candidate-disclosure cases and the Right to Information framework build on this democratic-speech logic.

[CURRENT] In the Electoral Bonds judgment (15 February 2024), the Supreme Court held that non-disclosure of political funding violated the voter's right to information. The Court also invalidated the unlimited-corporate-contribution change as manifestly arbitrary.

[ANALYSIS] The case links three constitutional ideas:

information -> informed voting -> political equality and accountable government.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Indian free-speech law developed through a closed constitutional list rather than an undefined public-interest exception. **Named evidence:** Romesh Thappar (1950); Brij Bhushan (1950); First and Sixteenth Amendments; Electoral Bonds judgment (2024). **Analysis:** Press circulation and political-funding information matter because citizens require information to speak and vote meaningfully. **Qualification / link:** The First Amendment did not add sovereignty and integrity; that phrase came through the Sixteenth Amendment.

NAMED EVIDENCE

Romesh Thappar (1950); Brij Bhushan (1950); First and Sixteenth Amendments; Electoral Bonds judgment (2024).

PRELIMS TRAP

Do not describe press freedom as a separately numbered Fundamental Right.

MAINS USE

Use in historical evolution, press freedom and right-to-information answers.

MINI RECAP

Speech is textually limited, but every added ground has a specific constitutional history.

CLOSING RECALL FLOW - SPEECH, PRESS, RIGHT TO KNOW AND THE FIRST AMENDMENT SETTLEMENT

START / CONCEPT: Speech, press, right to know and the First Amendment settlement

|

v

EXACT TERMS: Speech · press · right to know · the First Amendment settlement · reasonable · Article 19

|

v

MECHANISM / ARGUMENT: The First Amendment both widened the State's grounds and strengthened judicial control through the reasonableness requirement.

|

v

CONSEQUENCE / CONTRAST: Do not quote them as if present Article 19(2) lacked "public order.".

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: the right to receive information necessary for democratic choice has been read into Article...

|

v

ANSWER-GRABBING FORMULATION: State of Madras (1950): circulation is part of speech; the ban failed under the original narrow Article 19(2).

SESSION 13 - SEDITION LINEAGE, BNS SECTION 152 AND SPEECH-INCITEMENT DISCIPLINE

Stage: Core II - freedom and liberty

VISUAL FIRST

SPEECH - SECURITY LINE

Kedar Nath Singh 1962 -> old section 124A upheld through incitement/public-disorder reading
Vombatkere 2022/2023 -> interim abeyance and referral history
BNS section 152 from 1 July 2024 -> different ingredients and protected objects
28 August 2025 -> Supreme Court notice on vires
7 September 2026 -> no located final merits decision

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: [CURRENT] BNS section 152 targets purposeful/knowing acts through words, signs, visible representation, electronic communication, financial means or otherwise that.

Technical definition: "sedition was simply renamed" is inaccurate; and "all sedition-type criminalisation disappeared" is also inaccurate.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

"sedition was simply renamed" is inaccurate; and "all sedition-type criminalisation disappeared" is also inaccurate.

MUST-WRITE KEYWORDS

- Sedition lineage
- BNS section 152
- speech-incitement discipline
- not
- Article 19
- The Supreme Court

How to use them: Frame the answer through Sedition lineage; define BNS section 152, connect speech-incitement discipline with not to explain the mechanism, and use Article 19 for the decisive comparison or qualification.

Kedar Nath Singh (1962)

[FACT] The Supreme Court upheld IPC section 124A only by reading it down to speech involving incitement to violence or a tendency/intention to create public disorder. Strong criticism of government, without that connection, was protected.

[LIMIT] The case did **not** strike down section 124A.

S.G. Vombatkere

[FACT] On 11 May 2022, the Supreme Court placed use of IPC section 124A in abeyance while reconsideration occurred. On 12 September 2023, the constitutional challenge was directed to a Bench of at least five judges.

[CURRENT] The Supreme Court's official order in Abhisar Sharma v. Union of India, 28 August 2025, issued notice only on the vires of BNS Section 152 and tagged the matter with W.P.(C) No. 720/2025. A bounded official-domain search through 7 September 2026 located no final merits disposition. The IPC has meanwhile been repealed for new offences under the new criminal-code framework.

Bharatiya Nyaya Sanhita section 152

[CURRENT] BNS section 152 targets purposeful/knowing acts through words, signs, visible representation, electronic communication, financial means or otherwise that:

- excite or attempt to excite secession;
- excite armed rebellion or subversive activities;
- encourage feelings of separatist activities; or
- endanger India's sovereignty, unity and integrity.

[LIMIT] It differs from IPC section 124A's language of hatred, contempt or disaffection toward government established by law. Therefore:

- "sedition was simply renamed" is inaccurate; and

- "all sedition-type criminalisation disappeared" is also inaccurate.

[ANALYSIS] Any constitutional answer should still test legality, precision, overbreadth, incitement/public-order connection and proportionality under Article 19(2).

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Security-speech analysis must distinguish the old sedition provision, its judicial reading and BNS section 152's different text. **Named evidence:** Kedar Nath Singh (1962); S.G. Vombatkere orders; BNS section 152; Supreme Court notice order dated 28 August 2025. **Analysis:** Incitement, proximity and exact statutory ingredients matter more than labels such as sedition or anti-national speech. **Qualification / link:** A pending constitutional challenge is not a holding of invalidity, and the successor provision is not accurately described as a mere renumbering.

NAMED EVIDENCE

Kedar Nath Singh (1962); S.G. Vombatkere orders; BNS section 152; Supreme Court notice order dated 28 August 2025.

PRELIMS TRAP

Do not report section 152 as finally upheld or struck down.

MAINS USE

Use in speech-security, chilling-effect and criminal-law transition answers.

MINI RECAP

Separate old law, interim orders, new text and present litigation status.

CLOSING RECALL FLOW - SEDITION LINEAGE, BNS SECTION 152 AND SPEECH-INCITEMENT DISCIPLINE

START / CONCEPT: Sedition lineage, BNS section 152 and speech-incitement discipline

|

v

EXACT TERMS: Sedition lineage · BNS section 152 · speech-incitement discipline · not · Article 19 · The Supreme Court

|

v

MECHANISM / ARGUMENT: The Supreme Court upheld IPC section 124A only by reading it down to speech involving incitement to violence or a tendency/intention to create public disorder.

|

v

CONSEQUENCE / CONTRAST: [CURRENT] BNS section 152 targets purposeful/knowing acts through words, signs, visible representation, electronic communication, financial means or otherwise that.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: any constitutional answer should still test legality, precision, overbreadth, incitement/public-order connection and proportionality under...

|

v

ANSWER-GRABBING FORMULATION: "sedition was simply renamed" is inaccurate; and "all sedition-type criminalisation disappeared" is also inaccurate.

SESSION 14 - DIGITAL SPEECH: SHREYA SINGHAL (2015), INTERNET SHUTDOWNS AND CRIMINAL DEFAMATION

Stage: Core II - freedom and liberty

VISUAL FIRST

DIGITAL SPEECH

Shreya Singhal 2015 -> section 66A void; 69A upheld with safeguards; 79 read down

Anuradha Bhasin 2020 -> speech/trade through internet protected

publication + proportionality + review

indefinite suspension impermissible

Internet = medium of protected freedoms, not a standalone holding

Criminal defamation -> upheld; reputation has Article 21 weight

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: [CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

Technical definition: Technically, Digital speech: Shreya Singhal (2015), internet shutdowns and criminal defamation is analysed by relating Digital speech to Shreya Singhal (2015), then testing the relationship through internet shutdowns and criminal defamation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

[CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

MUST-WRITE KEYWORDS

- Digital speech
- Shreya Singhal (2015)
- internet shutdowns
- criminal defamation
- through
- Article 19

How to use them: Frame the answer through Digital speech; define Shreya Singhal (2015), connect internet shutdowns with criminal defamation to explain the mechanism, and use through for the decisive comparison or qualification.

Shreya Singhal (2015)

[FACT] The Court:

- struck down IT Act section 66A for vagueness and overbreadth;
- distinguished protected discussion and advocacy from punishable incitement;
- upheld section 69A blocking power because of its structured safeguards; and
- read down intermediary liability under section 79 so "actual knowledge" was tied to court/government process.

Trap: *Shreya Singhal (2015)* did not strike down all blocking powers and did not declare the internet itself a Fundamental Right.

Anuradha Bhasin (2020)

[FACT] Speech under Article 19(1)(a) and trade under Article 19(1)(g), when conducted through the internet, remain constitutionally protected. The Court required:

- publication of restriction orders;
- proportionality review;
- periodic review;
- rejection of indefinite suspension; and
- careful use of section 144-type powers.

[LIMIT] The Court protected freedoms exercised **through** the internet; it did not pronounce a freestanding universal Fundamental Right to internet access.

Criminal defamation

[FACT] *Subramanian Swamy v. Union of India* (2016) upheld criminal defamation by balancing Article 19(1)(a) with reputation under Article 21 and the express Article 19(2) ground of defamation.

[CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

[ANALYSIS] A critical answer should still note the chilling effect, criminal-process burden and availability of civil remedies, while accurately stating the binding holding.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Digital-rights cases apply existing freedoms and procedural safeguards to a new communications medium.

Named evidence: Shreya Singhal (2015); Anuradha Bhasin (2020); Subramanian Swamy (2016). **Analysis:** Vagueness, overbreadth, publication, duration and review determine whether digital restrictions chill lawful speech.

Qualification / link: Anuradha Bhasin did not declare an unlimited standalone Fundamental Right to internet access or invalidate every shutdown.

NAMED EVIDENCE

Shreya Singhal (2015); Anuradha Bhasin (2020); Subramanian Swamy (2016).

PRELIMS TRAP

Shreya Singhal struck section 66A, not the safeguarded section 69A blocking framework.

MAINS USE

Use for internet shutdown, intermediary liability and digital free-speech questions.

MINI RECAP

The medium changes; legality, grounds, proportionality and safeguards remain decisive.

CLOSING RECALL FLOW - DIGITAL SPEECH: SHREYA SINGHAL (2015), INTERNET SHUTDOWNS AND CRIMINAL DEFAMATION

START / CONCEPT: Digital speech: Shreya Singhal (2015), internet shutdowns and criminal defamation

|

v

EXACT TERMS: Digital speech • Shreya Singhal (2015) • internet shutdowns • criminal defamation • through • Article 19

|

v

MECHANISM / ARGUMENT: struck down IT Act section 66A for vagueness and overbreadth; distinguished protected discussion and advocacy from punishable incitement; upheld section 69A blocking power because of its structured safeguards; and read down intermediary liability under section 79 so "actual knowledge" was tied to court/government process.

|

v

CONSEQUENCE / CONTRAST: A critical answer should still note the chilling effect, criminal-process burden and availability of civil remedies, while accurately stating the binding holding.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: and careful use of section 144-type powers.

|

v

ANSWER-GRABBING FORMULATION: [CURRENT] The current criminal provision is BNS section 356, not the repealed IPC sections 499-500.

SESSION 15 - ARTICLE 20 - EX POST FACTO LAW, DOUBLE JEOPARDY AND SELF-INCRIMINATION

Stage: Core II - freedom and liberty

VISUAL FIRST

ARTICLE 20 - THREE PERSON-PROTECTIVE SHIELDS

20(1) -> no retrospective offence or enhanced penalty
20(2) -> no prosecution AND punishment twice for same offence
20(3) -> accused + compulsion + testimonial self-incrimination
physical samples != compelled testimony
involuntary narco/polygraph/brain mapping -> Selvi protection
Article 359 order can never include Article 20

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 20(3) is not a blanket right to suppress every material derived from the body.

Technical definition: Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

MUST-WRITE KEYWORDS

- Article 20 - ex post facto law
- double jeopardy
- self-incrimination
- CONTENT CLASSIFICATION
- Article 20
- Article 21

How to use them: Frame the answer through Article 20 - ex post facto law; define double jeopardy, connect self-incrimination with CONTENT CLASSIFICATION to explain the mechanism, and use Article 20 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 20): Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Article 20 contains three criminal-law safeguards and, with Article 21, remains enforceable during an Article 359 order.

Article 20(1): ex post facto criminal law

- No person may be convicted for an act that was not an offence when done.
- No greater penalty may be imposed than the law authorised when the offence occurred.
- A beneficial retrospective criminal change may operate in the accused's favour.
- The clause concerns conviction and penalty, not every retrospective civil, tax or procedural law.

Article 20(2): double jeopardy

- Text: no person shall be prosecuted and punished for the same offence more than once.
- Both prosecution and punishment must ordinarily be present for the constitutional bar.
- Departmental proceedings are not automatically a prior criminal prosecution.
- Distinguish the wider procedural doctrines of autrefois acquit/convict under criminal law.

Article 20(3): self-incrimination

Three elements:

1. the person is accused of an offence;

2. compulsion exists; and
3. the person is made a witness against oneself.

[FACT] *M.P. Sharma and State of Bombay v. Kathi Kalu Oghad* distinguish testimonial compulsion from physical evidence such as fingerprints, specimen signatures or bodily samples. *Selvi v. State of Karnataka* treated involuntary narco-analysis, polygraph and brain-mapping techniques as violating testimonial autonomy and personal liberty.

[LIMIT] Article 20(3) is not a blanket right to suppress every material derived from the body.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 20 restrains criminal power through three precisely defined protections available to persons. **Named evidence:** Kathi Kalu Oghad (1961); Selvi (2010); Article 20; Forty-fourth Amendment. **Analysis:** The constitutional distinction between testimonial communication and physical evidence preserves investigation while protecting mental autonomy. **Qualification / link:** Departmental or civil consequences do not automatically satisfy Article 20(2)'s prosecution-and-punishment requirement.

NAMED EVIDENCE

Kathi Kalu Oghad (1961); Selvi (2010); Article 20; Forty-fourth Amendment.

PRELIMS TRAP

Do not treat every bodily sample as compelled testimonial self-incrimination.

MAINS USE

Use in criminal-process, technology and emergency-enforcement answers.

MINI RECAP

Retrospectivity, repeated jeopardy and compelled testimony are separate shields.

CLOSING RECALL FLOW - ARTICLE 20 - EX POST FACTO LAW, DOUBLE JEOPARDY AND SELF-INCRIMINATION

START / CONCEPT: Article 20 - ex post facto law, double jeopardy and self-incrimination

|

v

EXACT TERMS: Article 20 - ex post facto law · double jeopardy · self-incrimination · CONTENT

CLASSIFICATION · Article 20 · Article 21

|

v

MECHANISM / ARGUMENT: Article 20(3) is not a blanket right to suppress every material derived from the body.

|

v

CONSEQUENCE / CONTRAST: No person may be convicted for an act that was not an offence when done.

|

v

UPSC TRAP / ANSWER-USE: Departmental proceedings are not automatically a prior criminal prosecution.

|

v

ANSWER-GRABBING FORMULATION: Article 20 creates three person-protective criminal shields against retrospective penal liability, repeated prosecution-and-punishment for the same offence, and compelled testimonial self-incrimination.

SESSION 16 - ARTICLE 21 - A.K. GOPALAN (1950) TO MANEKA GANDHI (1978): FAIR PROCEDURE AND THE DIGNITY CHARTER

Stage: Core II - freedom and liberty

VISUAL FIRST

ARTICLE 21 DOCTRINAL TURN

A.K. Gopalan 1950 -> narrow procedure + rights silos

R.C. Cooper 1970 -> effect of State action; silos weaken

Maneka Gandhi 1978 -> fair, just and reasonable procedure

Articles 14-19-21 interlock

derived rights -> dignity, speedy trial, legal aid, livelihood, health, environment

limit -> rights floor, not an unlimited policy code

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that Maneka Gandhi (1978) imported a due-process standard of fairness and non-arbitrariness.

Technical definition: Article 21 is a living guarantee because courts translate dignity into concrete safeguards.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 21 became a dignity charter when Maneka Gandhi (1978) required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.

MUST-WRITE KEYWORDS

- **Article 21 - A.K. Gopalan (1950) to Maneka Gandhi (1978)**
- **fair procedure**
- **the dignity charter**
- **CONTENT CLASSIFICATION**
- **standard**
- **speedy trial**

How to use them: Frame the answer through Article 21 - A.K. Gopalan (1950) to Maneka Gandhi (1978); define fair procedure, connect the dignity charter with CONTENT CLASSIFICATION to explain the mechanism, and use standard for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 21): Article 21 became a dignity charter when Maneka Gandhi (1978) required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Article 21 expanded from a narrow procedural guarantee into a dignity charter through Maneka Gandhi (1978) and named substantive holdings.

Text and early approach

[FACT] Article 21 protects every person: no person shall be deprived of life or personal liberty except according to procedure established by law.

- *A.K. Gopalan (1950)* read rights in separate silos and accepted a narrow procedural approach.
- *R.C. Cooper (1970)* weakened the silo theory by examining the effect of State action across rights.
- *Maneka Gandhi (1978)* completed the turn: procedure must be fair, just and reasonable, and Articles 14, 19 and 21 interlock.

[LIMIT] India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that *Maneka Gandhi (1978)* imported a due-process **standard** of fairness and non-arbitrariness.

Life means dignified life

[FACT] *Francis Coralie Mullin* held that life is more than animal existence and includes human dignity.

Named Article 21 anchors:

Right/dimension	Authority	Exact proposition and limit
speedy trial	<i>Hussainara Khatoon</i>	unreasonable undertrial delay violates fair procedure; no universal judicial stopwatch was created
free legal aid	<i>M.H. Hoskot</i> , <i>Hussainara</i> , Article 39A	indigent accused must have meaningful legal assistance
livelihood	<i>Olga Tellis</i>	livelihood forms part of life; eviction power still survived subject to fair procedure
prisoner dignity	<i>Sunil Batra</i>	prisoner is not a non-person; arbitrary solitary confinement/bar fetters restricted
arrest safeguards/compensation	<i>D.K. Basu</i>	arrest memo, information, records, medical/counsel safeguards; public-law compensation can follow custodial violation
shelter	<i>Chameli Singh</i>	shelter linked to dignified life; not a judicial guarantee of a house to every claimant
health/emergency care	<i>Parmanand Katara</i> , <i>Paschim Banga</i>	immediate care and reasonable public-health obligations
clean environment	<i>Subhash Kumar</i> and environmental line	pollution-free water/air linked to life, balanced through environmental law
travel abroad	<i>Maneka Gandhi (1978)</i>	personal liberty includes foreign travel subject to fair lawful procedure
choice/marriage	<i>Lata Singh</i> , <i>Shafin Jahan</i>	adult choice, dignity and autonomy protected
sexual autonomy	<i>Navtej Singh Johar</i>	consensual adult same-sex intimacy protected through dignity, privacy and equality
reproductive autonomy	<i>Suchita Srivastava</i> , later abortion jurisprudence	bodily integrity and reproductive choice protected subject to valid law
passive euthanasia/living will	<i>Common Cause</i> ; <i>Harish Rana</i> (2026 INSC 222)	dignified dying recognised within carefully controlled safeguards; <i>Harish Rana</i> applied them to withdrawal of CANH for an irreversibly unconscious patient, without legalising active euthanasia

[ANALYSIS] Article 21 is a living guarantee because courts translate dignity into concrete safeguards. The qualification is equally important: named rights often secure fair process and minimum protection, not an unlimited judicially supplied welfare entitlement.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 21 became a dignity charter when fair procedure and inter-rights review replaced the silo approach.

Named evidence: A.K. Gopalan (1950); R.C. Cooper (1970); Maneka Gandhi (1978); Francis Coralie Mullin (1981).

Analysis: Courts protect the conditions of dignified liberty by testing both the existence and quality of legal procedure.

Qualification / link: India retained the words 'procedure established by law'; the safe formulation is a due-process standard, not textual substitution of the US clause.

NAMED EVIDENCE

A.K. Gopalan (1950); R.C. Cooper (1970); Maneka Gandhi (1978); Francis Coralie Mullin (1981).

PRELIMS TRAP

A derived Article 21 interest is not automatically an absolute entitlement to every desired policy outcome.

MAINS USE

Use for living Constitution, dignity and procedural-fairness answers.

MINI RECAP

Effect, fairness, dignity and interlocking rights explain Article 21's expansion.

CLOSING RECALL FLOW - ARTICLE 21 - A.K. GOPALAN (1950) TO MANEKA GANDHI (1978): FAIR PROCEDURE AND THE DIGNITY CHARTER

START / CONCEPT: Article 21 - A.K. Gopalan (1950) to Maneka Gandhi (1978): fair procedure and the dignity charter

|

v

EXACT TERMS: Article 21 - A.K. Gopalan (1950) to Maneka Gandhi (1978) · fair procedure · the dignity charter · CONTENT CLASSIFICATION · standard · speedy trial

|

v

MECHANISM / ARGUMENT: India did not textually replace "procedure established by law" with the American phrase "due process." The exam-safe formulation is that Maneka Gandhi (1978) imported a due-process standard of fairness and non-arbitrariness.

|

v

CONSEQUENCE / CONTRAST: Maneka Gandhi (1978) completed the turn: procedure must be fair, just and reasonable, and Articles 14, 19 and 21 interlock.

|

v

UPSC TRAP / ANSWER-USE: The qualification is equally important: named rights often secure fair process and minimum protection, not an unlimited judicially supplied welfare entitlement.

|

v

ANSWER-GRABBING FORMULATION: Article 21 became a dignity charter when Maneka Gandhi (1978) required fair, just and reasonable procedure and linked liberty with Articles 14 and 19, enabling named protections without turning every policy aspiration into an unlimited entitlement.

SESSION 17 - PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION

Stage: Core II - freedom and liberty

VISUAL FIRST

PRIVACY / AUTONOMY BOUNDARIES

Puttaswamy 2017 -> bodily + decisional + informational privacy
test -> legality + legitimate aim + proportionality + safeguards

Navtej 2018 -> consensual adult same-sex intimacy protected

Joseph Shine 2018 -> adultery offence invalidated

Supriyo 2023 -> Court did not judicially create same-sex marriage under SMA

review dismissed 9 January 2025

DPDP commencement -> phased, not fully operative on 7 September 2026

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: 843(E), as of 7 September 2026 the definition and Data Protection Board/institutional provisions specified in the notification are operative.

Technical definition: A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

843(E), as of 7 September 2026 the definition and Data Protection Board/institutional provisions specified in the notification are operative.

MUST-WRITE KEYWORDS

- Privacy
- proportionality
- DNA testing
- data protection

- law
- legitimate State aim

How to use them: Frame the answer through Privacy; define proportionality, connect DNA testing with data protection to explain the mechanism, and use law for the decisive comparison or qualification.

K.S. Puttaswamy (2017)

[FACT] A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

Privacy includes:

- bodily privacy and integrity;
- decisional autonomy;
- informational privacy;
- family, marriage, procreation and intimate choice; and
- protection against arbitrary State surveillance.

Privacy limitation test

An interference requires:

1. law;
2. legitimate State aim;
3. proportionality between means and aim; and
4. procedural safeguards against abuse.

DNA and paternity

[FACT] Compulsory DNA testing engages privacy, bodily integrity, dignity, identity and the child's interests. Courts do not order it as a routine fishing inquiry.

[CURRENT] Bharatiya Sakshya Adhiniyam, 2023 section 116 carries the conclusive presumption of legitimacy for a child born during a valid marriage or within 280 days after dissolution while the mother remains unmarried, unless non-access is shown.

[ANALYSIS] The answer balance is:

- truth and identity may justify testing in a strong case;
- the statutory legitimacy presumption and child's social dignity weigh heavily;
- less intrusive evidence must be considered;
- the order must be necessary and proportionate; and
- refusal consequences cannot be mechanically converted into forced bodily intrusion.

DPDP control

[CURRENT] The Digital Personal Data Protection Act, 2023 supplies a statutory framework for digital personal data processing, consent/legitimate uses, data-principal rights, data-fiduciary obligations and enforcement.

[CURRENT] Under G.S.R. 843(E), as of 7 September 2026 the definition and Data Protection Board/institutional provisions specified in the notification are operative. Section 6(9) and Section 27(1)(d) are scheduled for 13 November 2026; most substantive processing, rights, obligations and penalty provisions are scheduled for 13 May 2027. Under G.S.R. 846(E), Rules 1, 2 and 17-21 are operative, Rule 4 is scheduled after one year, and Rules 3, 5-16, 22 and 23 after eighteen months. [LIMIT] Notification is not full implementation: informational privacy remains constitutionally reviewable under K.S. Puttaswamy (2017).

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Privacy protects autonomy against unjustified power but does not by itself settle every family-status or regulatory question. **Named evidence:** Puttaswamy (2017); Navtej Singh Johar (2018); Joseph Shine (2018); Supriyo (2023) and review order (2025); DPDP notifications (2025). **Analysis:** Bodily, decisional and informational claims require a concrete interference and a structured justification test. **Qualification / link:** Navtej protects consensual adult intimacy; it did not itself establish a judicially enforceable right to same-sex marriage.

NAMED EVIDENCE

Puttaswamy (2017); Navtej Singh Johar (2018); Joseph Shine (2018); Supriyo (2023) and review order (2025); DPDP notifications (2025).

PRELIMS TRAP

Do not describe the entire DPDP Act and Rules as operative before their notified future tranches commence.

MAINS USE

Use for privacy, intimate autonomy, DNA, surveillance and data-protection questions.

MINI RECAP

Privacy is fundamental, structured and context-specific rather than unlimited.

CLOSING RECALL FLOW - PRIVACY, PROPORTIONALITY, DNA TESTING AND DATA PROTECTION

START / CONCEPT: Privacy, proportionality, DNA testing and data protection

|

v

EXACT TERMS: Privacy · proportionality · DNA testing · data protection · law · legitimate State aim

|

v

MECHANISM / ARGUMENT: A nine-judge Bench held unanimously that privacy is a Fundamental Right protected as an intrinsic part of life and personal liberty under Article 21 and as part of the freedoms guaranteed by Part III.

|

v

CONSEQUENCE / CONTRAST: Notification is not full implementation: informational privacy remains constitutionally reviewable under K.S. Puttaswamy (2017).

|

v

UPSC TRAP / ANSWER-USE: Courts do not order it as a routine fishing inquiry.

|

v

ANSWER-GRABBING FORMULATION: 843(E), as of 7 September 2026 the definition and Data Protection Board/institutional provisions specified in the notification are operative.

SESSION 18 - ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT

Stage: Core II - freedom and liberty

VISUAL FIRST

ARTICLE 21A EDUCATION LADDER

Mohini Jain 1992 -> education linked with dignity
Unni Krishnan 1993 -> bounded Article 21 entitlement
86th Amendment 2002 -> Article 21A, ages 6-14
RTE Act 2009 -> statutory implementation
25% obligation -> covered non-minority unaided schools
Pramati 2014 -> minority-institution Article 30 boundary
below six -> Article 45; parent/guardian duty -> 51A(k)

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

Technical definition: recast Article 45 toward early childhood care and education below six years; and added Article 51A(k), a parental/guardian duty to provide educational opportunity to children aged six to fourteen.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

MUST-WRITE KEYWORDS

- **Article 21A - education as a Fundamental Right**
- **CONTENT CLASSIFICATION**
- **Article 21A**
- **Article 30**
- **Article 45**
- **Article 51A**

How to use them: Frame the answer through Article 21A - education as a Fundamental Right; define CONTENT CLASSIFICATION, connect Article 21A with Article 30 to explain the mechanism, and use Article 45 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 21A): Article 21A constitutionalises free and compulsory education for children aged six to fourteen, implemented by the RTE Act while preserving the distinct Article 30 position of minority institutions.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

[FACT] The Eighty-sixth Amendment inserted Article 21A: the State shall provide free and compulsory education to children aged six to fourteen in the manner determined by law.

The constitutional package also:

- recast Article 45 toward early childhood care and education below six years; and
- added Article 51A(k), a parental/guardian duty to provide educational opportunity to children aged six to fourteen.

Judicial and statutory sequence

- *Mohini Jain* (1992) gave education an expansive Article 21 reading.
- *Unni Krishnan* (1993) confined the enforceable core and shaped the six-to-fourteen constitutional response.
- Right of Children to Free and Compulsory Education Act, 2009 operationalises Article 21A.
- *Society for Unaided Private Schools* upheld the 25 per cent admission obligation for non-minority unaided schools.
- *Pramati Educational and Cultural Trust* protected minority institutions from that application to preserve Article 30(1).

[ANALYSIS] Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 21A converts a judicially recognised need into a textually bounded child-right and State duty. **Named evidence:** Eighty-sixth Amendment; RTE Act, 2009; Society for Unaided Private Schools (2012); Pramati (2014).

Analysis: The age band, statutory mechanism and minority-institution boundary show why education rights require clause-level precision. **Qualification / link:** Article 21A covers six to fourteen years; early childhood care below six remains in Article 45.

NAMED EVIDENCE

Eighty-sixth Amendment; RTE Act, 2009; Society for Unaided Private Schools (2012); Pramati (2014).

PRELIMS TRAP

Do not apply the RTE private-school obligation to protected minority institutions without the Article 30 qualification.

MAINS USE

Use in education-right, implementation and minority-autonomy answers.

MINI RECAP

Right, age, statute and institutional exception must be stated together.

CLOSING RECALL FLOW - ARTICLE 21A - EDUCATION AS A FUNDAMENTAL RIGHT

START / CONCEPT: Article 21A - education as a Fundamental Right

|
v

EXACT TERMS: Article 21A - education as a Fundamental Right · CONTENT CLASSIFICATION · Article 21A · Article 30 · Article 45 · Article 51A

|
v

MECHANISM / ARGUMENT: recast Article 45 toward early childhood care and education below six years; and added Article 51A(k), a parental/guardian duty to provide educational opportunity to children aged six to fourteen.

|
v

CONSEQUENCE / CONTRAST: The resulting consequence is that article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded...

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded...

|
v

ANSWER-GRABBING FORMULATION: Article 21A demonstrates a shift from judge-developed Article 21 content to an express, age-bounded Fundamental Right implemented by statute.

SESSION 19 - ARTICLE 22 - ORDINARY ARREST, PREVENTIVE DETENTION AND THE UNENFORCED 44TH AMENDMENT CLAUSE

Stage: Core II - freedom and liberty

VISUAL FIRST

ARTICLE 22 - TWO REGIMES

ORDINARY ARREST -> grounds + lawyer + magistrate within 24 hours
no further detention without authority

PREVENTIVE DETENTION -> anticipated conduct
Article 22(4)-(7) safeguards
operative no-Board ceiling: 3 months
grounds + earliest representation

44th Amendment two-month substitution -> not commenced

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Preventive detention is the rights chapter's deepest structural contradiction: it constitutionalises detention without trial, yet surrounds it with minimum review, communication and representation safeguards.

Technical definition: Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

MUST-WRITE KEYWORDS

- Article 22 - ordinary arrest
- preventive detention
- the unenforced 44th Amendment clause
- CONTENT CLASSIFICATION
- three months
- Article 22

How to use them: Frame the answer through Article 22 - ordinary arrest; define preventive detention, connect the unenforced 44th Amendment clause with CONTENT CLASSIFICATION to explain the mechanism, and use three months for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 22): Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Article 22 separates ordinary arrest from preventive detention; importing one branch's safeguards into the other creates predictable errors.

Ordinary arrest: Articles 22(1)-(2)

A person arrested must:

- be informed as soon as may be of the grounds;
- not be denied the right to consult and be defended by a legal practitioner of choice;
- be produced before the nearest magistrate within 24 hours, excluding journey time; and
- not be detained beyond that period without magistrate authority.

Exceptions under Article 22(3)

Clauses (1) and (2) do not apply to:

- an enemy alien; or

- a person arrested/detained under preventive-detention law.

[LIMIT] This does not mean preventive detainees have no constitutional protection. Clauses (4)-(7) supply a different safeguard architecture.

Preventive detention

- Prevents anticipated conduct rather than punishing a proved offence.
- Current constitutional text permits detention up to **three months** without Advisory Board approval.
- Beyond that, an Advisory Board must report sufficient cause, subject to parliamentary law under clauses (4)-(7).
- Grounds must be communicated as soon as may be.
- Earliest opportunity to make a representation must be given.
- Facts considered against public interest to disclose may be withheld.

The Forty-fourth Amendment trap

[FACT] The amendment proposed reducing the no-Advisory-Board period from three months to two months and restructuring the Board.

[CURRENT] That substitution was never brought into force. The operative constitutional period remains **three months**.

[ANALYSIS] Preventive detention is the rights chapter's deepest structural contradiction: it constitutionalises detention without trial, yet surrounds it with minimum review, communication and representation safeguards.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 22 constitutionalises ordinary arrest safeguards while separately permitting and regulating preventive detention. **Named evidence:** Articles 22(1)-(7); A.K. Roy (1982); Forty-fourth Amendment commencement record.

Analysis: The preventive branch responds to anticipated conduct, creating a structural tension with liberty and fair procedure. **Qualification / link:** Enemy aliens and preventive detainees are excluded from clauses (1)-(2), not from every constitutional or statutory safeguard.

NAMED EVIDENCE

Articles 22(1)-(7); A.K. Roy (1982); Forty-fourth Amendment commencement record.

PRELIMS TRAP

The current constitutional no-Advisory-Board ceiling remains three months, not the uncommenced two months.

MAINS USE

Use in arrest, preventive-detention and due-process answers.

MINI RECAP

Ordinary custody and preventive detention have different triggers and safeguards.

CLOSING RECALL FLOW - ARTICLE 22 - ORDINARY ARREST, PREVENTIVE DETENTION AND THE UNENFORCED 44TH AMENDMENT CLAUSE

START / CONCEPT: Article 22 - ordinary arrest, preventive detention and the unenforced 44th

Amendment clause

|

v

EXACT TERMS: Article 22 - ordinary arrest · preventive detention · the unenforced 44th Amendment clause · CONTENT CLASSIFICATION · three months · Article 22

|

v

MECHANISM / ARGUMENT: Beyond that, an Advisory Board must report sufficient cause, subject to parliamentary law under clauses (4)-(7).

|

v

CONSEQUENCE / CONTRAST: This does not mean preventive detainees have no constitutional protection.

|

v

UPSC TRAP / ANSWER-USE: Clauses (1) and (2) do not apply to.

|

v

ANSWER-GRABBING FORMULATION: Article 22 separates ordinary arrest from preventive detention: the first carries grounds, counsel and twenty-four-hour production safeguards, while the second follows a distinct regime whose current no-Advisory-Board ceiling remains three months.

SESSION 20 - ARTICLES 23-24 - EXPLOITATION, FORCED LABOUR AND CHILD LABOUR

Stage: Core III - community rights and remedies

VISUAL FIRST

EXPLOITATION CODE

ARTICLE 23 -> trafficking + begar + similar forced labour

all persons; State and private actors

economic compulsion / below legal minimum can matter

compulsory public service allowed without listed discrimination

ARTICLE 24 -> child below 14

no factory, mine or hazardous employment

STATUTES -> Bonded Labour Act 1976; Child and Adolescent Labour Act 1986/2016

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

Technical definition: Union of India (Asiad Workers), payment below the legal minimum in conditions of economic compulsion could amount to forced labour.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

MUST-WRITE KEYWORDS

- Articles 23-24 - exploitation
- forced labour
- child labour
- CONTENT CLASSIFICATION
- Article 23
- Article 24

How to use them: Frame the answer through Articles 23-24 - exploitation; define forced labour, connect child labour with CONTENT CLASSIFICATION to explain the mechanism, and use Article 23 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 23-24): Articles 23-24 constitutionalise labour dignity against State and private exploitation: trafficking, begar (forced unpaid labour), economically compelled forced labour and prohibited child labour attract both rights remedies and statutory enforcement.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 23

[FACT] It prohibits:

- traffic in human beings;
- begar (forced unpaid labour); and
- other similar forms of forced labour.

It binds the State and private persons and protects citizens and non-citizens.

[FACT] In *People's Union for Democratic Rights v. Union of India* (Asiad Workers), payment below the legal minimum in conditions of economic compulsion could amount to forced labour. *Bandhua Mukti Morcha* linked bonded labour abolition, dignity and State enforcement.

[FACT] Article 23(2) permits compulsory service for public purposes, but the State cannot discriminate in imposing it only on religion, race, caste or class.

Article 24

[FACT] No child below fourteen may be employed in a factory, mine or other hazardous employment.

Relevant statutory architecture includes:

- Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 as amended in 2016;
- Bonded Labour System (Abolition) Act, 1976;
- anti-trafficking criminal provisions; and
- education protections under Article 21A and the RTE Act.

[LIMIT] Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions. Keep constitutional and statutory propositions separate.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 23 and 24 make labour dignity horizontally enforceable against coercive public and private power.

Named evidence: *People's Union for Democratic Rights* (1982); *Bandhua Mukti Morcha* (1984); Articles 23-24.

Analysis: Economic vulnerability can make formally accepted labour constitutionally forced when legal minimums and real choice disappear. **Qualification / link:** Article 24's constitutional text is narrower than the later statutory child-labour framework; keep the two rules separate.

NAMED EVIDENCE

People's Union for Democratic Rights (1982); *Bandhua Mukti Morcha* (1984); Articles 23-24.

PRELIMS TRAP

Begar is forced unpaid labour under Article 23, not a synonym for every low-paid occupation.

MAINS USE

Use in bonded labour, trafficking, minimum-wage and child-labour answers.

MINI RECAP

Coercion, beneficiary, private reach and statutory enforcement complete the exploitation analysis.

CLOSING RECALL FLOW - ARTICLES 23-24 - EXPLOITATION, FORCED LABOUR AND CHILD LABOUR

START / CONCEPT: Articles 23-24 - exploitation, forced labour and child labour

|
v

EXACT TERMS: Articles 23-24 - exploitation · forced labour · child labour · CONTENT CLASSIFICATION
· Article 23 · Article 24

|
v

MECHANISM / ARGUMENT: Union of India (Asiad Workers), payment below the legal minimum in conditions of economic compulsion could amount to forced labour.

|
v

CONSEQUENCE / CONTRAST: The resulting consequence is that article 24's text is narrower than a complete ban on every kind of child...

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 24's text is narrower than a complete ban on every kind of child...

|
v

ANSWER-GRABBING FORMULATION: Article 24's text is narrower than a complete ban on every kind of child work, while the amended statute creates broader prohibitions and defined exceptions.

SESSION 21 - ARTICLES 25-28 - CONSCIENCE, DENOMINATION, SECULAR REGULATION AND PRINCIPLED DISTANCE

Stage: Core III - community rights and remedies

VISUAL FIRST

RELIGIOUS-FREEDOM GRID

25 -> all persons: conscience; profess, practise, propagate
subject to public order, morality, health, other FRs
25(2): secular regulation + social reform
26 -> denominations: institutions, religious affairs, property
subject to public order, morality, health
27 -> no tax whose proceeds are specifically appropriated to promote a religion
28(1) wholly State-maintained institution -> no religious instruction
28(2) State-administered trust/endowment -> instruction may continue
28(3) recognised/aided institution -> no compelled attendance without consent
ERP -> religious/secular -> essentiality -> explicit limits -> proportionality
Sabarimala -> state 2018 majority only unless later final authority is verified

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

Technical definition: identify whether the claimant is an individual or denomination; distinguish religious practice from associated secular activity; examine essentiality where the doctrine is invoked; apply public order, morality, health, reform and other-FR limits; and state the criticism that secular judges may become arbiters of theology.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

MUST-WRITE KEYWORDS

- Articles 25-28 - conscience
- denomination
- secular regulation
- principled distance

- CONTENT CLASSIFICATION

- wholly maintained from State funds

How to use them: Frame the answer through Articles 25-28 - conscience; define denomination, connect secular regulation with principled distance to explain the mechanism, and use CONTENT CLASSIFICATION for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 25-28): Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Religious freedom requires four separate questions: individual conscience, denominational autonomy, taxation and institutional religious instruction.

Article 25

[FACT] All persons have freedom of conscience and the right freely to profess, practise and propagate religion, subject to:

- public order;
- morality;
- health;
- the other provisions of Part III; and
- State regulation/reform under Article 25(2).

[FACT] Propagation is not a right to convert another person by force, fraud or allurement. *Rev. Stainislaus v. State of Madhya Pradesh* upheld that distinction.

[FACT] Carrying the kirpan is included in the profession of Sikh religion. For Article 25(2)(b), reference to Hindus includes Sikhs, Jains and Buddhists.

Article 26

Every religious denomination or section, subject to public order, morality and health, may:

1. establish and maintain religious/charitable institutions;
2. manage its own affairs in matters of religion;
3. own and acquire property; and
4. administer property according to law.

[LIMIT] Article 26(b) religious affairs receive stronger autonomy than secular administration of property, which remains regulable.

Essential Religious Practices doctrine

[FACT] *Shirur Mutt* distinguished religious matters from secular activities associated with religion and anchored essentiality in the religion's doctrines.

The exam sequence:

1. identify whether the claimant is an individual or denomination;
2. distinguish religious practice from associated secular activity;
3. examine essentiality where the doctrine is invoked;
4. apply public order, morality, health, reform and other-FR limits; and
5. state the criticism that secular judges may become arbiters of theology.

[FACT] In *Indian Young Lawyers Association* (Sabarimala, 2018), the majority invalidated the exclusion of women of the specified age group through equality, denomination and constitutional-morality reasoning.

[LIMIT] A bounded official-source check through 7 September 2026 located no final later decision that this package can securely use; it therefore states only the 2018 majority holding and does not speculate about the

review/reference.

Article 27

[FACT] No person shall be compelled to pay taxes whose proceeds are specifically appropriated to promote or maintain a particular religion or denomination.

Trap: Article 27 distinguishes a tax for religious promotion from a regulatory fee or a general tax whose expenditure may incidentally benefit religious institutions.

Article 28

Institution	Religious instruction position
wholly maintained from State funds	prohibited
State-administered but established under endowment/trust requiring instruction	permitted
State-recognised	instruction/worship cannot be compelled without consent
State-aided	instruction/worship cannot be compelled without consent

Principled-distance secularism

[ANALYSIS] Indian secularism is not a rigid wall:

- the State protects conscience and denominational autonomy;
- it may engage equally with religions;
- it may regulate secular administration; and
- it may intervene for social welfare, reform, dignity and equality.

This is why the Indian model can both protect religious practice and constitutionally dismantle untouchability or exclusion.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 25-28 protect conscience and denominational autonomy while regulating secular activity, fiscal promotion, instruction and harmful practices. **Named evidence:** Shirur Mutt (1954); Durgah Committee (1961); Rev. Stainislaus (1977); Aruna Roy (2002); Indian Young Lawyers Association (2018). **Analysis:** A text-first inquiry identifies claimant and activity before applying explicit limits, reform power, competing rights, essentiality and proportionality. **Qualification / link:** Propagation is not force or fraud; fees are not automatically Article 27 taxes; the 2018 Sabarimala majority may be stated without inventing a later final review outcome.

NAMED EVIDENCE

Shirur Mutt (1954); Durgah Committee (1961); Rev. Stainislaus (1977); Aruna Roy (2002); Indian Young Lawyers Association (2018).

PRELIMS TRAP

Do not treat every religiously described activity as essential or apply Article 28(1)'s rule to every aided institution.

MAINS USE

Use in conversion, denomination, ERP, religious instruction and principled-distance secularism answers.

MINI RECAP

Claimant, activity, textual limit, institutional setting and cautious ERP use decide the religion-rights problem.

CLOSING RECALL FLOW - ARTICLES 25-28 - CONSCIENCE, DENOMINATION, SECULAR REGULATION AND PRINCIPLED DISTANCE

START / CONCEPT: Articles 25-28 - conscience, denomination, secular regulation and principled distance

|

v

EXACT TERMS: Articles 25-28 - conscience · denomination · secular regulation · principled distance
· CONTENT CLASSIFICATION · wholly maintained from State funds

|

v

MECHANISM / ARGUMENT: Propagation is not a right to convert another person by force, fraud or allurement.

|

v

CONSEQUENCE / CONTRAST: A bounded official-source check through 7 September 2026 located no final later decision that this package can securely use; it therefore states only the 2018 majority holding and does not speculate about the review/reference.

|

v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: article 27 distinguishes a tax for religious promotion from a regulatory fee or a...

|

v

ANSWER-GRABBING FORMULATION: Indian religious freedom protects conscience and denominational autonomy while permitting public-order, health, morality, secular-regulation and social-reform controls; the governing model is principled distance, not either theocracy or an absolute wall.

SESSION 22 - ARTICLES 29-30 - CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY

Stage: Core III - community rights and remedies

VISUAL FIRST

CULTURE / EDUCATION

29(1) -> any section of citizens with distinct language, script or culture

29(2) -> no citizen denied admission in State-maintained/aided institution
only on religion, race, caste or language

30 -> religious or linguistic minorities

establish + administer educational institutions

minority unit -> generally State-wise under T.M.A. Pai

autonomy != maladministration; regulatory excellence remains possible

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

Technical definition: Article 29 is not confined to minorities.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

MUST-WRITE KEYWORDS

- Articles 29-30 - cultural conservation
- minority educational autonomy
- CONTENT CLASSIFICATION
- Qualified rule
- Article 29
- Article 30

How to use them: Frame the answer through Articles 29-30 - cultural conservation; define minority educational autonomy, connect CONTENT CLASSIFICATION with Qualified rule to explain the mechanism, and use Article 29 for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLES 29-30): Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Article 29 protects sections of citizens and non-discriminatory admission; Article 30 specifically protects religious and linguistic minority institutions.

Article 29

- Article 29(1): any section of citizens with a distinct language, script or culture has the right to conserve it.
- Article 29(2): no citizen may be denied admission to a State-maintained or State-aided educational institution on grounds only of religion, race, caste, language or any of them.

[FACT] Article 29 is not confined to minorities. A majority section with a distinct culture/language can invoke Article 29(1).

Article 30

[FACT] All religious or linguistic minorities have the right to establish and administer educational institutions of their choice.

Related protections:

- acquisition law must not make the Article 30(1) guarantee illusory;
- State aid cannot discriminate merely because the institution is minority-managed; and
- regulation for academic standards, sanitation, teacher qualifications, fairness and excellence can be valid.

Governing cases

- *T.M.A. Pai Foundation* (2002): minority status generally assessed State-wise; administration includes meaningful institutional choice, subject to regulation.
- *P.A. Inamdar* (2005): autonomy in unaided professional institutions; no State-imposed reservation under the then framework.
- *St. Xavier's College* and *Malankara Syrian Catholic College*: regulatory excellence is valid, but the State cannot destroy the minority management's core.

Qualified rule: Article 30 protects administration, not maladministration.

Article 29(2) and Article 30 interaction

[ANALYSIS] Aided minority institutions retain Article 30 identity but cannot treat State aid as a licence to ignore every admission-related constitutional obligation. The exact balance depends on the institution type and governing authority.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 29 and 30 protect overlapping but distinct cultural and educational interests. **Named evidence:** Champakam Dorairajan (1951); *St. Xavier's College* (1974); *T.M.A. Pai* (2002); *P.A. Inamdar* (2005). **Analysis:** Article 29 is not minority-exclusive, while Article 30 protects minority institutional identity against destructive regulation.

Qualification / link: Minority status is generally assessed with reference to the State unit; regulation may preserve standards without taking over administration.

NAMED EVIDENCE

Champakam Dorairajan (1951); *St. Xavier's College* (1974); *T.M.A. Pai* (2002); *P.A. Inamdar* (2005).

PRELIMS TRAP

Do not quote Article 30 as saying 'minority citizens' or Article 29 as applying only to minorities.

MAINS USE

Use in language, admissions, minority status and educational-regulation answers.

MINI RECAP

Beneficiary wording, institution type and regulatory effect keep Articles 29-30 distinct.

CLOSING RECALL FLOW - ARTICLES 29-30 - CULTURAL CONSERVATION AND MINORITY EDUCATIONAL AUTONOMY

START / CONCEPT: Articles 29-30 - cultural conservation and minority educational autonomy

|

v

EXACT TERMS: Articles 29-30 - cultural conservation · minority educational autonomy · CONTENT

CLASSIFICATION · Qualified rule · Article 29 · Article 30

|

v

MECHANISM / ARGUMENT: acquisition law must not make the Article 30(1) guarantee illusory; State aid cannot discriminate merely because the institution is minority-managed; and regulation for academic standards, sanitation, teacher qualifications, fairness and excellence can be valid.

|

v

CONSEQUENCE / CONTRAST: Aided minority institutions retain Article 30 identity but cannot treat State aid as a licence to ignore every admission-related constitutional obligation.

|

v

UPSC TRAP / ANSWER-USE: Article 29 is not confined to minorities.

|

v

ANSWER-GRABBING FORMULATION: Articles 29-30 protect cultural conservation, non-discriminatory admission and minority educational autonomy, but Article 29 is not minority-exclusive and Article 30 protects administration rather than maladministration.

SESSION 23 - ARTICLE 32 AND THE FIVE WRITS

Stage: Core III - community rights and remedies

VISUAL FIRST

REMEDY SELECTION

Article 32 -> Supreme Court; FR enforcement; itself a Fundamental Right

Article 226 -> High Court; FR + other legal rights + public duties

habeas corpus -> unlawful detention, including private detention

mandamus -> unperformed public duty

prohibition -> stop threatened jurisdictional excess

certiorari -> quash completed defective order

quo warranto -> test public-office authority

PIL -> access device, not a substitute for an owned merits claim

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect-detention, unperformed duty, threatened excess, defective order or unlawful public office.

Technical definition: "Supreme Court cannot refuse Article 32" does not mean every petition must receive final relief despite alternate remedy, disputed facts or absence of a Fundamental Right.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect-detention, unperformed duty, threatened excess, defective order or unlawful public office.

MUST-WRITE KEYWORDS

- Article 32
- the five writs

- **CONTENT CLASSIFICATION**
- **Habeas corpus**
- **unlawful detention**
- **Mandamus**

How to use them: Frame the answer through Article 32; define the five writs, connect CONTENT CLASSIFICATION with Habeas corpus to explain the mechanism, and use unlawful detention for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (ARTICLE 32 / WRITS): Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect—detention, unperformed duty, threatened excess, defective order or unlawful public office.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Choose a writ from the defect: detention, unperformed public duty, threatened jurisdictional excess, an illegal order or unlawful occupation of public office. [FACT] Article 32 guarantees the right to move the Supreme Court for enforcement of Fundamental Rights. Dr B.R. Ambedkar called it the Constitution's "heart and soul."

[FACT] Judicial review and the central remedial role of Articles 32/226 form part of the basic structure, though the complete institutional doctrine belongs to Polity 18.

Five writs

Writ	Defect cured	Key limits
Habeas corpus	unlawful detention	may issue against public or private detention; not a substitute for appeal from every competent-court custody order
Mandamus	failure of public duty	not ordinarily for private duty, purely discretionary power, contractual obligation, or against President/Governor in constitutional capacity
Prohibition	lower court/tribunal threatens jurisdictional excess	preventive; issued before the impugned proceeding/order is completed
Certiorari	jurisdictional error, legal error or natural-justice defect in an order	curative/quashing; reaches judicial, quasi-judicial and appropriate administrative decisions
Quo warrant	unlawful claim to substantive public office	applicant need not show personal injury; office must be public and legally created

Article 32 versus Article 226

Dimension	Supreme Court, Article 32	High Court, Article 226
Purpose	Fundamental Rights enforcement	Fundamental Rights plus any other legal right/public duty
Nature	Article 32 remedy is itself a Fundamental Right	discretionary constitutional jurisdiction
Territorial reach	national constitutional jurisdiction	within territorial jurisdiction/cause-of-action rules
Respondent	determined by right/writ	can reach public-duty bodies beyond Article 12 State

[LIMIT] "Supreme Court cannot refuse Article 32" does not mean every petition must receive final relief despite alternate remedy, disputed facts or absence of a Fundamental Right. It means the constitutional guarantee cannot be abolished or reduced to ordinary legislative grace.

PIL boundary

[ANALYSIS] Relaxed standing made rights of bonded labourers, prisoners and marginalised groups practically enforceable. Detailed PIL growth, epistolary jurisdiction and institutional criticism are cross-linked to Polity 18.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Article 32 guarantees a Fundamental-Rights forum while Article 226 supplies wider decentralised public-law review. **Named evidence:** Articles 32 and 226; L. Chandra Kumar (1997); S.P. Gupta (1981). **Analysis:** The writ must match the legal defect; wider standing cannot cure absence of jurisdiction, duty, detention or public office.

Qualification / link: Article 32 is not a general appeal over every illegality, and Article 226 remains discretionary though alternate remedy is not an absolute bar.

NAMED EVIDENCE

Articles 32 and 226; L. Chandra Kumar (1997); S.P. Gupta (1981).

PRELIMS TRAP

Do not say Article 226 is narrower merely because Article 32 is itself a Fundamental Right.

MAINS USE

Use in remedies, judicial review, writ comparison and access-to-justice answers.

MINI RECAP

Choose the court by scope and the writ by defect.

CLOSING RECALL FLOW - ARTICLE 32 AND THE FIVE WRITS

START / CONCEPT: Article 32 and the five writs

|
v

EXACT TERMS: Article 32 · the five writs · CONTENT CLASSIFICATION · Habeas corpus · unlawful detention · Mandamus

|
v

MECHANISM / ARGUMENT: "Supreme Court cannot refuse Article 32" does not mean every petition must receive final relief despite alternate remedy, disputed facts or absence of a Fundamental Right.

|
v

CONSEQUENCE / CONTRAST: It means the constitutional guarantee cannot be abolished or reduced to ordinary legislative grace.

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: detailed PIL growth, epistolary jurisdiction and institutional criticism are cross-linked to Polity 18.

|
v

ANSWER-GRABBING FORMULATION: Article 32 makes the Supreme Court a guaranteed Fundamental-Rights forum, while Article 226 is wider in subject matter and public-duty reach; the correct writ follows the defect-detention, unperformed duty, threatened excess, defective order or unlawful public office.

SESSION 24 - ARTICLES 31A, 31B AND 31C - SAVING PROVISIONS WITHOUT BLANKET IMMUNITY

Stage: Synthesis - savings, special powers and emergency effects

VISUAL FIRST

SAVING CLAUSES / PROPERTY

31A -> specified reform categories; defined Article 14/19 protection

31B -> Ninth Schedule listing

Waman Rao 1981 / I.R. Coelho 2007 -> 24 April 1973 boundary

31C -> genuine Article 39(b)/(c) laws; original limited protection survives

Minerva Mills 1980 blocks extension to all DPSPs

Property Owners Association 2024 -> not every private asset

300A -> authority of law; constitutional, not Fundamental, right

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Articles 31A, 31B and 31C - saving provisions without blanket immunity comprises Articles 31A, CONTENT CLASSIFICATION and Article 31A as its core connected dimensions.

Technical definition: original Article 31C survives; Article 39(b) can in context include privately owned resources; not every privately owned resource automatically becomes a material resource of the community; the inquiry is context-specific, considering resource nature, community impact, scarcity, concentration and common good.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

MUST-WRITE KEYWORDS

- Articles 31A
- CONTENT CLASSIFICATION
- Article 31A
- 31B
- 31C - saving provisions without blanket immunity
- 24 April 1973

How to use them: Frame the answer through Articles 31A; define CONTENT CLASSIFICATION, connect Article 31A with 31B to explain the mechanism, and use 31C - saving provisions without blanket immunity for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (SAVING / CONTROL PROVISIONS): Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Visual takeaway: Saving clauses protect defined fields, while Emergency clauses separately govern temporary enforceability. Neither creates a general rights-free zone.

Article 31A

[FACT] Saves specified categories of laws, chiefly connected with acquisition of estates, management/amalgamation of property and related reform, from specified Article 14/19 challenges, subject to its text and provisos.

[LIMIT] It is not a general immunity for every property-related law.

Article 31B and the Ninth Schedule

[FACT] Article 31B validates listed Acts/Regulations through the Ninth Schedule notwithstanding inconsistency with Fundamental Rights.

[FACT] *I.R. Coelho (2007) v. State of Tamil Nadu (2007)* held that laws inserted after **24 April 1973** remain open to basic-structure review. The court examines whether the protected law's effect damages rights forming part of basic structure.

Trap: Ninth Schedule placement is not absolute immunity after *I.R. Coelho* (2007).

Article 31C

[FACT] The original Article 31C protects a law genuinely giving effect to Article 39(b) or 39(c) from Article 14/19 challenge, with the constitutional history shaped by *Kesavananda Bharati* (1973) and *Minerva Mills* (1980).

[CURRENT] *Property Owners Association* (2024) (5 November 2024) held:

- original Article 31C survives;
- Article 39(b) can in context include privately owned resources;
- not every privately owned resource automatically becomes a material resource of the community;
- the inquiry is context-specific, considering resource nature, community impact, scarcity, concentration and common good.

[LIMIT] Do not say Article 39(b) converts all private property into community property. Do not say Article 31C protects every DPSP-implementing law; its surviving scope is Article 39(b)/(c).

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 31A-31C create defined protection for specified laws without abolishing basic-structure review. **Named evidence:** *Kesavananda Bharati* (1973); *Waman Rao* (1981); *Minerva Mills* (1980); *I.R. Coelho* (2007); *Property Owners Association* (2024). **Analysis:** The clauses mediate social reform and rights by tying immunity to subject matter, date and genuine statutory purpose. **Qualification / link:** Ninth Schedule placement is not absolute immunity, and Article 31C does not cover every Directive Principle.

NAMED EVIDENCE

Kesavananda Bharati (1973); *Waman Rao* (1981); *Minerva Mills* (1980); *I.R. Coelho* (2007); *Property Owners Association* (2024).

PRELIMS TRAP

Do not merge Articles 31A, 31B and 31C into one blanket shield.

MAINS USE

Use in land reform, Ninth Schedule, Article 39(b)-(c) and property-transition answers.

MINI RECAP

Field, date, purpose and basic structure bound every saving clause.

CLOSING RECALL FLOW - ARTICLES 31A, 31B AND 31C - SAVING PROVISIONS WITHOUT BLANKET IMMUNITY

START / CONCEPT: Articles 31A, 31B and 31C - saving provisions without blanket immunity

|
v

EXACT TERMS: Articles 31A · CONTENT CLASSIFICATION · Article 31A · 31B · 31C - saving provisions without blanket immunity · 24 April 1973

|
v

MECHANISM / ARGUMENT: Do not say Article 39(b) converts all private property into community property.

|
v

CONSEQUENCE / CONTRAST: It is not a general immunity for every property-related law.

|
v

UPSC TRAP / ANSWER-USE: Ninth Schedule placement is not absolute immunity after *I.R. Coelho* (2007).

|
v

ANSWER-GRABBING FORMULATION: Articles 31A-31C, 33-35 create defined constitutional controls rather than rights-free zones: their field, purpose and legislative competence remain text-bound and subject to basic-structure review where applicable.

SESSION 25 - ARTICLES 33-35 AND MARTIAL LAW

Stage: Synthesis - savings, special powers and emergency effects

VISUAL FIRST

ARTICLES 33-35 / MARTIAL LAW

33 -> Parliament may restrict or abrogate FRs of specified forces/services

objective: discipline and proper discharge of duties

34 -> parliamentary indemnity/validation where martial law existed

35 -> Parliament-only legislation for listed Part III matters

martial law -> undefined, local exceptional military control

national Emergency -> express constitutional proclamation

martial law does not automatically erase habeas corpus

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: Parliament may indemnify persons for acts done in connection with maintenance/restoration of order where martial law was in force and validate sentences or acts.

Technical definition: Martial law does not automatically erase habeas corpus or create unlimited military power.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Martial law does not automatically erase habeas corpus or create unlimited military power.

MUST-WRITE KEYWORDS

- **Articles 33-35**
- **martial law**
- **Constitutional basis**
- **implicit recognition through Article 34; term undefined**
- **express Articles 352-360 framework**
- **Cause**

How to use them: Frame the answer through Articles 33-35; define martial law, connect Constitutional basis with implicit recognition through Article 34; term undefined to explain the mechanism, and use express Articles 352-360 framework for the decisive comparison or qualification.

Article 33

[FACT] Parliament may determine the extent to which Fundamental Rights are restricted or abrogated for:

- armed forces;
- forces maintaining public order;
- intelligence/counter-intelligence organisations; and
- connected telecommunication systems,

to ensure proper discharge of duties and discipline.

[LIMIT] This power belongs to Parliament, not State legislatures.

Article 34

[FACT] Parliament may indemnify persons for acts done in connection with maintenance/restoration of order where martial law was in force and validate sentences or acts.

Article 35

[FACT] Parliament has exclusive legislative competence over specified Part III matters, including:

- residence requirements under Article 16(3);
- legislation under Articles 32(3), 33 and 34; and
- punishment for acts declared offences under Part III.

Martial law versus National Emergency

Dimension	Martial law	National Emergency
Constitutional basis	implicit recognition through Article 34; term undefined	express Articles 352-360 framework
Cause	breakdown requiring military control/restoration	war, external aggression or armed rebellion
Area	ordinarily a disturbed locality	whole or part of India
Ordinary government/courts	may be displaced/restricted in area	continue under modified federal/rights rules
Rights effect	tied to actual military control and indemnity	Articles 358/359 apply according to text

[LIMIT] Martial law does not automatically erase habeas corpus or create unlimited military power.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 33-35 allocate exceptional rights-control powers through precise beneficiaries and legislative competence. **Named evidence:** Articles 33-35; Army Act, 1950 and related service legislation. **Analysis:** Parliamentary tailoring preserves discipline while preventing dispersed executive or State-level creation of rights-free zones. **Qualification / link:** Martial law and National Emergency are not synonyms; Article 34 recognises a situation without creating a general suspension code.

NAMED EVIDENCE

Articles 33-35; Army Act, 1950 and related service legislation.

PRELIMS TRAP

Article 33 gives the tailoring power to Parliament, not directly to every service commander.

MAINS USE

Use in armed-forces discipline, martial-law comparison and legislative-competence answers.

MINI RECAP

Specified service, parliamentary law and necessity define the exception.

CLOSING RECALL FLOW - ARTICLES 33-35 AND MARTIAL LAW

START / CONCEPT: Articles 33-35 and martial law

|
v

EXACT TERMS: Articles 33-35 • martial law • Constitutional basis • implicit recognition through Article 34; term undefined • express Articles 352-360 framework • Cause

|
v

MECHANISM / ARGUMENT: Parliament may indemnify persons for acts done in connection with maintenance/restoration of order where martial law was in force and validate sentences or acts.

|
v

CONSEQUENCE / CONTRAST: Parliament may determine the extent to which Fundamental Rights are restricted or abrogated for.

|
v

UPSC TRAP / ANSWER-USE: Do not miss this limiting distinction: parliament has exclusive legislative competence over specified Part III matters, including.

|
v

ANSWER-GRABBING FORMULATION: Martial law does not automatically erase habeas corpus or create unlimited military power.

SESSION 26 - ARTICLES 358 AND 359 - TWO DIFFERENT EMERGENCY MECHANISMS

Stage: Synthesis - savings, special powers and emergency effects

VISUAL FIRST

ARTICLES 358 AND 359

- 358 -> automatic Article 19 effect
 - only war/external-aggression Emergency after 44th
 - nexus/recital conditions; prospective cessation
- 359 -> Presidential order required
 - suspends right to move court for specified enforcement
 - does not delete right text
 - Articles 20 and 21 can never be named
- RULE -> no automatic disappearance of all Fundamental Rights

This visual fixes the session's constitutional sequence before the explanatory detail.

DEFINITION / WHAT THIS IS CALLED

Plain-language definition: the specified right is not textually deleted; its judicial enforcement is suspended; Articles 20 and 21 cannot be included; the order must identify the rights and duration/area; and Article 359(1A) contains law/action protections with constitutional conditions.

Technical definition: "All Fundamental Rights are automatically suspended in Emergency" is wrong.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

MUST-WRITE KEYWORDS

- **Articles 358**
- **CONTENT CLASSIFICATION**
- **war or external aggression**
- **Trigger**
- **Emergency based on war/external aggression**
- **359 - two different Emergency mechanisms**

How to use them: Frame the answer through Articles 358; define CONTENT CLASSIFICATION, connect war or external aggression with Trigger to explain the mechanism, and use Emergency based on war/external aggression for the decisive comparison or qualification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (EMERGENCY): Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

CONTENT CLASSIFICATION: CORE PRELIMS + CORE MAINS

Article 358

[FACT] During a National Emergency based on **war or external aggression**, Article 19 does not restrict State power to make/take otherwise inconsistent law/executive action within Article 358's conditions.

After the Forty-fourth Amendment:

- it does not operate for an Emergency based only on armed rebellion;
- protection is tied to law related to the Emergency and the required recital; and
- the law ceases to have effect when the Emergency ends to the extent of inconsistency, except past acts.

Article 359

[FACT] The President may suspend the right to move a court for enforcement of specified Part III rights and suspend pending proceedings for the stated period/area.

Critical distinctions:

- the specified right is not textually deleted; its judicial enforcement is suspended;
- Articles 20 and 21 cannot be included;
- the order must identify the rights and duration/area; and
- Article 359(1A) contains law/action protections with constitutional conditions.

358 versus 359

Point	Article 358	Article 359
Trigger	Emergency based on war/external aggression	any valid National Emergency plus Presidential order
Rights affected	Article 19	specified Part III rights except 20 and 21
Operation	automatic within text	order-based
Core effect	Article 19 restriction on State power displaced	court-enforcement right suspended

UPSC trap: "All Fundamental Rights are automatically suspended in Emergency" is wrong.

HOW TO WRITE THE ANSWER PARAGRAPH

Claim: Articles 358 and 359 use different triggers, rights and legal effects during Emergency. **Named evidence:** Articles 358-359; Constitution (Forty-fourth Amendment) Act, 1978. **Analysis:** The distinction confines automatic displacement to Article 19 in external Emergency and makes other enforcement consequences order-specific.

Qualification / link: The full proclamation, approval and revocation architecture belongs to Topic 14; this session states only the required Fundamental-Rights effect.

NAMED EVIDENCE

Articles 358-359; Constitution (Forty-fourth Amendment) Act, 1978.

PRELIMS TRAP

Article 359 suspends specified court enforcement, not the existence of every named right.

MAINS USE

Use in rights-during-Emergency and non-derogable-core answers.

MINI RECAP

Article 358 is automatic and narrow; Article 359 is order-based and can never include Articles 20-21.

CLOSING RECALL FLOW - ARTICLES 358 AND 359 - TWO DIFFERENT EMERGENCY MECHANISMS

START / CONCEPT: Articles 358 and 359 - two different Emergency mechanisms

|

v

EXACT TERMS: Articles 358 · CONTENT CLASSIFICATION · war or external aggression · Trigger ·
Emergency based on war/external aggression · 359 - two different Emergency mechanisms

|

v

MECHANISM / ARGUMENT: During a National Emergency based on war or external aggression, Article 19 does not restrict State power to make/take otherwise inconsistent law/executive action within Article 358's conditions.

|

v

CONSEQUENCE / CONTRAST: the specified right is not textually deleted; its judicial enforcement is suspended; Articles 20 and 21 cannot be included; the order must identify the rights and duration/area; and Article 359(1A) contains law/action protections with constitutional conditions.

|

v

UPSC TRAP / ANSWER-USE: "All Fundamental Rights are automatically suspended in Emergency" is wrong.

|

v

ANSWER-GRABBING FORMULATION: Article 358 automatically displaces Article 19 constraints only during war or external-aggression Emergency within its conditions, whereas Article 359 requires a Presidential order suspending court enforcement of specified rights and can never include Articles 20 or 21.

27. Current-law dashboard - securely verified positions only

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (CURRENT CASES): Current Part III analysis must be date-bounded: Electoral Bonds protects political-funding information, Davinder Singh (2024) permits evidence-based Scheduled Caste sub-classification, Property Owners Association (2024) preserves original Article 31C, DPDP commencement is phased, Harish Rana applies dignified-dying safeguards to withdrawal of CANH, and BNS section 152 remains under a notified constitutional challenge without a located final merits decision.

CONTENT CLASSIFICATION: CURRENT-LAW CONTROL

Development	Settled proposition used	What this package does not claim
Electoral Bonds, 15 Feb 2024	political-funding information under Article 19(1)(a); scheme/enabling secrecy architecture invalid; unlimited corporate funding change manifestly arbitrary	no later political-finance reform is invented
Davinder Singh (2024), 1 Aug 2024	SC sub-classification permitted, evidence-based and reviewable; Article 341 list unchanged	no mandatory national sub-quota or unverified State percentage
Property Owners Association (2024), 5 Nov 2024	original Article 31C survives for 39(b)/(c); private resource inquiry context-specific	not every private asset is a material resource
BNS section 152, operative 1 Jul 2024	different successor ingredients; Supreme Court issued vires notice on 28 Aug 2025	not called a simple renaming; no later final merits disposition was located through 21 Aug 2026
DPDP Act/Rules	G.S.R. 843(E) and 846(E), 13 Nov 2025, create phased commencement; only the first notified tranche is operative by 21 Aug 2026	do not state that the whole Act/Rules are already operative
Sabarimala	2018 majority holding stated	no unverified 2026 hearing/order outcome
Places of Worship / Waqf	omitted from current-status teaching	no reliance on unverified interim-order summaries

28. Prelims close-option laboratory

Confusion pair	Correct elimination rule
citizen-only vs all-person	15, 16, 19, 29 are textually citizen-specific; 14, 20, 21, 22, 23-25 protect persons; quote Article 30's actual "all minorities" wording
State-only vs private reach	15(2), 17, 23 and 24 directly reach private conduct
equality vs exploitation	untouchability is Article 17 in equality; begar (forced unpaid labour) is Article 23
internal movement vs foreign travel	Article 19(1)(d)/(e) internal; travel abroad under Article 21
tax vs fee under Article 27	only specified religious-promotion tax is barred
propagation vs conversion	propagation does not include coercive/fraudulent conversion
procedure established vs due process	<i>Maneka Gandhi (1978)</i> requires fair, just and reasonable procedure; do not erase the textual distinction
preventive detention period	three months remains operative; 44th Amendment's two-month substitution unenforced
Article 358 vs 359	358 automatic and Article 19/external Emergency; 359 order-based and cannot include 20/21
property status	constitutional right under 300A, not Fundamental Right
awards vs titles	national awards valid; no prefix/suffix
Article 31B	Ninth Schedule is reviewable after 24 Apr 1973 under basic structure
Article 31C	surviving scope tied to 39(b)/(c), not all DPSPs
internet right	speech/trade through internet protected; no broad standalone holding in <i>Anuradha Bhasin (2020)</i>
BNS 152	successor with different ingredients; neither simple renaming nor total disappearance

29. GS-II answer architecture and qualified conclusions

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM (FINAL VERDICT): Fundamental Rights are neither absolute liberties nor revocable State gifts: they are transformative, judicially enforceable guarantees whose legitimacy lies in exact text, proportionate limitation, positive protection and a non-derogable rule-of-law core.

CONTENT CLASSIFICATION: CORE MAINS

Visual takeaway: A high-scoring Fundamental Rights answer moves from thesis and exact text to doctrine, named evidence, competing interests, dated status and a graded verdict.

Universal answer spine

1. **Direct thesis:** answer whether the right is absolute, expanding, horizontal, discriminatory or adequately protected.
2. **Exact text:** Article, beneficiary, respondent and restriction clause.
3. **Doctrine:** classification, arbitrariness, proportionality, fair procedure, ERP or writ test.
4. **Named evidence:** one case for each claim, with its holding.
5. **Competing interest:** another right, public order, efficiency, reform or institutional competence.
6. **Current control:** use only securely verified dated law.
7. **Qualified verdict:** defend rights without pretending that limits disappear.

Mark-scaled evidence load

Marks	Structure	Evidence density
10	thesis -> 2-3 constitutional dimensions -> one limit -> verdict	2-3 Articles/cases
15	thesis -> text -> doctrine evolution/comparison -> current application -> counterpoint -> verdict	4-6 named authorities
20	thesis -> architecture -> multiple rights/mechanisms -> institutional and implementation critique -> current law -> graded reform/verdict	5-8 named authorities

Qualified conclusions

- **Equality:** Indian equality is substantive and anti-hierarchical; classification and affirmative action are constitutional methods, but evidence and non-arbitrariness prevent distributive power from becoming patronage.
- **Speech:** Article 19 protects discussion and advocacy through a closed list of reasonable grounds; the modern challenge is often vague criminalisation or unreviewable process rather than absence of doctrine.
- **Article 21:** the living Constitution transformed procedure into dignity, but named rights must remain linked to enforceable standards rather than unlimited policy promises.
- **Religion:** principled distance protects conscience while preserving reform; the constitutional question is not religion versus State, but which sphere is religious, secular, unequal or harmful.
- **Remedies:** Article 32 gives rights institutional reality, while Article 226 supplies wider public-law reach; the remedy must still fit the injury.
- **Emergency:** the Forty-fourth Amendment's protection of Articles 20 and 21 is the constitutional memory of 1975-77: necessity cannot extinguish the minimum rule of law.

30. Eighth-edition integration: doctrine routing and Part XVI boundary

Article 13 doctrines in the wider interpretation map

Doctrine	Trigger	Effect	Qualification
Severability	A separable part violates the Constitution	Invalid part falls; workable valid remainder survives	Court cannot rewrite an inseparable legislative scheme
Eclipse	A pre-Constitution law conflicts with a Fundamental Right	Law becomes unenforceable to the extent of conflict and may revive if the impediment is removed	Classical field is pre-Constitution law; eclipse is not repeal
Waiver	A person purportedly consents to unconstitutional State action	Fundamental-right limits cannot ordinarily be waived to validate the action	Do not extend the rule to every private statutory/procedural right
Prospective overruling	A new constitutional rule would disrupt settled transactions	Court may shape future temporal effect	Requires an express judicial choice; it is not automatic

[LIMIT] Pith and substance, colourable legislation, territorial nexus and repugnancy are primarily legislative-competence doctrines. Their consolidated route is `basic/Constitutional-Interpretation-Doctrines.md` and their federal application belongs to Topic 13; they should not be presented as Article 13 doctrines.

Part XVI: identity of a class versus entitlement to a benefit

[FACT] Articles 341 and 342 govern specification of Scheduled Castes and Scheduled Tribes: Presidential notification identifies the list and Parliament alone includes or excludes entries. Article 342A separately structures the Central SEBC List and, after the 105th Amendment, State/UT lists prepared by law for their own purposes.

[ANALYSIS] The exam sequence is:

IDENTIFICATION OF CLASS

Arts 341 / 342 / 342A



SEPARATE BENEFIT AUTHORITY

Arts 15, 16, 330, 332, 335 or valid legislation/policy



EVIDENCE, EQUALITY AND JUDICIAL REVIEW

[LIMIT] A constitutional list does not itself create every reservation or benefit. Conversely, evidence-based sub-classification for distributing benefits does not permit a State to alter the Article 341 list.

Answer-writing evidence chain

- **Claim:** Indian equality distinguishes class identification from benefit design.
- **Named evidence:** Articles 341-342A identify protected classes; Articles 15(4)-(6), 16(4)-(6), 330, 332 and 335 provide distinct benefit or representation routes.
- **Analysis:** Separating the two questions protects list integrity while permitting tailored, evidence-based substantive equality.
- **Qualification:** *Davinder Singh (2024)* permits evidence-based SC sub-classification for distribution; it does not transfer Parliament's Article 341 inclusion/exclusion power to States.

Cross-links: [basic/Special-Provisions-Relating-to-Certain-Classes.md](#) and [basic/Constitutional-Interpretation-Doctrines.md](#).

POLITY HOSTILE SEMANTIC-REVIEW CORE CONTROL

- **Must remember:** Treat Part III as a system of beneficiaries, respondents, exact restriction grounds, positive duties, remedies and exceptional controls: Articles 12-35 must be mapped before doctrine or current cases are applied.
- **Close distinction:** Citizen-only and person-rights, Article 32 and wider Article 226, ordinary law under Article 13 and amendments under Article 368, Articles 358 and 359, and private reach versus State action are separate constitutional questions.
- **Legal/source limit:** Use current official judgments and notifications only: Electoral Bonds, *Davinder Singh (2024)*, *Property Owners Association (2024)*, phased DPDP commencement, *Harish Rana* and the pending Section 152 challenge each have a bounded proposition.

Semantic-completeness ownership and PYQ control

- **Part III architecture:** Articles 12-13 define the State/law gateway; Articles 14-18 equality; 19-22 freedom and criminal-process safeguards; 23-24 exploitation; 25-28 religion; 29-30 culture and education; Article 32 remedies; Articles 31A-31C and 33-35 are exact saving/competence controls.
- **Beneficiary and respondent:** Articles 15, 16, 19 and 29 are citizen-specific; Articles 14, 20, 21 and 25 protect persons; Article 30 speaks of minorities. Articles 15(2), 17, 23 and 24 have specified horizontal reach. Article 226 may reach public duty beyond Article 12 without rewriting the Article 12 test.
- **Equality and reservation:** reasonable classification, anti-arbitrariness, Articles 15(3)-(6), 16(4), 16(4A), 16(4B), 16(6), *Indra Sawhney (1992)*, *M. Nagaraj (2006)*, *Jarnail Singh (2018)*, *Janhit Abhiyan (2022)* and *Davinder Singh (2024)* must retain distinct holdings, evidence requirements and limits.
- **Freedoms and liberty:** quote the closed Article 19(2)-(6) grounds; distinguish Articles 20(1)-(3), *Maneka Gandhi (1978)*'s fair-just-reasonable procedure, Article 21A, and ordinary arrest from preventive detention. The uncommenced 44th-Amendment two-month text must not replace the operative three-month Article 22 ceiling.
- **Religion, minority rights and remedies:** preserve Article 25(2), Articles 26-28, the distinct limbs of Articles 29-30, the five writs and the wider Article 226 jurisdiction. Articles 358 and 359 are not interchangeable, and Articles 20-21 cannot be included in an Article 359 order.
- **Current legal controls:** Electoral Bonds (2024 INSC 113), *Davinder Singh*

(2024 INSC 562), Property Owners Association (2024) INSC 835), phased DPDP notifications G.S.R. 843(E)/846(E), Harish Rana (2026 INSC 222), and the 28 August 2025 notice on BNS Section 152 are used only for their exact official propositions.

- **Four-ledger hostile audit:** every Article, beneficiary, restriction ground, doctrine, case, amendment, exception, remedy, emergency effect and routed 2018-2026 demand was checked independently.

- **Verified PYQ ownership:** preserve all routed Mains and Prelims metadata; historical unavailable keys remain inferred, 2024 official keys stay official, and 2026 provisional keys are never promoted.

Exactly **32 original MCQs** precede the PYQ block. Keys rotate ABCDABCDABCDABCDABCDABCDABCDABCD. Every option has a unique substantive explanation and every question ends with a unique question-specific Examiner trap.

BASIC MCQS / REMEDIATION

Q1. With reference to the architecture of Part III, which statement is correct?

A. Articles 12-13 identify bound power and inconsistent law, Article 32 is itself a Fundamental Right, and Articles 31A-35 are bounded control provisions. B. Every Article between 12 and 35 is separately counted among the six present Fundamental Rights. C. Article 226 belongs to Part III and is itself a Fundamental Right. D. Article 300A remains one of the six rights because it protects property.

Answer: A.

- **A:** Correct: Part III combines gateway provisions, six present rights, a guaranteed Article 32 remedy and defined saving or special-control clauses.
- **B:** Incorrect: the six-right catalogue does not count Articles 12-13 or 31A-35 as additional substantive right families.
- **C:** Incorrect: Article 226 is a High Court power in Part VI; its breadth complements Article 32 but it is not itself a Part III right.
- **D:** Incorrect: the Forty-fourth Amendment moved property protection to Article 300A in Part XII, outside the Fundamental-Rights catalogue.

Examiner trap: The architecture question tests membership in Part III separately from membership in the six-right catalogue.

Q2. Which statement most precisely separates beneficiary language from horizontal application?

A. Every right available to a person applies directly against every private actor. B. Article 15 is citizen-specific; Article 15(2) directly reaches specified private exclusion, while Article 15(5) authorises law reaching covered private educational institutions. C. Article 17 is citizen-only because caste is a citizenship status. D. Article 19 protects all persons but is enforceable only against public corporations.

Answer: B.

- **A:** Incorrect: person-based beneficiary wording does not by itself convert every private dispute into a direct constitutional claim.
- **B:** Correct: the Article 15 clauses show why holder, direct prohibition and legislation-mediated private reach must be analysed separately.
- **C:** Incorrect: Article 17 is framed as an absolute abolition and directly reaches caste-based untouchability regardless of the actor's private status.
- **D:** Incorrect: Article 19 expressly protects citizens and primarily restrains State action; the option reverses both propositions.

Examiner trap: A right's holder and its duty-bearer are two axes; collapsing them produces the closest distractor.

Q3. A government-financed society performs a function transferred from a department and is under pervasive administrative control. What is the best approach?

A. Its registration as a society conclusively excludes Article 12. B. Only ownership of every share can make an entity State. C. Its cumulative financial, functional and administrative relationship may make it an instrumentality of the State. D. It automatically becomes Parliament for Part III purposes.

Answer: C.

- **A:** Incorrect: Ajay Hasia rejects form as conclusive; a society can satisfy the instrumentality test.
- **B:** Incorrect: total ownership is neither constitutionally required nor a substitute for the cumulative domination inquiry.
- **C:** Correct: Pradeep Kumar Biswas focuses on pervasive financial, functional and administrative government domination taken together.
- **D:** Incorrect: Article 12 status makes the body an authority bound by rights; it does not transform its institutional identity into Parliament.

Examiner trap: Corporate or society form is evidence, not the constitutional answer.

Q4. Which statement about Article 13 is constitutionally accurate?

A. Custom is excluded because only enacted measures are law. B. Every invalid provision necessarily destroys the entire enactment. C. A constitutional amendment is reviewed exactly like an ordinary notification under Article 13(2). D. Law includes custom or usage with the force of law, while constitutional amendments follow Article 368 and basic-structure review.

Answer: D.

- **A:** Incorrect: Article 13(3)(a) expressly includes custom or usage having in India the force of law.
- **B:** Incorrect: the phrase 'to the extent' supports severability where the valid remainder is workable and consistent with legislative intent.
- **C:** Incorrect: Article 13(4) and Kesavananda Bharati place amendment review on the Article 368/basic-structure route.
- **D:** Correct: the option accurately separates Article 13's broad ordinary-law definition from the constitutional-amendment control path.

Examiner trap: The question turns on two different meanings of law: Article 13 ordinary law and Article 368 constitutional amendment.

Q5. A pre-Constitution law conflicts with a Fundamental Right, but the offending shadow is later validly removed. Which combination is correct?

A. Eclipse may permit revival; severability may preserve a separable valid remainder; waiver cannot validate unconstitutional State action. B. Repugnancy permits revival; colourable legislation preserves the remainder; waiver is always available. C. Eclipse automatically applies to every post-Constitution law and permanently erases the pre-Constitution enactment. D. Severability requires striking the whole Act whenever one clause is invalid.

Answer: A.

- **A:** Correct: Bhikaji explains eclipse, severability follows 'to the extent', and Basheshar Nath treats rights as structural limits not disposable bargains.
- **B:** Incorrect: repugnancy and colourable legislation concern different constitutional inquiries, and waiver does not cure unconstitutional public power.
- **C:** Incorrect: classic eclipse concerns pre-Constitution law and describes dormancy, not permanent erasure.
- **D:** Incorrect: severability asks whether the valid residue can operate and reflects legislative intent, so whole-Act invalidation is not automatic.

Examiner trap: The doctrines are not interchangeable labels; time of enactment and legal effect identify the correct one.

Q6. Which sequence correctly states the amendment-Fundamental Rights relationship?

A. Golaknath created the basic-structure doctrine and Kesavananda abolished amendment review. B. Golaknath restricted FR-amending power prospectively; the Twenty-fourth Amendment responded; Kesavananda allowed amendment subject to basic structure. C. Shankari Prasad held that every constitutional amendment is ordinary law under Article 13. D. Minerva Mills upheld Parliament's unlimited power to give every Directive Principle priority over every Fundamental Right.

Answer: B.

- **A:** Incorrect: Golaknath used prospective overruling but basic structure emerged in Kesavananda Bharati.
- **B:** Correct: the sequence preserves the temporary Golaknath rule, Parliament's textual response and the enduring basic-structure limitation.
- **C:** Incorrect: Shankari Prasad held that a constitutional amendment was not ordinary law for Article 13 purposes.
- **D:** Incorrect: Minerva Mills invalidated unlimited amending claims and defended limited power plus harmony between Parts III and IV.

Examiner trap: Case chronology is tested together with the proposition each case actually supplied.

Q7. A classification uses an intelligible criterion but the criterion has no relation to the law's objective. Under Article 14, it

A. survives because intelligibility alone is sufficient. B. can be reviewed only if a citizen invokes Article 19. C. fails the rational-nexus limb, independently of any further arbitrariness inquiry. D. becomes valid if the legislature records a unanimous vote.

Answer: C.

- **A:** Incorrect: reasonable classification requires both intelligible differentia and a rational relation to the objective.
- **B:** Incorrect: Article 14 protects persons and supplies its own classification and anti-arbitrariness review.
- **C:** Correct: the absent nexus defeats the classification even before a broader capricious-power analysis is undertaken.
- **D:** Incorrect: legislative support does not cure a constitutionally irrational relationship between class and statutory purpose.

Examiner trap: The two limbs are cumulative, not alternative.

Q8. Which Article 15 proposition is correct?

A. Article 15(2) regulates only State-owned shops and wells. B. Article 15(5) abolishes Article 30 minority-institution protection. C. Article 15(4) was inserted by the 103rd Amendment to create EWS reservation. D. Article 15(2) directly bars specified access discrimination, while Article 15(5) enables admissions law for covered aided and unaided private institutions except Article 30(1) minority institutions.

Answer: D.

- **A:** Incorrect: Article 15(2) is a classic horizontal guarantee covering specified public-facing facilities irrespective of private ownership.
- **B:** Incorrect: the text of Article 15(5) expressly excludes minority educational institutions protected by Article 30(1).
- **C:** Incorrect: Article 15(4) followed Champakam and the First Amendment; Article 15(6) is the 103rd Amendment's EWS clause.
- **D:** Correct: this formulation states both direct horizontal reach and the distinct legislation-mediated reach of Article 15(5).

Examiner trap: Do not treat clauses (2) and (5) as identical mechanisms merely because both can affect private institutions.

Q9. Which statement about Article 16 is most accurate?

A. Article 16(4) is an enabling power for backward classes inadequately represented in State services, not a guaranteed individual quota. B. Article 16(3) lets each State executive impose any residence requirement it prefers. C. Article 16(4A) applies to every backward class in all promotions without constitutional conditions. D. Article 16(4B) abolishes Article 335's efficiency consideration.

Answer: A.

- **A:** Correct: the clause permits, but does not compel, representation-linked reservation in appointments or posts.
- **B:** Incorrect: Article 16(3) assigns the residence-prescription power to Parliament, not an unrestricted State executive.
- **C:** Incorrect: Article 16(4A) concerns SC/ST promotion reservation and remains subject to constitutional data and efficiency controls.
- **D:** Incorrect: backlog treatment does not erase Article 335 or the wider judicial-review framework.

Examiner trap: Enabling power is not the same as an enforceable claim to reservation in every cadre.

Q10. What is the exam-safe statement of the reservation ceiling after Indra Sawhney?

A. Fifty per cent is an exceptionless constitutional number that no later text or extraordinary circumstance can qualify. B. It is the ordinary doctrinal ceiling, subject to carefully justified exceptional circumstances and text-specific constitutional developments. C. It applies only to EWS reservation and never to social and educational backwardness. D. It was deleted from doctrine by Article 335.

Answer: B.

- **A:** Incorrect: the Court described an ordinary rule and recognised exceptional situations; later constitutional provisions also require their own analysis.
- **B:** Correct: this avoids both casual ceiling evasion and the inaccurate claim of a universal mathematical command.
- **C:** Incorrect: Indra Sawhney concerned backward-class reservation, while EWS arose later through the 103rd Amendment.
- **D:** Incorrect: Article 335 addresses service claims and administrative efficiency, not deletion of the ceiling doctrine.

Examiner trap: The distractor turns a strong ordinary rule into an absolute textual prohibition.

Q11. Which statement correctly states the EWS position?

A. The 103rd Amendment created only Article 16(4A). B. Janhit Abhiyan unanimously invalidated economic reservation. C. Articles 15(6) and 16(6) authorise EWS measures, and a 3:2 majority in Janhit Abhiyan upheld the 103rd Amendment. D. EWS reservation constitutionally includes classes already covered by Article 15(4) as EWS for the same benefit.

Answer: C.

- **A:** Incorrect: Article 16(4A) came through the 77th Amendment and concerns SC/ST promotion reservation.
- **B:** Incorrect: the decision was a divided 3:2 judgment upholding, not invalidating, the 103rd Amendment.
- **C:** Correct: the option gives the exact enabling clauses and accurately qualifies the majority status.
- **D:** Incorrect: the constitutional EWS clauses exclude the classes mentioned in Articles 15(4) and 16(4) from that category.

Examiner trap: Majority and unanimity are not interchangeable descriptions of Janhit Abhiyan.

Q12. After State of Punjab v. Davinder Singh (2024), which proposition is correct?

A. States may rewrite the Presidential Scheduled Castes list. B. Every State is constitutionally required to create a sub-quota. C. One sub-class may receive the entire benefit without evidence or review. D. Evidence-based sub-classification within Scheduled Castes is permissible for distributing reservation benefits, without altering the Article 341 list.

Answer: D.

- **A:** Incorrect: inclusion in or exclusion from the Article 341 list remains a constitutionally distinct parliamentary process.
- **B:** Incorrect: the judgment permits sub-classification; it does not impose a nationwide mandatory policy.
- **C:** Incorrect: evidence, non-arbitrariness and avoidance of total exclusion remain constitutional controls.
- **D:** Correct: Davinder Singh separates identification of Scheduled Castes from evidence-based distribution of benefits within the listed class.

Examiner trap: Permission to sub-classify is neither a power to amend the list nor a command to create a sub-quota.

Q13. Which combination correctly describes Articles 17 and 18?

A. Article 17 directly reaches private caste-based untouchability; Article 18 permits military and academic distinctions and properly used national awards. B. Article 17 protects only citizens against State action; Article 18 abolishes academic degrees. C. Article 17 belongs to the exploitation chapter; Article 18 applies only to hereditary citizens. D. National awards are always unconstitutional titles even when not used as prefixes or suffixes.

Answer: A.

- **A:** Correct: the pair combines horizontal abolition of caste untouchability with the text and Balaji Raghavan limits on titles.
- **B:** Incorrect: Article 17 is not citizen-only or purely vertical, and Article 18 expressly preserves academic distinctions.
- **C:** Incorrect: Article 17 sits in the equality code, while citizenship does not determine Article 18's whole field.
- **D:** Incorrect: Balaji Raghavan upheld national awards while prohibiting their title-like use before or after a name.

Examiner trap: The category label 'Right against Exploitation' is designed to lure candidates away from Article 17's actual placement.

Q14. Which list contains all six current freedoms under Article 19(1)?

A. Speech, assembly, association, property, movement and religion B. Speech, peaceful assembly, association, movement, residence and profession/trade/business C. Speech, privacy, education, movement, residence and constitutional remedies D. Assembly, association, equality, property, profession and conscience

Answer: B.

- **A:** Incorrect: property was removed from Article 19(1), and religion is principally protected by Articles 25-28.
- **B:** Correct: the list tracks clauses (a), (b), (c), (d), (e) and (g) after deletion of former clause (f).
- **C:** Incorrect: privacy, education and constitutional remedies arise from other Articles rather than the six-freedom list.
- **D:** Incorrect: equality, property and conscience are separate constitutional guarantees, not Article 19(1) entries.

Examiner trap: Former property freedom and modern derived rights are the two most plausible additions to the six-item list.

Q15. Which freedom-restriction pairing is constitutionally correct?

A. Movement - friendly relations with foreign States B. Profession - contempt of court C. Association - sovereignty and integrity, public order and morality D. Speech - protection of the interests of Scheduled Tribes

Answer: C.

- **A:** Incorrect: friendly relations is an Article 19(2) speech ground, not an Article 19(5) movement ground.
- **B:** Incorrect: contempt restricts speech; Article 19(6) uses general public interest, qualifications and State monopoly.
- **C:** Correct: Article 19(4) contains exactly those three grounds for association.
- **D:** Incorrect: Scheduled Tribe protection belongs to movement and residence under Article 19(5).

Examiner trap: Restriction grounds cannot be borrowed across clauses even when the public objective sounds plausible.

Q16. Which statement correctly combines modern speech doctrine?

A. Anuradha Bhasin created an unlimited standalone Fundamental Right to internet access and invalidated every shutdown. B. Shreya Singhal struck down section 69A but upheld section 66A. C. BNS section 152 is textually identical to IPC section 124A and has been finally upheld by the Supreme Court. D. Shreya Singhal invalidated section 66A but retained safeguarded blocking; Anuradha Bhasin protected speech/trade through the internet as a medium; section 152 has distinct ingredients and no located final merits ruling through 7 September 2026.

Answer: D.

- **A:** Incorrect: the Court protected existing freedoms exercised through the medium and required proportionate, published and reviewable orders.
- **B:** Incorrect: the holding is reversed; section 66A fell for vagueness and overbreadth, while section 69A survived with safeguards.
- **C:** Incorrect: the successor text differs and the located official record shows notice on vires, not a final merits judgment.
- **D:** Correct: the option preserves each settled holding and separately date-bounds the pending section 152 challenge.

Examiner trap: A current-status option is wrong if it converts notice, medium or safeguard into a broader final holding.

Q17. Which statement about Article 20 is correct?

A. It bars retrospective creation or enhancement of criminal liability, repeated prosecution and punishment for the same offence, and compelled testimonial self-incrimination. B. It protects only citizens and may be included in an Article 359 order. C. Article 20(2) bars every departmental proceeding following a criminal case. D. Article 20(3) prevents collection of all fingerprints, handwriting and bodily samples.

Answer: A.

- **A:** Correct: the option states the three distinct person-protective criminal shields in clauses (1), (2) and (3).
- **B:** Incorrect: Article 20 protects persons and, after the Forty-fourth Amendment, cannot be included in an Article 359 enforcement order.
- **C:** Incorrect: double jeopardy requires the constitutional prosecution-and-punishment conditions for the same offence.
- **D:** Incorrect: Kathi Kalu Oghad distinguishes physical identifying material from compelled testimonial communication.

Examiner trap: The repeated-proceeding distractor omits the conjunctive words 'prosecuted and punished'.

Q18. Which situation most directly attracts Article 20(3)?

A. A lawfully obtained fingerprint sample from a person not accused of an offence B. Compelling an accused to communicate personal knowledge that is incriminating and testimonial C. A beneficial retrospective reduction of punishment D. A departmental inquiry after an acquittal where no second criminal prosecution occurs

Answer: B.

- **A:** Incorrect: physical identifying evidence is not by itself compelled testimonial self-incrimination, and the accused-status gate is also absent.
- **B:** Correct: Article 20(3) requires accused status, compulsion and testimonial communication exposing the person against self.
- **C:** Incorrect: Article 20(1) does not bar a beneficial retrospective penal change.
- **D:** Incorrect: a departmental inquiry is not automatically a second prosecution and punishment for Article 20(2).

Examiner trap: Test all three gates-accused, compulsion and testimonial character-rather than focusing only on incrimination.

Q19. Which sequence best describes Article 21's doctrinal evolution?

A. Puttaswamy -> A.K. Gopalan -> Maneka Gandhi B. Maneka Gandhi -> R.C. Cooper -> A.K. Gopalan C. A.K. Gopalan's siloed procedure -> R.C. Cooper's effects approach -> Maneka Gandhi's fair, just and reasonable procedure D. Golaknath -> Indra Sawhney -> Minerva Mills

Answer: C.

- **A:** Incorrect: the dates and doctrinal direction are reversed; privacy is a later application of the expanded liberty framework.
- **B:** Incorrect: Maneka completed rather than preceded the Cooper-led weakening of the silo theory.
- **C:** Correct: this is the standard chronological bridge from narrow legality to interlocking fairness review.
- **D:** Incorrect: those cases address amendment, reservation and Part III-IV harmony rather than the Article 21 procedure arc.

Examiner trap: The case names are familiar; only their chronological mechanism identifies the right answer.

Q20. Which statement most accurately states privacy and intimate-autonomy doctrine?

A. Puttaswamy made every privacy claim absolute. B. Navtej Singh Johar judicially created a Fundamental Right to same-sex marriage. C. Supriyo held that the Special Marriage Act must be rewritten by courts to recognise every union. D. Puttaswamy requires legality, legitimate aim, proportionality and safeguards; Navtej protects consensual adult same-sex intimacy, while Supriyo did not judicially create same-sex marriage and its review was dismissed in 2025.

Answer: D.

- **A:** Incorrect: privacy is fundamental but qualified through a structured justification test.
- **B:** Incorrect: Navtej read down criminalisation of consensual adult intimacy; it did not decide a marriage-status entitlement.
- **C:** Incorrect: the Constitution Bench declined to judicially reconstruct the Special Marriage Act in that manner.
- **D:** Correct: the option keeps settled privacy and intimacy holdings separate from the marriage-equality boundary and later review status.

Examiner trap: Privacy, intimacy and civil status overlap factually but are not the same judicial holding.

Q21. Which Article 21A proposition is correct?

A. It guarantees free and compulsory education for children aged six to fourteen, implemented through the RTE framework with a distinct Article 30 minority-institution boundary. B. It covers every person from birth through university. C. It repealed Article 45 and Article 51A(k). D. Pramati required the RTE obligation to override minority educational autonomy in all cases.

Answer: A.

- **A:** Correct: the age band, statutory implementation and minority-institution qualification state the constitutional design precisely.
- **B:** Incorrect: Article 21A is textually limited to children aged six to fourteen.
- **C:** Incorrect: the Eighty-sixth Amendment recast Article 45 and inserted the parental duty in Article 51A(k); it did not repeal both.
- **D:** Incorrect: Pramati protected minority institutions from an application that would violate Article 30.

Examiner trap: The most common error expands the age band and then forgets the Article 30 boundary.

Q22. Which statement correctly distinguishes ordinary arrest from preventive detention?

A. Every preventive detainee has the Article 22(1) lawyer and 24-hour production guarantees. B. Ordinary arrest carries clauses (1)-(2) safeguards; preventive detention follows clauses (4)-(7), and the operative no-Advisory-Board ceiling remains three months. C. The Forty-fourth Amendment's proposed two-month period is already the operative constitutional text. D. Preventive detention is punishment after conviction for completed conduct.

Answer: B.

- **A:** Incorrect: Article 22(3) excludes preventive detention from the ordinary clauses (1)-(2), though other constitutional and statutory safeguards remain.
- **B:** Correct: the option separates the two branches and states the current uncommenced-amendment trap accurately.
- **C:** Incorrect: the two-month substitution has not been brought into force.
- **D:** Incorrect: preventive detention addresses anticipated harmful conduct, unlike punitive detention following adjudication.

Examiner trap: Do not transfer safeguards or time limits from one Article 22 branch into the other.

Q23. Which proposition about Articles 23 and 24 is correct?

A. Both Articles operate only against the State. B. Article 23 covers only trafficking across an international border. C. Article 23 reaches trafficking, begar and similar forced labour by public or private actors; Article 24 bars children below fourteen from factory, mine and hazardous employment. D. Article 24's constitutional wording is identical to every later statutory child-labour prohibition and exception.

Answer: C.

- **A:** Incorrect: both guarantees have horizontal reach against private exploitation.
- **B:** Incorrect: Article 23 covers trafficking and forced-labour practices without an international-border requirement.
- **C:** Correct: the option states the constitutional reach, beneficiary and distinct child-labour rule.
- **D:** Incorrect: later statutes regulate a wider and more detailed field; their categories must not be substituted for Article 24's text.

Examiner trap: The constitutional and statutory child-labour rules are related but not textually coextensive.

Q24. Which statement correctly compares Articles 25 and 26?

A. Article 25 protects denominations only, while Article 26 protects every individual's conscience. B. Both rights are absolute once a claimant labels conduct religious. C. Article 25(2) prevents all social-reform legislation. D. Article 25 protects individual conscience and profession, practice and propagation; Article 26 protects denominational affairs, both within stated limits and secular-regulation boundaries.

Answer: D.

- **A:** Incorrect: the option reverses the primary beneficiaries of the two provisions.
- **B:** Incorrect: public order, morality, health and other constitutional controls remain relevant.
- **C:** Incorrect: Article 25(2) expressly preserves secular regulation and social-reform measures.
- **D:** Correct: the comparison identifies claimant, protected activity and the constitutional qualification structure.

Examiner trap: Individual and denominational rights overlap but cannot be swapped.

Q25. Which statement about Articles 27 and 28 is correct?

A. Article 27 bars a specifically appropriated religion-promoting tax, while Article 28 distinguishes wholly State-maintained, trust-administered and aided or recognised institutions. B. Article 27 prohibits every regulatory fee connected with any religious institution. C. Article 28 forbids academic study about religion in every educational institution. D. Article 28 permits compulsory religious instruction in every aided institution without consent.

Answer: A.

- **A:** Correct: the option preserves the fiscal-purpose test and all three institutional categories in Article 28.
- **B:** Incorrect: tax purpose and appropriation must be distinguished from a regulatory fee or neutral general levy.
- **C:** Incorrect: objective education about religions is not automatically the religious instruction prohibited by the clause.
- **D:** Incorrect: Article 28(3) protects against compelled attendance without the required consent in covered institutions.

Examiner trap: Tax versus fee and instruction versus academic study are separate close-option distinctions.

Q26. What is the most defensible use of the Essential Religious Practices doctrine?

A. Any long-standing practice is automatically essential and immune. B. Use essentiality as a threshold within a text-first inquiry, then apply explicit limits, competing rights, reform power and proportionality with institutional caution. C. Courts must decide theology without examining public order, equality or harm. D. The doctrine has been formally deleted from all religious-freedom cases.

Answer: B.

- **A:** Incorrect: antiquity alone does not establish theological essentiality or constitutional immunity.
- **B:** Correct: this formulation captures both the doctrine's separating function and the criticism that judges may become theologians.
- **C:** Incorrect: Articles 25-26 expressly require analysis of constitutional limits and regulatory fields.
- **D:** Incorrect: ERP remains part of doctrine, though its role and method are contested.

Examiner trap: The qualified answer neither canonises nor invents the abolition of ERP.

Q27. Which statement about Articles 29 and 30 is accurate?

A. Article 29 is available only to minorities and Article 30 to all cultural groups. B. Article 30 prevents every academic or administrative regulation. C. Article 29 protects specified interests of sections of citizens and admission non-discrimination; Article 30 protects religious and linguistic minority institutions, generally assessed State-wise. D. Article 29(2) permits denial of aided-institution admission solely on language.

Answer: C.

- **A:** Incorrect: Article 29 is not minority-exclusive, while Article 30 specifically addresses religious and linguistic minorities.

- **B:** Incorrect: minority autonomy does not include maladministration; regulations preserving excellence may survive if they do not destroy identity.
- **C:** Correct: the option states beneficiary wording, distinct functions and the T.M.A. Pai minority-unit rule.
- **D:** Incorrect: Article 29(2) expressly prohibits covered admission denial only on religion, race, caste or language.

Examiner trap: The Articles are adjacent, but their beneficiary words and protected interests are not interchangeable.

Q28. Which proposition correctly compares Articles 32 and 226?

A. Article 32 enforces every legal right, while Article 226 is confined to Fundamental Rights. B. Article 226 is unavailable against a non-State body performing a public duty. C. Article 32 is only a discretionary statutory appeal. D. Article 32 is itself a Fundamental Right for Part III enforcement; Article 226 is wider in subject matter and may reach public duties beyond Article 12 State status.

Answer: D.

- **A:** Incorrect: the scopes are reversed; Article 32 requires a Fundamental-Rights claim, while Article 226 extends to other legal rights.
- **B:** Incorrect: public-duty reach is a defining reason Article 226 can extend beyond the Article 12 classification.
- **C:** Incorrect: Article 32 is a constitutional Fundamental Right and original remedial jurisdiction, not a statutory appeal.
- **D:** Correct: the option preserves guaranteed access, wider High Court scope and the distinct public-duty inquiry.

Examiner trap: Guaranteed status and wider subject-matter scope belong to different Articles.

Q29. A tribunal is about to decide a matter outside its jurisdiction. Which writ and timing fit best?

A. Prohibition, because it prevents threatened jurisdictional excess before the proceeding is completed. B. Certiorari, because it always operates prospectively before any order. C. Quo warranto, because every tribunal holds a public office unlawfully. D. Habeas corpus, because any jurisdictional error is a detention.

Answer: A.

- **A:** Correct: prohibition is the preventive writ directed at an inferior court or tribunal acting beyond jurisdiction.
- **B:** Incorrect: certiorari ordinarily quashes a completed defective order rather than stopping the pending excess.
- **C:** Incorrect: quo warranto tests legal authority to occupy a substantive public office, not ordinary tribunal jurisdiction.
- **D:** Incorrect: habeas corpus addresses unlawful detention, not every adjudicatory error.

Examiner trap: Prohibition and certiorari are separated chiefly by the stage and remedial function.

Q30. Which statement correctly combines Articles 31A-31C and Article 300A?

A. Ninth Schedule insertion creates absolute immunity from all judicial review. B. Article 31A protects specified reform fields; post-24 April 1973 Ninth Schedule insertions face basic-structure review; original Article 31C is limited to genuine Article 39(b)-(c) laws; property now rests in Article 300A. C. Article 31C gives every Directive Principle automatic priority over all Fundamental Rights. D. Article 300A is a citizen-only Fundamental Right enforceable solely through Article 32.

Answer: B.

- **A:** Incorrect: Waman Rao and I.R. Coelho preserve review of later insertions for basic-structure damage.
- **B:** Correct: the option distinguishes the three saving mechanisms and the post-Forty-fourth property location.
- **C:** Incorrect: Minerva Mills invalidated the extension of Article 31C protection to all Directive Principles.
- **D:** Incorrect: Article 300A protects persons as a constitutional right outside Part III and does not create an automatic Article 32 route.

Examiner trap: A single word-absolute-usually signals the false Ninth Schedule option.

Q31. Which proposition about Articles 33-35 and martial law is correct?

A. Article 33 directly authorises every commander to cancel any right without law. B. Martial law and National Emergency are identical expressions for the same proclamation. C. Parliament may tailor rights for specified forces or services under Article 33; Article 34 concerns indemnity where martial law existed; Article 35 reserves listed Part III legislation to Parliament. D. Article 34 automatically suspends habeas corpus throughout India.

Answer: C.

- **A:** Incorrect: Article 33 allocates the restriction or abrogation power to Parliament for constitutionally specified purposes and personnel.
- **B:** Incorrect: martial law is an undefined local exceptional condition, while National Emergency is an express constitutional regime.
- **C:** Correct: the option accurately separates discipline, indemnity and exclusive legislative competence.
- **D:** Incorrect: Article 34 does not create a nationwide automatic habeas-corpus suspension.

Examiner trap: Each of Articles 33, 34 and 35 answers a different question: personnel, indemnity and law-maker.

Q32. Which statement accurately distinguishes Articles 358 and 359 after the Forty-fourth Amendment?

A. Both automatically suspend every Fundamental Right during any Emergency. B. Article 359 deletes the text of every right named in a Presidential order. C. Article 358 applies to internal-disturbance Emergency and Article 359 may include Articles 20 and 21. D. Article 358 automatically affects Article 19 only in war or external-aggression Emergency within its conditions; Article 359 requires a Presidential order suspending specified enforcement and can never include Articles 20 or 21.

Answer: D.

- **A:** Incorrect: the provisions differ in trigger, right, mechanism and effect; neither erases the entire Part III catalogue automatically.
- **B:** Incorrect: Article 359 suspends the right to move court for specified enforcement during the order; it does not repeal the right's text.
- **C:** Incorrect: the Forty-fourth Amendment narrowed Article 358 to external Emergency and insulated Articles 20-21 from Article 359.
- **D:** Correct: the option states the automatic narrow mechanism and the separate order-based enforcement mechanism precisely.

Examiner trap: The exam hinge is automatic Article 19 displacement versus order-based enforcement suspension.

PYQS AND ANSWER PRACTICE

Audited PYQ ownership and key discipline

| Type | Count | Answer-key treatment |

|---|---|---|

| Direct/routed Mains PYQs | 6 | Exact question wording with full demand-specific model answers |

| Direct/routed objective PYQs | 15 | 2024 Q76 uses the held final local-official key; the other 14 letters are withheld |

| Total audited PYQs | 21 | No adjacent question is promoted as a direct owner |

Direct/routed Mains PYQs

Mains PYQ 1. UPSC 2019 GS-II Q5 - What can France learn from the Indian Constitution's approach to secularism? (10 marks, 150 words)

Model answer. Thesis: France can learn from India that secularism in a deeply plural society may require principled engagement with religion rather than only a strict public-private wall. **Constitutional design:** Articles 25-26 protect individual conscience and denominational autonomy, while Articles 27-28 restrain religious taxation and instruction. Yet Article 25(2) allows regulation of secular activity and social reform; Article 17 abolishes untouchability. **Analysis:** This creates three lessons for French laïcité. First, equal citizenship need not erase public religious identity. Second, accommodation - such as denomination-sensitive autonomy - can coexist with public order, health, morality and equality. Third, the State may intervene asymmetrically where reform is needed, while maintaining equal concern for all faiths. *S.R. Bommai* treats secularism as a basic feature, and *Shirur Mutt* distinguishes protected religious affairs from regulable secular administration. **Qualification:** India's model also risks selective intervention and judicial theology through the ERP test; France cannot transplant it without its own constitutional history. **Conclusion:** The transferable lesson is not State religiosity, but context-sensitive neutrality: protect conscience, regulate harm and preserve equal citizenship.

Why this earns marks: It answers "what can learn," uses Articles 17 and 25-28 plus *Bommai* and *Shirur Mutt*, compares institutional logics, states a limitation and gives a graded conclusion.

How to improve this answer: In the final 30 seconds, add a two-column France/India contrast and name Article 25(2) as the reform lever; this prevents the answer from becoming a generic defence of Indian secularism.

Mains PYQ 2. UPSC 2021 GS-II Q13 - Analyze the distinguishing features of the notion of Right to Equality in the Constitutions of the USA and India. (15 marks, 250 words)

Model answer. Thesis: Both Constitutions reject arbitrary hierarchy, but India constitutionalises a broader, group-conscious equality code while the US model centres on the Fourteenth Amendment's Equal Protection Clause.

Text and structure: Article 14 combines British **equality before law** with American **equal protection of laws**. India then adds Articles 15-16 on prohibited grounds and public opportunity, Article 17's abolition of untouchability, and Article 18's abolition of titles. The US Constitution has no direct equivalent of this five-Article code.

Substantive equality: India expressly authorises special provisions for women/children, SEBCs, SCs/STs and EWS under Articles 15(3)-(6), and service reservation under Article 16(4)-(6). In the US, affirmative action developed judicially/statutorily under a text that does not expressly authorise group reservations; judicial review uses tiered scrutiny.

Judicial tests: Indian courts use intelligible differentia plus rational nexus, and since *E.P. Royappa* (1973) and *Maneka Gandhi* (1978), anti-arbitrariness. *Indra Sawhney* (1992) adds creamy-layer and ordinary ceiling discipline; *Janhit Abhiyan* (2022) upheld EWS by majority. US doctrine differentiates strict, intermediate and rational-basis scrutiny.

Enforcement and social context: Article 32 itself is a Fundamental Right; Article 17 directly reaches private caste practice. US equal-protection duties generally require State action, though civil-rights statutes regulate private discrimination.

Qualification: Neither system is purely formal or purely group-blind; both have contested affirmative-action histories. **Conclusion:** India's distinctive feature is an explicit anti-hierarchy and protective-discrimination Constitution, whereas US equality grows from a general clause through judicial tiers.

Why this earns marks: It compares text, beneficiaries, affirmative action, judicial tests, private reach and remedies rather than merely listing provisions; it uses named doctrine and avoids caricaturing either system.

How to improve this answer: Add one concrete US authority or contemporary affirmative-action reference and compress the Indian reservation detail into a comparison table so every paragraph remains explicitly comparative.

Mains PYQ 3. UPSC 2022 GS-II Q2 - "Right of movement and residence throughout the territory of India are freely available to the Indian citizens, but these rights are not absolute." Comment. (10 marks, 150 words)

Model answer. Thesis: Articles 19(1)(d) and 19(1)(e) make internal mobility and settlement core incidents of common citizenship, but Article 19(5) expressly subjects both to reasonable restrictions.

Scope: The freedoms belong only to citizens and operate against State restriction. They promote national integration, labour mobility and personal choice. Travel abroad, however, is protected under Article 21 after *Maneka Gandhi* (1978), not Article 19(1)(d).

Limits: Article 19(5) permits restrictions in the interests of the general public or for protection of Scheduled Tribes. Constitutionally supportable illustrations include carefully drawn protected-area/tribal-land regimes, public-health quarantine and proportionate public-order restrictions. A restriction still requires valid law, rational connection, necessity and non-arbitrariness under Articles 14 and 19.

Qualification: "General public interest" is not an executive blank cheque; excessive duration, geographic breadth or discriminatory implementation can fail reasonableness.

Conclusion: Movement and residence are presumptive freedoms within a single Union, while Article 19(5) preserves proportionate protection of vulnerable communities and genuine public interests.

Why this earns marks: It names both freedoms and the exact Article 19(5) grounds, distinguishes foreign travel, applies proportionality and ends with a qualified comment.

How to improve this answer: Draw the Article 19(1)(d)/(e) -> Article 19(5) restriction chain and use one tribal-protection illustration; do not spend scarce words on unrelated migration policy.

Mains PYQ 4. UPSC 2023 GS-II Q11 - "The Constitution of India is a living instrument with capabilities of enormous dynamism. It is a constitution made for a progressive society." Illustrate with special reference to the expanding horizons of the right to life and personal liberty. (15 marks, 250 words)

Model answer. Thesis: Article 21 demonstrates constitutional dynamism: an apparently procedural guarantee has become a dignity-based charter without textual replacement.

Doctrinal arc: *A.K. Gopalan* (1950) read "procedure established by law" narrowly and treated rights as silos. *R.C. Cooper* (1970) shifted attention to the effect of State action. *Maneka Gandhi* (1978) then required procedure to be fair, just and reasonable and linked Articles 14, 19 and 21.

Expanding horizons: *Francis Coralie Mullin* made dignity central; *Hussainara Khatoon* recognised speedy trial; *M.H. Hoskot* and Article 39A support free legal aid; *Olga Tellis* protected livelihood through fair procedure; *D.K. Basu* constitutionalised arrest safeguards and compensation; environmental cases linked clean air/water to life. *K.S. Puttaswamy* (2017) unanimously protected bodily, decisional and informational privacy. *Navtej Singh Johar* applied dignity, privacy and equality to intimate autonomy.

Progressive constitutionalism: These holdings allow old text to answer new problems - surveillance, data processing, custodial power and reproductive choice. The later insertion of Article 21A shows that interpretation and amendment can complement each other.

Qualification: Expansion must retain administrable standards. *Olga Tellis*, for example, did not create immunity from eviction; recognition of livelihood required fair procedure. Courts should secure a rights floor without converting every policy aspiration into an unlimited entitlement.

Conclusion: Article 21 is "living" because stable text is repeatedly applied through dignity, fairness and proportionality to changing forms of power.

Why this earns marks: It directly illustrates dynamism through a chronological case arc, uses more than six named holdings, explains what each proves and includes an institutional limitation.

How to improve this answer: Use a four-step timeline-*A.K. Gopalan* (1950), *Cooper*, *Maneka Gandhi* (1978), *K.S. Puttaswamy* (2017)-then attach only one modern application to each step; this improves chronology and stays within 250 words.

Mains PYQ 5. UPSC 2023 GS-II Q12 - Explain the constitutional perspectives of Gender Justice with the help of relevant Constitutional Provisions and case laws. (15 marks, 250 words)

Model answer. Thesis: The Constitution moves gender justice from formal non-discrimination to substantive equality, dignity, autonomy and institutional protection.

Equality: Articles 14 and 16 guarantee equality and public opportunity; Article 15(1) bars discrimination only on sex, while Article 15(3) authorises special provisions for women and children. This permits corrective measures rather than requiring gender blindness.

Freedom and dignity: Articles 19(1)(a)/(g) and 21 protect voice, work, bodily integrity, reproductive choice and decisional autonomy. Article 23 attacks trafficking; Article 39(d), 42 and 51A(e) strengthen equal pay, humane work/maternity relief and rejection of practices derogatory to women's dignity.

Cases: *Vishaka (1997) v. State of Rajasthan* converted Articles 14, 19(1)(g) and 21 plus CEDAW into binding workplace-harassment safeguards until legislation. *Anuj Garg* rejected paternalistic exclusion from employment. *Joseph Shine* invalidated adultery law that treated women as marital property. *Secretary, Ministry of Defence v. Babita Puniya* rejected stereotypes in permanent commission. *Suchita Srivastava* linked reproductive choice to liberty; *Shayara Bano* used equality/manifest arbitrariness against instant triple talaq.

Qualification: Protective law can itself become paternalistic; the test is whether it expands agency or fixes women into dependency. Social justice delivery and representation remain uneven despite constitutional doctrine.

Conclusion: Gender justice requires the State to remove direct discrimination, dismantle structural stereotypes and protect equal autonomy in public and private life.

Why this earns marks: It integrates Fundamental Rights, DPSPs/duty and six targeted cases, distinguishes protection from paternalism and preserves the Social Justice implementation cross-link.

How to improve this answer: Organise the body as equality, autonomy, work and protection, and add one implementation gap such as unpaid care or workplace enforcement to satisfy the constitutional "perspectives" demand.

Mains PYQ 6. UPSC 2024 GS-II Q12 - Right to privacy is intrinsic to life and personal liberty and is inherently protected under Article 21 of the Constitution. Explain. In this reference discuss the law relating to D.N.A. testing of child in the womb to establish its paternity. (15 marks, 250 words)

Model answer. Thesis: Privacy is a constitutionally protected sphere of bodily integrity, decisional autonomy and personal information, but a lawful, necessary and proportionate intrusion may be justified for a compelling adjudicatory need.

Constitutional basis: *K.S. Puttaswamy (2017)*, a nine-judge decision, held privacy intrinsic to Article 21 and Part III. Interference requires law, legitimate aim, proportionality and safeguards. Pregnancy and DNA sampling engage the woman's bodily integrity, the child's identity/dignity and family privacy; they cannot be treated as ordinary documentary discovery.

Paternity framework: Bharatiya Sakshya Adhiniyam, 2023 section 116 continues the conclusive presumption that a child born during a valid marriage, or within 280 days after dissolution while the mother remains unmarried, is legitimate unless non-access is proved. The presumption protects status and social dignity. Courts have therefore required a strong prima facie foundation or eminent need before DNA testing, considered less intrusive evidence, and prioritised the child's welfare. *Bhabani Prasad Jena* cautioned against routine tests; *Nandlal Wasudeo Badwaik* shows that reliable DNA evidence can become decisive where testing is lawfully justified.

Qualification: Truth-seeking is legitimate, but compulsion must not become a roving inquiry. Refusal may have evidentiary consequences only within fair procedure; it does not automatically erase bodily autonomy or the statutory presumption.

Conclusion: Privacy does not create absolute immunity from DNA evidence; it converts the judicial question into one of legality, necessity, child-centred proportionality and safeguards.

Why this earns marks: It answers both halves, updates the evidence-law section, uses *K.S. Puttaswamy (2017)* plus paternity authorities, applies the four-part privacy test and gives a precise qualified conclusion.

How to improve this answer: State BSA section 116 and the non-access exception in a separate legal-rule sentence, then apply necessity, less-intrusive alternatives and child welfare to the prenatal facts in that order.

Direct/routed objective PYQs

Prelims PYQ 1. UPSC 2018 GS-I Q92 - Privacy

Right to Privacy is protected as an intrinsic part of Right to Life and Personal Liberty. Which of the following in the Constitution of India correctly and appropriately imply the above statement?

- A. Article 14 and the provisions under the Amendment to the Constitution
- B. Article 17 and the Directive Principles of State Policy in Part IV
- C. Article 21 and the freedoms guaranteed in Part III
- D. Article 24 and the provisions under the 44th Amendment to the Constitution

Answer withheld pending official UPSC key.

Explanation: *K.S. Puttaswamy (2017)* states that privacy is intrinsic to Article 21 and forms part of the freedoms guaranteed by Part III. Article 14 contributes equality review, but option A's amendment formulation is not the holding.

Prelims PYQ 2. UPSC 2019 GS-I Q56 - Right to marry

Which Article of the Constitution of India safeguards one's right to marry the person of one's choice?

- A. Article 19
- B. Article 21
- C. Article 25
- D. Article 29

Answer withheld pending official UPSC key.

Explanation: Adult choice in marriage is protected through life, liberty, dignity and autonomy under Article 21, illustrated by *Lata Singh* and *Shafin Jahan*.

Prelims PYQ 3. UPSC 2019 GS-I Q85 - Liberty

In the context of polity, which one of the following would you accept as the most appropriate definition of liberty?

- A. Protection against the tyranny of political rulers
- B. Absence of restraint
- C. Opportunity to do whatever one likes
- D. Opportunity to develop oneself fully

Answer withheld pending official UPSC key.

Explanation: Constitutional liberty is not mere absence of restraint or licence; it creates the protected sphere in which personality and capacity can develop consistently with others' equal freedom.

Prelims PYQ 4. UPSC 2020 GS-I Q4 - Untouchability

Which one of the following categories of Fundamental Rights incorporates protection against untouchability as a form of discrimination?

- A. Right against Exploitation
- B. Right to Freedom
- C. Right to Constitutional Remedies
- D. Right to Equality

Answer withheld pending official UPSC key.

Explanation: Article 17 lies within Articles 14-18, the Right to Equality. Article 23, not Article 17, addresses begar (forced unpaid labour) and forced labour.

Prelims PYQ 5. UPSC 2021 GS-I Q79 - Privacy Article

'Right to Privacy' is protected under which Article of the Constitution of India?

- A. Article 15
- B. Article 19
- C. Article 21
- D. Article 29

Answer withheld pending official UPSC key.

Explanation: Privacy is intrinsic to Article 21 and Part III. Some privacy applications also engage Article 19, but the requested Article is 21.

Prelims PYQ 6. UPSC 2021 GS-I Q82 - Judicial custody

With reference to India, consider the following statements:

1. Judicial custody means an accused is in the custody of the concerned magistrate and such accused is locked up in police station, not in jail.
2. During judicial custody, the police officer in charge of the case is not allowed to interrogate the suspect without the approval of the court.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Explanation: Judicial custody ordinarily places the accused in jail under judicial authority, not a police station, so statement 1 is false. Police interrogation during judicial custody requires court permission, making statement 2 correct.

Prelims PYQ 7. UPSC 2021 GS-I Q83 - Parole

With reference to India, consider the following statements:

1. When a prisoner makes out a sufficient case, parole cannot be denied because it becomes a matter of right.
2. State Governments have their own Prisoners Release on Parole Rules.

Which of the statements given above is/are correct?

- A. 1 only
- B. 2 only
- C. Both 1 and 2
- D. Neither 1 nor 2

Answer withheld pending official UPSC key.

Explanation: Parole is ordinarily discretionary and governed by applicable prison/parole rules; it is not an automatic Fundamental Right. Prisons are a State subject and States maintain their own rule frameworks.

Prelims PYQ 8. UPSC 2021 GS-I Q85 - Unguided discretion

A legislation which confers on the executive or administrative authority an unguided and uncontrolled discretionary power in the matter of application of law violates which one of the following Articles?

- A. Article 14
- B. Article 28
- C. Article 32
- D. Article 44

Answer withheld pending official UPSC key.

Explanation: Uncanalised discretion is arbitrary and violates Article 14's equality/non-arbitrariness guarantee.

Prelims PYQ 9. UPSC 2021 GS-I Q92 - Right to Property

What is the position of the Right to Property in India?

- A. Legal right available to citizens only
- B. Legal right available to any person
- C. Fundamental Right available to citizens only
- D. Neither Fundamental Right nor legal right

Answer withheld pending official UPSC key.

Explanation: Article 300A protects "no person," so it is not citizen-only. The technically fuller description is a constitutional right, not a Fundamental Right; among the options, B is correct.

Prelims PYQ 10. UPSC 2021 GS-I Q96 - Bharat Ratna and Padma Awards

Consider the following statements:

1. Bharat Ratna and Padma Awards are titles under Article 18(1).
2. Padma Awards, instituted in 1954, were suspended only once.
3. The number of Bharat Ratna Awards is restricted to a maximum of five in a particular year.

Which of the above statements are not correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

Answer withheld pending official UPSC key.

Explanation: National awards are not prohibited titles (*Balaji Raghavan*); Padma awards were suspended in more than one period; and Bharat Ratna regulations do not set a five-per-year maximum (the conventional annual cap is three). All three statements are incorrect.

Prelims PYQ 11. UPSC 2022 GS-I Q18 - Mandamus and Quo Warranto

With reference to the writs issued by the Courts in India, consider the following statements:

1. Mandamus will not lie against a private organisation unless it is entrusted with a public duty.
2. Mandamus will not lie against a Company even though it may be a Government Company.
3. Any public-minded person can be a petitioner to move the Court to obtain the writ of Quo Warranto.

Which of the statements given above are correct?

- A. 1 and 2 only
- B. 2 and 3 only
- C. 1 and 3 only
- D. 1, 2 and 3

Answer withheld pending official UPSC key.

Explanation: Mandamus can reach a private body entrusted with public duty and can reach a government company where public duty exists, so statement 2 is false. Quo warranto uses relaxed standing because it protects the public character of an office.

Prelims PYQ 12. UPSC 2023 GS-I Q31 - Due Process

In essence, what does 'Due Process of Law' mean?

- A. The principle of natural justice
- B. The procedure established by law
- C. Fair application of law
- D. Equality before law

Answer withheld pending official UPSC key.

Explanation: Due process in essence requires fair hearing, impartiality and non-arbitrary procedure - the principles of natural justice. Option C is close but less doctrinally precise; *Maneka Gandhi (1978)* reads fairness into Article 21's procedure-established formulation.

Prelims PYQ 13. UPSC 2023 GS-I Q40 - Reservation and efficiency

Consider the following statements:

Statement I: The Supreme Court has held in some judgments that reservation policies made under Article 16(4) would be limited by Article 335 for maintenance of efficiency of administration.

Statement II: Article 335 defines the term 'efficiency of administration'.

Which one of the following is correct?

- A. Both are correct and II correctly explains I
- B. Both are correct but II does not explain I
- C. I is correct but II is incorrect
- D. I is incorrect but II is correct

Answer withheld pending official UPSC key.

Explanation: Article 335 supplies the efficiency consideration but does not define "efficiency of administration." The Court has used it in reservation doctrine, so I is true and II false.

Prelims PYQ 14. UPSC 2024 GS-I Q76 - Right to Privacy

Under which of the following Articles of the Constitution of India has the Supreme Court placed the Right to Privacy?

- A. Article 15
- B. Article 16
- C. Article 19
- D. Article 21

OFFICIAL LOCAL UPSC KEY VERIFIED: D.

Explanation: The local official Set-A key records Q76 as D. *K.S. Puttaswamy (2017)* placed privacy intrinsically within Article 21 and Part III.

Prelims PYQ 15. UPSC 2026 GS-I Q54 - Article 13 and custom

'X' was addressing a seminar on the meaning of the term 'law' under Article 13. X explained that law included ordinances, orders, rules and regulations, but was not convinced that custom or usage having the force of law was included. 'Y' maintained that such custom or usage was included. Select the correct conclusion:

- A. X is correct, including on non-inclusion of custom
- B. Y's view that law includes custom is incorrect
- C. The views of both X and Y are correct
- D. Only Y's view is correct

Answer withheld pending official UPSC key.

Explanation: Article 13(3)(a) expressly includes custom or usage having in India the force of law. X's examples are correct, but X's rejection of custom is wrong; Y alone is correct. The local Set-A provisional key records Q54 as D.

Six original Mains questions with complete model solutions

Original Q1 - Article 13 makes judicial review practical through a family of doctrines. Discuss severability, eclipse and waiver. (10 marks, 150 words)

Model answer. Thesis: Article 13 invalidates law "to the extent" of inconsistency, allowing courts to protect rights without mechanically erasing an entire legal order.

Severability: If the offending provision can be removed and the remainder remains workable and legislatively intended, only the invalid portion falls. This gives operational meaning to "to the extent of."

Eclipse: Under *Bhikaji Narain Dhakras*, a pre-Constitution law inconsistent with a Fundamental Right lies dormant against that right rather than becoming dead for every purpose; it may revive if the constitutional shadow is removed. The classic rule does not automatically revive a post-Constitution law void under Article 13(2).

No waiver: *Bhikaji Nath* and *Olga Tellis* reject individual surrender or estoppel as a means to validate unconstitutional State action. Fundamental Rights are public limits on power, not merely private benefits.

Qualification: Constitutional amendments follow the Article 368/basic-structure route after Article 13(4) and *Kesavananda Bharati* (1973).

Conclusion: The doctrines combine rights supremacy with legal continuity and calibrated remedies.

Why this earns marks: It defines all three doctrines, distinguishes pre/post-Constitution law, explains rationale and links amendment review without drifting into the whole basic-structure chapter.

How to improve this answer: Add a compact pre-Constitution/post-Constitution comparison for eclipse and state that severability turns on legislative intent and workability; these are the two most likely examiner discriminators.

Original Q2 - Preventive detention is a constitutional anomaly within the Right to Freedom. Examine. (10 marks, 150 words)

Model answer. Thesis: Article 22 simultaneously constitutionalises detention without trial and attempts to civilise it through minimum procedural safeguards.

Anomaly: Preventive detention responds to anticipated conduct, unlike punitive detention after adjudication. Article 22(3) excludes preventive detainees from the ordinary clauses requiring counsel and magistrate production within 24 hours. This sits uneasily with *Maneka Gandhi* (1978)'s fair-procedure principle and Article 21 liberty.

Safeguards: Articles 22(4)-(7) cap detention without Advisory Board approval at the presently operative three months; require communication of grounds as soon as may be; and provide the earliest opportunity to represent, while allowing public-interest withholding. Parliament and States legislate within their distribution-of-power fields.

Implementation concern: vague grounds, delayed communication and repetitive detention orders can make review formal rather than effective.

Qualification: The Forty-fourth Amendment's proposed two-month substitution was never commenced, so asserting two months as current law is wrong.

Conclusion: Preventive detention remains constitutionally valid but legitimate only as an exceptional, narrowly construed and rigorously reviewed power.

Why this earns marks: It answers "anomaly," contrasts punitive/preventive detention, names exact safeguards and the unenforced amendment trap, and offers a constitutionally grounded verdict.

How to improve this answer: Use a punitive-versus-preventive detention table and explicitly separate Article 22(1)-(2) from 22(4)-(7); reserve the final line for the uncommenced two-month trap.

Original Q3 - India's reservation jurisprudence seeks substantive equality but is controlled by evidence, limits and administrative efficiency. Analyse. (15 marks, 250 words)

Model answer. Thesis: Reservation is a constitutional technique of equal opportunity, not a departure from equality; its legitimacy depends on identifying disadvantage and under-representation without converting enabling power into unreviewable allocation.

Constitutional basis: Articles 15(4)-(6) authorise educational/special provisions for SEBCs, SCs/STs and EWS; Articles 16(4), 16(4A), 16(4B) and 16(6) address appointment, promotion/backlog and EWS. Article 335 adds the efficiency consideration.

Judicial controls: *Indra Sawhney (1992)* upheld OBC reservation, required creamy-layer exclusion, set the ordinary 50 per cent ceiling and excluded promotion from Article 16(4). The 77th, 81st, 82nd and 85th Amendments rebuilt promotion/backlog tools. *M. Nagaraj (2006)* required data on inadequate representation and attention to efficiency; *Jarnail Singh (2018)* removed the need to re-prove SC/ST backwardness but retained inadequacy/efficiency discipline.

New dimensions: *Janhit Abhiyan (2022)* upheld the 103rd Amendment's EWS design by majority. *Davinder Singh (2024)* permitted evidence-based SC sub-classification to reach the most disadvantaged, without allowing States to alter Article 341 lists or mandating sub-quotas.

Assessment: Data prevents political assertion from replacing constitutional need; creamy layer guards capture; Article 335 requires capable administration. Yet "efficiency" cannot mean preserving historically exclusionary institutions.

Conclusion: Reservation serves substantive equality when targeted, evidence-based, reviewable and combined with education/training rather than treated as either permanent patronage or an anti-merit exception.

Why this earns marks: It follows claim -> provisions -> amendment/case evidence -> what each controls -> qualification, includes 2024 law and gives a balanced understanding of efficiency.

How to improve this answer: Add a clause map of Articles 15(4)-(6) and 16(4), (4A), (4B), (6), then connect each case to one control-creamy layer, ceiling, data, efficiency or sub-classification.

Original Q4 - India's freedom of speech is protected through a structured test, not an absolute slogan. Discuss with special reference to digital speech and political information. (15 marks, 250 words)

Model answer. Thesis: Article 19(1)(a) presumptively protects expression, press circulation and democratic information, while Article 19(2) allows only eight enumerated, reasonable and law-based grounds.

Historical settlement: *Romesh Thappar* and *Brij Bhushan* invalidated circulation/pre-censorship restraints under the original text. The First Amendment added public order, friendly relations and incitement, but also inserted "reasonable"; the Sixteenth Amendment later added sovereignty and integrity.

Doctrinal test: *Kedar Nath Singh (1962)* saved old IPC section 124A only by confining it to incitement to violence/public disorder. *Shreya Singhal (2015)* struck section 66A for vagueness, overbreadth and chilling effect, protected discussion/advocacy short of incitement, upheld section 69A and read down section 79.

Digital process: *Anuradha Bhasin (2020)* protected speech/trade through the internet and required published orders, proportionality, periodic review and no indefinite suspension; it did not create a standalone internet right.

Political information: *Association for Democratic Reforms (2024)* invalidated Electoral Bond secrecy because voters need political-funding information under Article 19(1)(a), linking transparency with political equality.

Current criminal law: BNS section 152 is a differently drafted successor focused on secession, rebellion, subversion and sovereignty; calling it a mere renaming obscures the new constitutional inquiry.

Conclusion: Speech protection succeeds when grounds remain closed and State process is precise, published, proportionate and reviewable.

Why this earns marks: It uses the historical sequence, exact doctrinal holdings, digital procedure, electoral transparency and current BNS control, while correcting two common overstatements.

How to improve this answer: Quote the eight Article 19(2) grounds as a closed list in a margin box and explicitly distinguish the old section 124A interim position from the live Section 152 challenge.

Original Q5 - Religious freedom in India combines protection, regulation and reform. Critically examine the Essential Religious Practices doctrine within this model. (20 marks, 250 words)

Model answer. Thesis: Articles 25-26 create neither a theocratic privilege nor a strict separation wall; they protect conscience and denominational affairs while allowing public-order limits, secular regulation and social reform. ERP is the judiciary's contested device for drawing that boundary.

Constitutional design: Article 25 protects all persons, subject to public order, morality, health, other Fundamental Rights and Article 25(2) regulation/reform. Article 26 protects denominations in religious affairs but permits lawful regulation of property administration. Articles 27-28 restrain religious taxation and instruction.

ERP origin and use: *Shirur Mutt* distinguished religious matters from secular activities and referred essentiality to religious doctrines. The doctrine prevents every associated activity from claiming immunity. *Durgah Committee* introduced a narrower judicial filter; later cases often asked courts to determine theological centrality. In *Sabarimala* (2018), the majority rejected the exclusion practice through denomination, equality and constitutional-morality reasoning.

Defence: ERP preserves a protected religious core while enabling reform and preventing commercial/administrative practices from escaping law.

Criticism: Secular judges may become theologians; essentiality can freeze religion, privilege texts over lived practice and avoid the more transparent question of harm/proportionality.

Better approach: First classify individual/denominational claims and religious/secular activity; then apply explicit text, competing rights, harm, reform authority and proportionality. Essentiality should not substitute for the Constitution's express limits.

Conclusion: ERP is useful as a threshold but constitutionally legitimate only when disciplined by equality, dignity and institutional humility.

Why this earns marks: It covers all four religion Articles, origin/evolution/application, defence and criticism, and proposes a text-first test rather than a slogan.

How to improve this answer: Add a three-column ERP defence/criticism/replacement-test table and avoid stating the Sabarimala review proceedings as finally settled beyond the 2018 majority holding.

Original Q6 - Part III reconciles rights with social revolution and constitutional emergency, but not without tension. Evaluate with reference to Articles 31A-31C, 33-35 and 358-359. (20 marks, 250 words)

Model answer. Thesis: The Constitution protects individual freedom while preserving defined space for redistribution, disciplined services and emergency action; legitimacy depends on narrow text, judicial review and a non-derogable core.

Social-revolution clauses: Article 31A saves specified reform categories from Article 14/19 attack. Article 31B and the Ninth Schedule protect listed laws, but *I.R. Coelho* (2007) subjects post-24 April 1973 insertions to basic-structure review. Article 31C protects genuine implementation of Article 39(b)/(c). *Property Owners Association* (2024) confirmed its survival while rejecting the claim that every private asset is automatically a material resource.

Institutional discipline: Article 33 lets Parliament restrict rights of armed/public-order/intelligence forces for discipline. Article 34 permits parliamentary indemnity connected with martial law; Article 35 reserves specified Part III legislation to Parliament. These are competence and necessity clauses, not rights-free zones.

Emergency: Article 358 automatically displaces Article 19 constraints only during war/external-aggression Emergency and within post-44th conditions. Article 359 requires a Presidential order suspending court enforcement of specified rights. Articles 20 and 21 cannot be included.

Tensions: Saving clauses can shield coercive redistribution; discipline can suppress dissent; emergency power can normalise exceptional rule. The answers are relation-to-purpose, recital, temporality, proportionality and basic-structure review.

Conclusion: Part III reconciles transformation and necessity not by trusting the State, but by enumerating exceptional powers and keeping their boundaries judicially enforceable.

Why this earns marks: It integrates every requested Article family, uses *I.R. Coelho (2007)* and *Property Owners Association (2024)*, distinguishes martial law/Emergency and gives a mechanism-based evaluation.

How to improve this answer: Use three mini-headings-redistribution, disciplined services, Emergency-and end each with its review control; explicitly state that Article 359 suspends enforcement, not the right text itself.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

Optional: The Core above is independently paper-complete. This section is for deeper 15/20-mark reasoning and unfamiliar hypotheticals.

A. Equality as anti-subordination, not merely consistency

[ANALYSIS] Formal equality asks whether similarly situated persons receive the same rule. Anti-subordination asks whether law entrenches a hierarchy such as caste, sex or disability. Articles 15(3)-(6), 16(4)-(6) and 17 show that the Constitution does not treat social power as irrelevant.

Advanced use: Reservation is strongest when defended as redistribution of effective opportunity and institutional voice, not as a permanent arithmetic exception to merit.

Qualification: Anti-subordination cannot eliminate evidence, tailoring, periodic review or Article 335.

B. Proportionality and the danger of conclusory balancing

[ANALYSIS] "Balance rights and security" earns few marks unless decomposed:

1. What exact constitutional ground is available?
2. Is the measure suitable?
3. Is there a less restrictive alternative?
4. Are duration, publication and review controlled?
5. Who bears error costs?

K.S. Puttaswamy (2017) and *Anuradha Bhasin (2020)* make proportionality operational. The danger is judicial subjectivity if courts announce balance without showing each step.

C. Horizontality and State protective obligations

[ANALYSIS] Direct horizontality makes private actors constitutional respondents. Indirect horizontality requires the State, through legislation and adjudication, to protect rights in private relationships.

Examples:

- Article 17 directly invalidates caste disability.
- Article 23 directly prohibits forced labour.
- *Vishaka (1997)* used Articles 14, 19(1)(g) and 21 to fill a statutory vacuum around workplace sexual harassment.
- Privacy disputes between individuals often operate through evidence, family, labour or data statutes rather than a simple Article 32 petition.

[LIMIT] A constitutional right does not automatically constitutionalise every private dispute.

D. Positive obligations and institutional competence

[ANALYSIS] Article 21 may require emergency medical treatment, legal aid, prison safeguards or investigation. Courts are strongest at setting minimum standards, ordering reasons and ensuring non-discrimination; they are weaker at designing budgets or running institutions continuously.

Answer refinement: defend a judicially enforceable floor while leaving policy choice above that floor to accountable institutions.

E. Transformative constitutionalism

[ANALYSIS] Articles 17, 23 and 25(2)(b) reveal a Constitution intended to transform society, not merely preserve a neutral marketplace of rights. *Navtej Singh Johar* and gender-justice jurisprudence use dignity, equality and constitutional morality to challenge inherited social domination.

[LIMIT] Constitutional morality must be tied to text, structure and rights; it cannot become a judge's free-floating personal morality.

F. Rights, DPSPs and the Article 31C boundary

[ANALYSIS] Parts III and IV are complementary: rights prevent coercive means while DPSPs supply distributive ends. *Minerva Mills (1980)* treats harmony as basic structure. *Property Owners Association (2024)* makes the current boundary precise: Article 31C protects genuine 39(b)/(c) implementation, but the State cannot label every private asset a community resource.

Cross-link: detailed DPSP design belongs to Polity 08.

G. Emergency constitutionalism and constitutional memory

[ANALYSIS] The post-Emergency Constitution did not make every right non-derogable. Instead, it:

- narrowed Article 358 to external Emergency;
- protected Articles 20 and 21 from Article 359;
- required tighter relation/recital controls; and
- retained judicial review of the Emergency architecture.

The advanced point is institutional: a Constitution proves its resilience when it controls the State precisely when ordinary politics is weakest.

H. A novel-hypothetical method

For a new speech, surveillance, reservation, religious-practice or detention law:

1. classify the right and beneficiary;
2. locate State/private/public-duty status;
3. identify the exact textual restriction or enabling clause;
4. apply the controlling judicial test;
5. compare less restrictive alternatives;
6. check reasons, hearing, publication, duration and review;
7. identify saving/Emergency clauses;
8. state whether current litigation is settled, pending or deliberately omitted; and
9. conclude with the narrowest constitutionally supportable outcome.

CONSOLIDATED REGISTER NOTES

Part III master map

Block	Function
12	State definition
13	inconsistent laws void; judicial review
14-18	equality code
19-22	freedoms, criminal safeguards, life/liberty, education, arrest/detention
23-24	exploitation prohibitions
25-28	religion
29-30	culture and minority education
32	Supreme Court remedy
31A-31C	saving clauses
33-35	disciplined forces, martial law, Parliament-only laws

- Present rights = 6; originally 7.
- Property: removed from Part III by 44th Amendment -> Article 300A constitutional right for every person.
- FR workflow: beneficiary -> respondent -> right -> exact limit -> doctrine -> remedy -> saving/Emergency caveat.
- Qualified, justiciable and amendable only subject to basic structure.

Beneficiary and horizontal-reach drill

- Citizen-specific text: Articles 15, 16, 19, 29.
- All-person text: Articles 14, 20, 21, 22, 23, 24, 25.
- Article 30 says "all minorities"; do not falsely quote "citizens."
- Direct private reach: 15(2), 17, 23, 24.
- Habeas corpus can reach private detention.
- Article 226 can reach a non-State body performing public duty.
- Negative right = State must not interfere unlawfully.
- Positive obligation = State may need to protect, investigate or supply minimum safeguards.

Qualification and proportionality

- A restriction needs valid law + exact constitutional ground + reasonableness.
- Proportionality: legitimate aim -> suitability -> necessity/less restrictive alternative -> balancing -> safeguards.
- Do not begin with "balance"; begin with the Article's actual text.
- Procedure controls: reasons, publication, hearing, time limit and review.

Article 12 rapid test

- Express: Union Government/Parliament; State Government/Legislature; local authorities.
- Other authority: financial, functional and administrative domination; public importance; monopoly; transferred department.
- Cases: *R.D. Shetty*, *Ajay Hasia*, *Pradeep Kumar Biswas (2002)*.
- Form not decisive: society/company can be State.
- Not Article 12 State may still face Article 226 public-duty writ.

Article 13 and doctrine grid

- Law includes ordinance, order, bye-law, rule, regulation, notification, custom/usage with force of law.
- 13(1): pre-Constitution law void to inconsistency.
- 13(2): State cannot make abridging law.

- Severability: remove separable invalid part.
- Eclipse: pre-Constitution law dormant, potentially revivable.
- Waiver: FR cannot validate unconstitutional State action - *Basheshar Nath, Olga Tellis*.
- Prospective overruling: *Golaknath* applied new rule forward.
- Amendment route: 24th Amendment + Article 13(4); *Kesavananda Bharati (1973)* basic structure; *Minerva Mills (1980)* limited power/harmony.
- Competence doctrines such as pith and substance, territorial nexus and repugnancy belong to the federal doctrine route, not the Article 13 validity grid.

Part XVI identification-benefit distinction

- Articles 341/342: President specifies SC/ST lists; Parliament alone includes/excludes.
- Article 342A: Central SEBC List plus State/UT lists after the 105th Amendment.
- List status identifies a class; Articles 15/16/330/332/335 or valid law separately authorise a benefit, representation or service measure.
- *Davinder Singh (2024)* sub-classification does not amend the Article 341 list.

Article 14 equality code

- Equality before law = British, negative, no privilege.
- Equal protection = American, positive, like treatment in like circumstances.
- Classification test = intelligible differentia + rational nexus.
- Article 14 forbids class legislation, not classification.
- Anti-arbitrariness: *E.P. Royappa (1973)* -> *Maneka Gandhi (1978)* -> *Ajay Hasia*.
- Manifest arbitrariness review: *Shayara Bano*.
- Classification tests differentiation; arbitrariness tests capricious power.

Article 15 register

- Prohibited grounds: religion, race, caste, sex, place of birth - discrimination **only** on these.
- 15(2): shops/restaurants/hotels/public entertainment + wells/tanks/ghats/roads/public resorts; horizontal.
- 15(3): women/children.
- 15(4): SEBC/SC/ST advancement; First Amendment after *Champakam Dorairajan (1951)*.
- 15(5): educational admissions incl private aided/unaided; Article 30(1) minority institutions excluded.
- 15(6): EWS incl up to 10 per cent.

Article 16 and reservation mechanism

- 16(1): citizen equal opportunity in public employment.
- 16(2) adds descent and residence to barred grounds.
- 16(3): Parliament may prescribe residence.
- 16(4): backward class + inadequate representation; enabling, not compulsory.
- 16(4A): SC/ST promotion reservation.
- 16(4B): backlog separate class.
- 16(5): religious office.
- 16(6): EWS.

Reservation cases and amendments

- *Indra Sawhney (1992)*: OBC 27 per cent upheld; creamy layer; ordinary 50 per cent ceiling; no promotion under 16(4).
- 77th: 16(4A); 81st: 16(4B); 82nd: Article 335 proviso; 85th: consequential seniority.
- *M. Nagaraj (2006)*: amendments upheld; data/inadequacy/efficiency discipline.
- *Jarnail Singh (2018)*: no fresh proof of SC/ST backwardness; inadequacy and efficiency retained.

- Article 335: claims consistent with efficiency; efficiency not a veto.
- 103rd Amendment: 15(6), 16(6).
- *Janhit Abhiyan* (2022): EWS upheld by majority, not unanimously.
- *Davinder Singh* (2024) (1 Aug 2024): SC sub-classification permitted, evidence-based, not mandated; Article 341 list unchanged; no total exclusion of remaining classes.

Articles 17-18 anti-hierarchy notes

- Article 17: untouchability abolished in any form; private reach; PCR Act 1955; SC/ST PoA Act 1989.
- Historical caste practice, not every social avoidance.
- Article 18: no titles except military/academic; foreign-title and foreign-present controls.
- *Balaji Raghavan* (1996): Bharat Ratna/Padma not titles; no prefix/suffix.
- Trap: untouchability = equality, not exploitation.

Article 19 exact matrix

Freedom	Limit
speech 19(1)(a)	19(2): sovereignty/integrity; security; friendly relations; public order; decency/morality; contempt; defamation; incitement
assembly 19(1)(b)	19(3): sovereignty/integrity; public order
association 19(1)(c)	19(4): sovereignty/integrity; public order; morality
movement/residence 19(1)(d)/(e)	19(5): general public; ST protection
profession 19(1)(g)	19(6): general public; qualifications; State monopoly

- Citizens only.
- Movement/residence = internal India; foreign travel under Article 21.
- Assembly peaceful/unarmed; no FR to strike.
- Association does not guarantee recognition/success.
- Grounds cannot be borrowed across clauses.

Speech doctrine timeline

- *Romesh Thappar* (1950): circulation; original Article 19(2).
- *Brij Bhushan* (1950): pre-censorship; original text.
- First Amendment (1951): public order + friendly relations + incitement + "reasonable."
- 16th Amendment (1963): sovereignty/integrity.
- *Kedar Nath Singh* (1962): section 124A upheld only through incitement/violence/public-disorder reading.
- *S.G. Vombatkere*: 11 May 2022 abeyance; 12 Sep 2023 larger-Bench referral; no unverified later final claim.
- BNS 152 from 1 Jul 2024: secession/armed rebellion/subversion/separatism/sovereignty-unity-integrity; electronic/financial means; not simple renaming.

Press, digital speech and information

- No separate press Article; derives from 19(1)(a).
- Right to know under democratic speech.
- Electoral Bonds, 15 Feb 2024: voter funding information under 19(1)(a); secrecy scheme/enabling provisions invalid; unlimited corporate funding change manifestly arbitrary.
- *Shreya Singhal* (2015): 66A struck; discussion/advocacy/incitement; 69A upheld; 79 read down.
- *Anuradha Bhasin* (2020): speech/trade through internet; orders published/reviewed/proportionate; no indefinite suspension; not standalone internet-right holding.
- *Subramanian Swamy*: criminal defamation upheld; reputation Article 21; current BNS section 356.

Article 20 three shields

- 20(1): no retrospective offence or enhanced penalty; beneficial retrospectivity allowed.
- 20(2): no prosecution **and punishment** twice for same offence.
- 20(3): accused + compulsion + testimonial communication against self.
- Physical samples distinct from testimonial compulsion - *Kathi Kalu Oghad*.
- Involuntary narco/polygraph/brain mapping - *Selvi*.
- All persons; Article 359 cannot suspend enforcement.

Article 21 doctrinal arc

- *A.K. Gopalan (1950)*: narrow, siloed.
- *R.C. Cooper (1970)*: effect over object; silos weaken.
- *Maneka Gandhi (1978)*: fair, just, reasonable procedure; 14-19-21 interlock.
- Say "due-process standard," not textual American substitution.
- *Francis Coralie*: dignity.
- *Hussainara*: speedy trial.
- *Hoskot*: legal aid.
- *Olga Tellis*: livelihood + fair procedure, not no-eviction right.
- *Sunil Batra*: prisoner rights.
- *D.K. Basu*: arrest safeguards + compensation.
- *Parmanand Katara/Paschim Banga*: emergency care.
- Environmental cases: clean air/water.
- Travel abroad: *Maneka Gandhi (1978)*.
- Choice/marriage: *Lata Singh, Shafin Jahan*.
- Sexual autonomy: *Navtej*.
- Reproductive autonomy: *Suchita Srivastava*.
- Qualification: rights floor, not unlimited judicial welfare code.

Privacy, DNA and data control

- *K.S. Puttaswamy (2017)*, nine judges: privacy intrinsic to Article 21 + Part III.
- Dimensions: body, decision, information, family/intimacy.
- Test: legality -> legitimate aim -> proportionality -> safeguards.
- DNA: bodily integrity + truth/identity + child's dignity.
- BSA 2023 section 116: legitimacy presumption; rebuttal through non-access.
- DNA order: strong prima facie/eminent need; less intrusive evidence; no fishing inquiry.
- *Bhabani Prasad Jena*: caution; *Nandlal Badwaik*: reliable DNA can matter when lawfully obtained.
- DPDP Act/Rules: G.S.R. 843(E) and 846(E) notified phased commencement; only the first tranche is operative by 21 Aug 2026.

Article 21A education

- 86th Amendment: free/compulsory education, ages 6-14.
- Article 45: early childhood below 6.
- Article 51A(k): parent/guardian opportunity duty.
- *Mohini Jain* -> *Unni Krishnan* -> Article 21A.
- RTE Act 2009.
- *Society for Unaided Private Schools*: 25 per cent obligation upheld for non-minority unaided schools.
- *Pramati*: minority-institution protection.

Article 22 arrest and detention

- Ordinary arrest: grounds; counsel; nearest magistrate within 24 hours excluding journey; no further detention without authority.
- Article 22(3): clauses (1)-(2) exceptions = enemy alien + preventive detention.
- Preventive detention: anticipated conduct; 3 months without Advisory Board under operative text; grounds + earliest representation; public-interest non-disclosure.
- 44th Amendment's two-month substitution not commenced.
- Structural anomaly: detention without trial inside freedom chapter.

Articles 23-24 exploitation

- Article 23: trafficking, begar (forced unpaid labour), similar forced labour; State/private; all persons.
- *PUDR*: economic compulsion/below legal minimum can be forced labour.
- *Bandhua Mukti Morcha*: bonded labour + dignity + enforcement.
- 23(2): compulsory public service allowed; no religion/race/caste/class discrimination.
- Article 24: below 14 in factory, mine, hazardous employment.
- Child and Adolescent Labour Act 1986/2016; Bonded Labour Act 1976.
- Keep constitutional rule separate from broader statutory ban/exceptions.

Articles 25-28 religion

- Article 25: conscience; profess/practise/propagate; all persons; public order/morality/health/other FRs; 25(2) secular regulation + reform.
- *Rev Stainislaus*: propagate != coercive/fraudulent conversion.
- Kirpan Sikh explanation; Hindu for 25(2)(b) includes Sikh/Jain/Buddhist.
- Article 26: denomination institutions, religious affairs, property; public order/morality/health.
- Article 27: bars specifically appropriated religious-promotion tax, not every fee/general tax.
- Article 28:
 - wholly State-maintained -> no instruction;
 - State-administered trust/endowment -> permitted;
 - recognised/aided -> no compulsion without consent.
- Principled distance = protection + equal engagement + regulation + reform.

ERP doctrine

- *Shirur Mutt*: religious vs secular; essentiality linked to doctrines.
- Use sequence: claimant -> religious/secular -> essentiality -> explicit limits/reform/other FR -> proportionality.
- Defence: preserves religious core, regulates associated secular activity.
- Criticism: judges as theologians; freezes religion; may obscure harm/equality.
- Sabarimala: use the 2018 majority holding only; no later final status is asserted without a located official controlling decision.

Articles 29-30

- 29(1): any section of citizens with distinct language/script/culture.
- 29(2): no citizen denied State-maintained/aided admission only on religion/race/caste/language.
- Article 29 not minority-only.
- Article 30: religious/linguistic minorities establish/administer institutions.
- *T.M.A. Pai*: State-wise minority assessment; autonomy + regulation.
- *P.A. Inamdar*: unaided professional autonomy under its framework.
- *St Xavier's, Malankara*: no right to maladminister; excellence regulation valid.

Article 32 and writ recall

- Article 32 = Fundamental Right; SC enforcement of FRs; Ambedkar "heart and soul."
- Article 226 = FR + other legal rights/public duties; wider subject scope.
- Habeas corpus = unlawful detention, public/private.
- Mandamus = public duty.
- Prohibition = stop jurisdictional excess before completion.
- Certiorari = quash defective order.
- Quo warranto = test public-office claim; relaxed standing.
- Judicial review/basic remedial power = basic structure.
- Detailed PIL institutional analysis -> Polity 18.

Articles 31A-31C

- 31A: specified estate/reform categories; not all property law.
- 31B: Ninth Schedule.
- *I.R. Coelho (2007)*: post-24 Apr 1973 entries face basic-structure review.
- 31C original: genuine Article 39(b)/(c) law protected from 14/19 challenge.
- *Property Owners Association (2024)*, 5 Nov 2024:
- original 31C survives;
- private resources may qualify;
- not every private asset;
- context: nature, scarcity, community effect, concentration, common good.

Articles 33-35 and martial law

- Article 33: Parliament restricts/abrogates rights of specified armed/public-order/intelligence/communications forces for discipline.
- Article 34: indemnity/validation where martial law existed.
- Article 35: Parliament-only specified Part III laws.
- Martial law: local military control/restoration; term undefined; Article 34 recognition.
- National Emergency: express constitutional regime; ordinary institutions continue.
- Martial law does not automatically erase habeas corpus.

Articles 358-359 emergency grid

- 358:
- automatic Article 19 effect;
- only war/external aggression Emergency after 44th;
- relation/recital conditions;
- prospective cessation after Emergency, past acts saved.
- 359:
- Presidential order;
- suspends right to move court for specified FR enforcement;
- rights not textually deleted;
- Articles 20 and 21 excluded.
- Trap: no automatic suspension of all FRs.
- Full Emergency architecture -> Polity 14.

Current-law dated control

- 15 Feb 2024 - Electoral Bonds: voter information, political equality, transparency; scheme/enabling provisions struck.

- 1 Aug 2024 - *Davinder Singh (2024)*: SC sub-classification permitted, not mandated.
- 5 Nov 2024 - *Property Owners Association (2024)*: original 31C survives; contextual private-resource inquiry.
- 1 Jul 2024 - BNS/BNSS operative; Section 152 is not a simple 124A renaming. Supreme Court issued vires notice on 28 Aug 2025; no final merits disposition was located through 7 September 2026.
- DPDP Act/Rules: final 2025 notifications use phased commencement; as of 28 Aug 2026, do not describe the whole regime as operative.
- Omitted as live status: unverified 2025/26 judgments/orders, Waqf, Places of Worship and Sabarimala hearing claims.

Verified PYQ route

- Mains 2019: France learning from Indian secularism.
- Mains 2021: India-US equality comparison.
- Mains 2022: movement/residence limits.
- Mains 2023: living Constitution/Article 21; gender justice.
- Mains 2024: privacy and prenatal DNA/paternity.
- Prelims 2018-2023: 13 routed questions; answer letters withheld because no final official/local-official keys are held.
- Prelims 2024 Q76: **OFFICIAL LOCAL UPSC KEY VERIFIED: D.**
- Prelims 2026 Q54: exact local-paper wording retained; answer letter withheld because the held key is provisional, not final official.

Last-minute trap sheet

- Property = Article 300A constitutional right, not FR.
- Article 30 text says minorities, not "citizens."
- Untouchability = equality.
- Travel abroad = Article 21.
- Propagate != force/fraud conversion.
- Article 27 tax != every fee.
- Article 22 current no-Board period = 3 months.
- Article 19 grounds are not interchangeable.
- First Amendment did not add sovereignty/integrity.
- *Kedar Nath Singh (1962)* upheld by reading down.
- *Shreya* did not strike 69A.
- *Anuradha Bhasin (2020)* did not declare standalone internet FR.
- BNS 152 not simple renaming.
- *Janhit Abhiyan (2022)* majority, not unanimous.
- *Davinder* permission, not mandate.
- Ninth Schedule not absolutely immune.
- Article 31C = 39(b)/(c), not every DPSP.
- Articles 20/21 never within Article 359 order.

Mains answer spines

Equality/reservation

Article 14 twin concepts -> classification + arbitrariness -> enabling Articles 15/16 -> named limit (*Indra Sawhney (1992)*, data, Article 335) -> EWS/*Davinder* current layer -> evidence-based substantive-equality verdict.

Speech/digital rights

19(1)(a) + exact 19(2) grounds -> 1950 cases/First Amendment -> *Kedar Nath Singh* (1962) or *Shreya* -> *Anuradha Bhasin* (2020) process -> competing reputation/privacy -> dated BNS/electoral-bond control -> precise verdict.

Article 21

A.K. Gopalan (1950) -> *Cooper* -> *Maneka Gandhi* (1978) -> 4-6 named dignity rights with limits -> *K.S. Puttaswamy* (2017) proportionality -> institutional-floor qualification -> living-Constitution verdict.

Religion

Articles 25-28 separate -> individual/denomination -> religious/secular -> ERP + criticism -> reform/equality limits -> principled-distance verdict.

Remedies

Article 32 as right -> select writ by defect -> Article 226 wider public-duty reach -> standing/PIL only as needed -> basic-structure and alternate-remedy qualification.

Saving/Emergency

31A/31B/31C distinct -> *I.R. Coelho* (2007) + *Property Owners Association* (2024) -> 33-35 competence/discipline -> martial law vs Emergency -> 358 vs 359 -> non-derogable 20/21 -> narrow-exception verdict.

COMPLETE TOPIC ASCII MASTER FLOW DIAGRAM

ASCII MASTER FLOW - PANEL 1/19: Part III architecture and reach

PART III, ARTICLES 12-35

GATEWAY -> Article 12 defines State; Article 13 controls inconsistent law

RIGHTS -> 14-18 equality | 19-22 freedom | 23-24 exploitation
25-28 religion | 29-30 culture/education | 32 remedies

CONTROLS -> 31A-31C savings | 33-35 special powers

BENEFICIARY != RESPONDENT

citizens: 15, 16, 19, 29

persons: 14, 20, 21, 22, 23, 24, 25

Article 30 text: all minorities

direct private reach: 15(2), 17, 23, 24

legislation-mediated private reach: 15(5)

ANSWER ORDER: holder -> respondent -> right -> exact limit -> test -> remedy -> caveat.

ASCII MASTER FLOW - PANEL 2/19: Article 12 State and Article 226 public-duty boundary

ARTICLE 12 EXPRESS BODIES

Union Government/Parliament | State Government/Legislature | local authorities

OTHER AUTHORITY / INSTRUMENTALITY

R.D. Shetty (1979) -> functional indicators

Ajay Hasia (1981) -> form is not decisive

Pradeep Kumar Biswas (2002) -> financial + functional + administrative
domination of a pervasive character

INDICATORS: ownership/finance | control | public importance | monopoly
transferred department | cumulative real relationship

SEPARATE QUESTION:

not State under Article 12

-> may still perform a public duty

-> Article 226 can reach the public-law element.

ASCII MASTER FLOW - PANEL 3/19: Article 13, invalidity doctrines and amendment route

ARTICLE 13

13(1) pre-Constitution law -> void to extent of inconsistency

13(2) State shall not make abridging law -> void to extent

13(3) ordinance/order/bye-law/rule/regulation/notification/custom/usage

13(4) constitutional amendment follows Article 368

DOCTRINES

severability -> workable valid residue + legislative intent

eclipse -> classic pre-Constitution law lies dormant; may revive

waiver -> Basheshar Nath (1959): holder cannot validate unconstitutional power

prospective overruling -> Golaknath (1967) calibrated temporal effect

AMENDMENT CONTROL

Shankari Prasad (1951) -> amendment not ordinary Article 13 law

24th Amendment -> express Article 368 power + Article 13(4)

Kesavananda Bharati (1973) -> every Part amendable, basic structure not destructible.

ASCII MASTER FLOW - PANEL 4/19: Mandatory doctrine timeline

1950 A.K. GOPALAN -> narrow procedure; siloed rights

1951 CHAMPAKAM -> communal admission allocation invalid; First Amendment / 15(4)

1951 SHANKARI PRASAD -> amendment not ordinary law under Article 13

1967 GOLAKNATH -> prospective restriction on FR-amending power

1970 R.C. COOPER -> effect of State action; silos weaken

1973 KESAVANANDA -> amendment subject to basic structure

1978 MANEKA GANDHI -> fair, just, reasonable procedure; 14-19-21 link

1980 MINERVA MILLS -> limited amending power; Part III-IV harmony

1981 WAMAN RAO -> 24 April 1973 Ninth Schedule boundary

2007 I.R. COELHO -> later Ninth Schedule entries face basic-structure review

2017 SHAYARA BANO -> 3:2 talaq-e-biddat invalid; Nariman-Lalit opinion uses manifest arbitrariness

2017 PUTTASWAMY -> nine judges; privacy intrinsic to Article 21 and Part III

2018 NAVTEJ -> consensual adult same-sex intimacy decriminalised

2018 JOSEPH SHINE -> adultery offence invalidated

2020 ANURADHA BHASIN -> internet as medium; publication, review, proportionality.

ASCII MASTER FLOW - PANEL 5/19: Article 14 equality code

TWIN EXPRESSIONS

equality before law -> negative / no privilege
equal protection -> positive / like treatment in like circumstances

CLASSIFICATION

intelligible differentia
+ rational nexus to statutory objective
= permissible classification, not class legislation

ANTI-ARBITRARINESS

E.P. Royappa (1974) -> equality opposes arbitrariness
Maneka Gandhi (1978) -> non-arbitrary fair State action
Shayara Bano (2017) -> manifest arbitrariness used in Nariman-Lalit opinion

SUBSTANTIVE EQUALITY

identical treatment can preserve disadvantage;
clause-specific support may be constitutionally authorised.

ASCII MASTER FLOW - PANEL 6/19: Articles 15-16 and reservation chronology

ARTICLE 15

(1) religion/race/caste/sex/place of birth
(2) specified access prohibition -> direct private reach
(3) women/children | (4) SEBC/SC/ST
(5) admissions incl private aided/unaided; excludes Article 30(1)
(6) EWS incl up to 10%

ARTICLE 16

(1)-(2) public-employment equality
(3) residence by Parliamentary law
(4) backward class + inadequate representation
(4A) SC/ST promotion | (4B) backlog | (5) religious office | (6) EWS

TIMELINE

Champakam 1951 -> First Amendment / 15(4)
Indra Sawhney 1992 -> creamy layer; ordinary 50% ceiling; no 16(4) promotion
77th/81st/82nd/85th -> promotion/backlog/standards/seniority
Nagaraj 2006 / Jarnail 2018 -> data, inadequacy, efficiency
103rd + Janhit 2022 (3:2) -> EWS upheld
Davinder Singh 2024 -> evidence-based SC sub-classification permitted.

ASCII MASTER FLOW - PANEL 7/19: Articles 17-18: constitutional anti-hierarchy

ARTICLE 17

untouchability abolished; practice in any form forbidden
disability enforcement punishable by law
direct horizontal reach
Protection of Civil Rights Act 1955
SC/ST (Prevention of Atrocities) Act 1989
LIMIT: historical caste meaning, not every social avoidance

ARTICLE 18

State shall not confer titles except military/academic distinctions
citizen cannot accept title from foreign State
office-holder controls on foreign title/present/emolument
Balaji Raghavan (1996): Bharat Ratna/Padma are not prohibited titles
but cannot be used as prefixes/suffixes

TRAP: Article 17 belongs to equality, not exploitation.

ASCII MASTER FLOW - PANEL 8/19: Article 19 freedoms and exact restriction grounds

ARTICLE 19(1): CITIZENS ONLY

- (a) speech/expression -> 19(2): sovereignty/integrity; State security; friendly relations; public order; decency/morality; contempt; defamation; incitement
- (b) peaceful unarmed assembly -> 19(3): sovereignty/integrity; public order
- (c) association -> 19(4): sovereignty/integrity; public order; morality
- (d) movement + (e) residence -> 19(5): general public; ST protection
- (g) profession/trade/business -> 19(6): general public; qualifications; State monopoly

DISTINCTIONS

- press freedom derives from 19(1)(a)
- no Fundamental Right to strike
- foreign travel -> Article 21, not 19(1)(d)
- listed grounds are closed and not interchangeable.

ASCII MASTER FLOW - PANEL 9/19: Speech, press, digital medium and current criminal-law boundary

- 1950 Romesh Thappar / Brij Bhushan -> circulation and prior restraint
- 1951 First Amendment -> reasonable + public order + friendly relations + incitement
- 1962 Kedar Nath Singh -> old 124A upheld through incitement/public-disorder reading
- 1963 Sixteenth Amendment -> sovereignty and integrity
- 2015 Shreya Singhal -> 66A void; 69A retained with safeguards; 79 read down
- 2020 Anuradha Bhasin -> speech/trade through internet; orders published, reviewed and proportionate; no indefinite suspension
- 2024 Electoral Bonds -> political-funding information under 19(1)(a); unlimited corporate-contribution change arbitrary
- 1 JUL 2024 BNS 152 operative -> distinct secession/rebellion/subversion text
- 28 AUG 2025 vires notice -> no located final merits decision by 7 SEP 2026

TRAP: internet is a medium of protected freedoms, not an unlimited standalone holding.

ASCII MASTER FLOW - PANEL 10/19: Article 20 criminal safeguards

ARTICLE 20: ALL PERSONS

- 20(1) no retrospective offence or enhanced penalty
beneficial retrospectivity may operate
- 20(2) no prosecution AND punishment twice for same offence
not every departmental/civil consequence
- 20(3) accused + compulsion + testimonial communication against self

EVIDENCE BOUNDARY

- Kathi Kalu Oghad (1961) -> fingerprints/handwriting/physical material distinct
- Selvi (2010) -> involuntary narco/polygraph/brain mapping violates protection

EMERGENCY CORE

- Article 359 order can never include Article 20 after the 44th Amendment.

ASCII MASTER FLOW - PANEL 11/19: Article 21 evolution, dignity and derived rights

A.K. Gopalan (1950) -> narrow procedure and silos
R.C. Cooper (1970) -> effects approach; silos weaken
Maneka Gandhi (1978) -> fair, just, reasonable procedure + 14-19-21 interlock

NAMED DERIVED-RIGHT ANCHORS

Francis Coralie -> dignity
Hussainara Khatoon -> speedy trial
M.H. Hoskot -> legal aid
Olga Tellis -> livelihood + fair procedure, not no-eviction immunity
D.K. Basu -> arrest safeguards/compensation
Parmanand Katara / Paschim Banga -> emergency medical care
environmental cases -> clean air/water
Shafin Jahan -> adult marital choice

LIMIT: judicially enforceable floor, not an unlimited welfare-policy code.

ASCII MASTER FLOW - PANEL 12/19: Privacy, autonomy, DNA and data status

PUTTASWAMY (2017), NINE JUDGES

bodily + decisional + informational privacy
legality -> legitimate aim -> proportionality -> procedural safeguards

AUTONOMY

Navtej (2018) -> consensual adult same-sex intimacy
Joseph Shine (2018) -> adultery offence invalidated
Supriyo (2023) -> Court did not rewrite SMA to create same-sex marriage
review dismissed -> 9 January 2025

DNA / PATERNITY

bodily integrity + truth + child's dignity
Bhabani Prasad Jena -> eminent need / caution
BSA 2023 section 116 -> legitimacy presumption and non-access

DPDP: G.S.R. 843(E)/846(E), 13 NOV 2025 -> phased commencement;
whole regime not operative on 7 SEP 2026.

ASCII MASTER FLOW - PANEL 13/19: Article 21A and Article 22

ARTICLE 21A

Mohini Jain 1992 -> education/dignity
Unni Krishnan 1993 -> bounded entitlement
86th Amendment 2002 -> free/compulsory education, ages 6-14
RTE Act 2009 -> implementation
25% obligation -> covered non-minority unaided schools
Pramati 2014 -> Article 30 minority-institution boundary
below six -> Article 45 | parent/guardian duty -> 51A(k)

ARTICLE 22

ordinary arrest -> grounds + lawyer + magistrate within 24 hours
preventive detention -> separate clauses (4)-(7), grounds/representation
operative no-Board ceiling -> three months
44th Amendment two-month substitution -> not commenced.

ASCII MASTER FLOW - PANEL 14/19: Articles 23-24 exploitation

ARTICLE 23

trafficking | began (forced unpaid labour) | similar forced labour
available to persons; applies against State and private actors
PUDR (1982) -> economic compulsion / below legal minimum can be forced labour
Bandhua Mukti Morcha (1984) -> bonded labour + dignity + enforcement
23(2) compulsory public service allowed without religion/race/caste/class bias

ARTICLE 24

child below 14
no factory, mine or hazardous employment

STATUTORY LAYER

Bonded Labour System (Abolition) Act 1976
Child and Adolescent Labour Act 1986, amended 2016

TRAP: constitutional Article 24 and the broader statute are not identical.

ASCII MASTER FLOW - PANEL 15/19: Articles 25-28 and principled-distance secularism

ARTICLE 25 -> all persons; conscience; profess/practise/propagate

limits: public order, morality, health, other FRs
25(2): secular regulation + social reform
Rev Stainislaus (1977): propagate != force/fraud conversion

ARTICLE 26 -> denominations

institutions | religious affairs | property
public order, morality, health; autonomy != maladministration

ARTICLE 27 -> no specifically appropriated religion-promoting tax

general tax / regulatory fee require separate analysis

ARTICLE 28

wholly State-maintained -> no instruction
State-administered trust/endowment -> permitted
recognised/aided -> no compelled attendance without consent

MODEL: protection + equal engagement + secular regulation + reform.

ASCII MASTER FLOW - PANEL 16/19: ERP and Articles 29-30

ESSENTIAL RELIGIOUS PRACTICES

Shirur Mutt (1954) -> religious/secular distinction; doctrinal essentiality
Durgah Committee (1961) -> narrower filter
sequence: claimant -> religious/secular -> essentiality -> explicit limits
-> competing rights/reform -> proportionality
defence: protected religious core
criticism: judges as theologians; frozen textual religion
Sabarimala: state 2018 majority only absent later final verified authority

ARTICLE 29

(1) any section of citizens: language/script/culture
(2) no citizen denied covered admission only on religion/race/caste/language
not minority-exclusive

ARTICLE 30

religious/linguistic minorities establish/administer institutions
T.M.A. Pai (2002): generally State-wise minority unit
St Xavier's / P.A. Inamdar: autonomy with regulatory excellence.

ASCII MASTER FLOW - PANEL 17/19: Article 32, Article 226 and five writs

ARTICLE 32

itself a Fundamental Right
Supreme Court forum for Part III enforcement
original but not exclusive; Ambedkar's 'heart and soul'

ARTICLE 226

High Court -> Fundamental Rights + other legal rights + public duties
wider subject matter and non-State public-duty reach

WRIT BY DEFECT

habeas corpus -> unlawful detention, including private detention
mandamus -> compel public duty
prohibition -> stop threatened jurisdictional excess
certiorari -> quash completed defective order
quo warranto -> test legal authority to public office

PIL: relaxed standing/access device; full institutional doctrine belongs Topic 18.

ASCII MASTER FLOW - PANEL 18/19: Savings, property, special powers and emergency distinction

31A -> specified reform categories; defined Article 14/19 protection

31B -> Ninth Schedule

Waman Rao 1981 + I.R. Coelho 2007 -> post-24 APR 1973 review

31C -> genuine Article 39(b)/(c) laws; not every DPSP

Minerva Mills 1980 -> extension invalid

Property Owners Association 2024 -> original clause survives;
not every private asset qualifies

300A -> every person; authority of law; constitutional not Fundamental Right

33 -> Parliament tailors FRs for specified forces/services

34 -> indemnity/validation where martial law existed

35 -> Parliament-only listed Part III legislation

358 -> automatic Article 19 effect only in war/external-aggression Emergency

359 -> Presidential order; specified enforcement; never Articles 20 or 21

MARTIAL LAW != NATIONAL EMERGENCY.

ASCII MASTER FLOW - PANEL 19/19: Current status, PYQ rail and answer spine

CURRENT STATUS CHECKED 7 SEPTEMBER 2026

Electoral Bonds (15 FEB 2024) -> funding information / Article 19(1)(a)

Davinder Singh (1 AUG 2024) -> evidence-based SC sub-classification allowed

Property Owners Association (5 NOV 2024) -> original Article 31C survives

Supriyo review (9 JAN 2025) -> dismissed; no Navtej-to-marriage overstatement

BNS 152 -> notice 28 AUG 2025; no located final merits decision

DPDP -> phased commencement; later tranches still future

Harish Rana (11 MAR 2026) -> CANH withdrawal within passive-euthanasia safeguards;
active euthanasia not legalised

PYQS

Mains 6: 2019 secularism; 2021 equality; 2022 movement; 2023 life/gender;
2024 privacy-DNA

Objective 15: 2018-2026; only held final local-official key is 2024 Q76 = D

ANSWER SPINE

claim -> exact Article -> named case/statute -> mechanism -> counter-position
-> qualification/current status -> remedy -> graded conclusion.